Request for Selection (RfS) Document
for
Selection of RE Power Developers for Supply of 1000 MW of Round-the-Clock Thermal Mimic (RTC-TM) Power from ISTS-connected Renewable Energy (RE) Power Projects in India, under Tariff-based Competitive Bidding (SECI-RTC-TM-V)

RfS No. SECI/C&P/IPP/13/0020/25-26 dated 10.03.2026

Tender Search Code on ISN-ETS: SECI-2026-TN000004

Solar Energy Corporation of India Limited
(A Government of India Enterprise)
6th Floor, Plate-B, NBCC Office Block Tower-2,
East Kidwai Nagar, New Delhi – 110023
Tel: 011 - 24666200, e-mail : contracts@seci.co.in

DISCLAIMER

I. Though adequate care has been taken while preparing the RfS document, the bidder(s) shall satisfy themselves that the document is complete in all respect. Intimation regarding any discrepancy shall be given by the prospective bidders to the office of SECI immediately. If no intimation is received from any bidder within **10 (Ten) days from the date of issuance of RfS documents,** it shall be considered that the document is complete in all respect and has been received/ acknowledged by the bidder(s).

II. Solar Energy Corporation of India Limited (SECI) reserves the right to modify, amend or supplement this document.

III. This RfS document has been prepared in good faith, and on best endeavour basis. Neither SECI nor their employees or advisors make any representation or warranty, express or implied, or accept any responsibility or liability, whatsoever, in respect of any statements or omissions herein, or the accuracy, completeness or reliability of information, and shall incur no liability under any law, statute, rules or regulations as to the accuracy, reliability or completeness of this document, even if any loss or damage is caused by any act or omission on their part.

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V. In case of any discrepancy in the documents uploaded on the websites of SECI, ISN-ETS and CPPP, the documents uploaded on the ISN-ETS website will prevail.

Place: New Delhi Date: 10.03.2026

BID INFORMATION SHEET

The brief details of the RfS are as under:

<table>
<tr><td>(A)</td><td>NAME OF WORK/ BRIEF SCOPE OF WORK/ JOB</td><td>1. Selection of RE Power Developers for Supply of 1000 MW Round-the-Clock Thermal Mimic (RTC-TM) Power from ISTS-connected RE Projects in India
2. Land and Connectivity shall be in the scope of the RE Power Developer.</td></tr>
<tr><td>(B)</td><td>RfS NO. & DATE</td><td>SECI/C&P/IPP/13/0020/25-26 dated 10.03.2026</td></tr>
<tr><td>(C)</td><td>TYPE OF BIDDING SYSTEM</td><td><table><tr><td>SINGLE BID SYSTEM</td><td></td></tr><tr><td>TWO BID SYSTEM</td><td>Yes</td></tr></table></td></tr>
<tr><td>(D)</td><td>TYPE OF RfS/ TENDER</td><td><table><tr><td>E-TENDER</td><td>Yes</td></tr><tr><td>MANUAL</td><td></td></tr></table></td></tr>
<tr><td>(E)</td><td>COMPLETION/ CONTRACT PERIOD</td><td>As mentioned in RfS Document</td></tr>
<tr><td>(F)</td><td>DOCUMENT FEE/ COST OF RfS DOCUMENT (NON-REFUNDABLE)</td><td><table><tr><td>APPLICABLE</td><td>Yes</td></tr><tr><td>NOT APPLICABLE</td><td></td></tr></table>
Amount: INR 50,000/- (Indian Rupees Fifty Thousand Only) + applicable GST, to be submitted through NEFT/ RTGS transfer in the account of SECI, along with the response to RfS</td></tr>
</table>

(G)	**BID PROCESSING FEE**	<table><tr><td>APPLICABLE</td><td>Yes</td></tr><tr><td>NOT APPLICABLE</td><td></td></tr></table> Rs. 20,000/MW + applicable GST corresponding to the quoted Contracted Capacity, subject to a maximum amount of Rs. 20,00,000 + applicable GST for the response to RfS, to be submitted through NEFT/RTGS transfer in the account of SECI, along with the response to RfS.
(H)	**EARNEST MONEY DEPOSIT (EMD)**	<table><tr><td>APPLICABLE</td><td>Yes</td></tr><tr><td>NOT APPLICABLE</td><td></td></tr></table> Amount: In line with Clause 16 of the RfS, to be submitted in the form of Bank Guarantee/ POI/ Insurance Surety Bond along with the response to RfS
(I)	**PERFORMANCE BANK GUARANTEE**	<table><tr><td>APPLICABLE</td><td>Yes</td></tr><tr><td>NOT APPLICABLE</td><td></td></tr></table>
(J)	**DATE, TIME & VENUE OF PRE-BID MEETING**	Scheduled as per NIT on ISN-ETS portal and/or SECI website.
(K)	**OFFLINE & ONLINE BID-SUBMISSION DEADLINE**	As per NIT on ISN-ETS portal
(L)	**TECHNO-COMMERCIAL BID OPENING**	As per NIT on ISN-ETS portal
(M)	**e-REVERSE AUCTION (e-RA)**	Will be informed to eligible bidders. Date and time of e-RA shall be intimated through email.
(N)	**CONTACT DETAILS OF ISN-ETS PORTAL**	M/s **Electronic Tender.com (India) Pvt. Ltd.** Gurugram Contact Person: ISN-ETS Support Team Customer Support: +91-124-4229071,4229072 (From 10:00 Hrs to 18:00 Hrs on all working Days i.e. Monday to Friday except Govt. Holidays) Email: support@isn-ets.com

(O)	**NAME, DESIGNATION, ADDRESS AND OTHER DETAILS** **(FOR SUBMISSION OF RESPONSE TO RfS)**	Sh. Atulya Kumar Naik Executive Director (Contracts & Procurement) Solar Energy Corporation of India Limited 6th Floor, Plate-B, NBCC Office Block Tower-2, East Kidwai Nagar, New Delhi - 110 023 Contact No.: 011 24666200
(P)	**DETAILS OF PERSONS TO BE CONTACTED IN CASE OF ANY ASSISTANCE REQUIRED**	1) Sh. Pratik Prasun DGM (C&P) Contact No.: 011-24666237 pratikpr@seci.co.in 2) Sh. Jayansh Gaur Deputy Manager (C&P) Contact No.: 011-24666281 jayansh.gaur@seci.co.in

- Bids must be submitted strictly in accordance with Section-2 and 3 of the RfS, depending upon Type of Tender as mentioned at Clause no. (D) of Bid Information Sheet.
- Bidders are required to quote strictly as per terms and conditions of the RfS documents and not to stipulate any deviations/ exceptions.
- Any Bidder, who meets the Qualifying Requirement and wishes to quote against this RfS, may download the complete RfS document along with its amendment(s) and clarifications if any, from ISN-ETS Portal (***https://www.bharat-electronictender.com***) and/or SECI website (***www.seci.co.in***) and submit their Bid complete in all respect as per terms & conditions of RfS document on or before the due date of bid submission.
- Amendments(s)/ Clarification(s)/ Corrigendum(s), if any, shall also be available on the above referred websites.

Bidders are requested to remain updated for any notices/ amendments/ clarifications etc. to the RfS document through the websites *https://www.bharat-electronictender.com* and *www.seci.co.in*. No separate notifications will be issued for such notices/ amendments/ clarifications etc. in the print media or individually. Intimation regarding notification on the above shall be updated on *www.seci.co.in* and the details will be available only from *https://www.bharat-electronictender.com.*

SECTION 1. INTRODUCTION & INVITATION FOR BIDS

1 Background & Introduction

1.1 Solar Energy Corporation of India Limited (hereinafter referred to as "SECI") is a "Navratna" Government of India Enterprise under the administrative control of the Ministry of New & Renewable Energy (MNRE). One of the main objectives of the Company is to assist the Ministry and function as the implementing and facilitating arm of the National Solar Mission (NSM) for development, promotion and commercialization of solar energy technologies in the country.

1.2 Government of India's continued emphasis on enhancing RE power's share in the national energy mix has transformed Indian energy sector significantly. With the intervention of Government of India, through MNRE, the risks associated with solar and wind power sector have been brought down by way of advanced arrangement of land and evacuation through solar parks, green energy corridors, a secure and standardized PPA for 25 years with elaborate mechanism for risk apportionment and compensations, payment security, etc.

1.3 The rapid growth trajectory of renewable energy (RE) witnessed in the past decade has led to innovative solutions being designed, with increasing focus on increasing dependency on RE power for meeting the daily demand of Distribution Companies (DISCOMs). With the advancement in Energy Storage technologies, coupled with downward trend of energy storage costs, the RE sector offers a unique opportunity to offer "firm and dispatchable" supply of power to Buying Entities, including DISCOMs.

1.4 With the objective to provide firm and dispatchable RE (FDRE) power to the DISCOMs through renewable energy sources, to facilitate the scale up of renewable capacity addition and achieve economies of scale, to facilitate fulfilment of RPO and ESO requirement of the obligated entities, Ministry of Power has issued "Guidelines for Tariff Based Competitive Bidding Process for Procurement of Firm and Dispatchable Power from Grid Connected Renewable Energy Power Projects with Energy Storage Systems," vide Gazette Resolution no. 23/03/2023-R&R dated 09.06.2023. These Guidelines have been issued under the provisions of Section 63 of the Electricity Act, 2003 to enable procurement of FDRE by DISCOMs from Grid-connected RE Projects, complemented with Energy Storage, through tariff based competitive bidding process. This RfS document has been prepared in line with the above Guidelines, including subsequent amendments and clarifications, issued until the last date of bid submission of this RfS.

1.5 As part of the Guidelines, SECI hereby invites proposals for setting up of ISTS-connected RE Projects for supply of 1000 MW Power on "Round-the-Clock" (RTC) basis from ISTS-connected RE Power Projects in India, under the Build-Own-Operate (BOO) model. SECI shall enter into a Power Purchase Agreement (PPA) with the successful Bidders selected based on this RfS for purchase of power for a period of 25 years based on the terms, conditions and provisions of the RfS and PPA. The standard PPA document is available for download from the ISN-ETS portal https://www.bharat-electronictender.com.

1.6 Power procured by SECI from the above Projects has been provisioned to be sold to the different Buying Entities of India. The details of Buying Entities shall be intimated later. SECI shall, at its discretion, be entitled to substitute any entity in other States only for selling the power procured from the selected Bidders. SECI shall be an intermediary nodal agency for procurement of power supplied by the RE Power Developers (RPDs) and sale of such power to the Buying Entity(ies) entirely on back-to-back basis, based on due performance by the RPDs as well as the Buying Entity(ies).

1.7 The Bidders will be free to avail fiscal incentives like Accelerated Depreciation, Concessional Customs and Excise Duties, Tax Holidays etc. as available for such Projects. The same will not have any bearing on comparison of bids for selection. As equal opportunity is being provided to all Bidders at the time of tendering stage itself, it is up to the Bidders to avail various tax and other benefits. No claim shall arise on SECI for any liability if Bidders are not able to avail fiscal incentives and this will not have any bearing on the applicable tariff. SECI does not, however, give a representation on the availability of fiscal incentive and submission of bid by the Bidder shall be independent of such availability or non-availability of the fiscal incentives.

1.8 Bidders who have already commissioned Renewable Energy (RE) Projects/storage projects or are in process of constructing such projects and have untied capacity may also participate under this RfS. In such case, they will be given the benefit of a longer period of PPA, commensurate to the duration between the actual date of commencement of supply of power and Scheduled Commencement of Supply Date (SCSD), pursuant to Clause 11 of the RfS. It is clarified that the Bidders who have terminated their PPAs with Renewable Energy Implementing Agencies as identified by the MNRE and/or with any State-owned Distribution Company (DISCOM) during the intervening period between the date of issuance of this RfS and the bid submission deadline, are not allowed to participate in this RfS for the respective Project(s).

1.9 No separate Central Financial Assistance is envisaged for implementation of the Projects selected under this RfS.

2 Invitation for Bids

2.1 A Single Stage, Two-Envelope Bidding Procedure will be adopted and will proceed as detailed in the RfS Documents. Bidding will be conducted through the competitive bidding procedures as per the provisions of this RfS. The respective rights of SECI and the Bidder/RPD shall be governed by the RfS Documents/Agreement signed between SECI and the RPD for the Project.

2.2 Interested Bidders have to necessarily register themselves on the portal https://www.bharat-electronictender.com ("ETS portal") through M/s Electronic Tender.com (India) Pvt. Limited to participate in the bidding under this invitation for bids. It shall be the sole responsibility of the interested bidders to get themselves registered at the aforesaid portal for which they are required to contact M/s Electronic Tender.com (India) Pvt. Limited, New Delhi, to complete the registration formalities. Contact details of ISN-ETS is mentioned on the Bid Information Sheet. All required

documents and formalities for registering on ISN-ETS are mentioned in the subsequent RfS documents.

They may obtain further information regarding this RfS from the registered office of SECI at the address given on the Bid Information Sheet from 10:00 hours to 17:00 hours on all working days.

For proper uploading of the bids on the ETS portal, it shall be the sole responsibility of the Bidders to apprise themselves adequately regarding all the relevant procedures and provisions as detailed in the portal as well as by contacting M/s Electronic Tender.com (India) Pvt. Limited (ETI) directly, as and when required, for which contact details are also mentioned on the Bid Information Sheet. SECI in no case shall be responsible for any issues related to timely or properly uploading/ submission of the bid in accordance with the relevant provisions of the Bidding Documents.

2.3 Bidders should submit their bid proposal complete in all aspect on or before last date and time of Bid Submission as mentioned on ISN-ETS Portal (https://www.bharat-electronictender.com), SECI website http://www.seci.co.in and as indicated in the Bid Information Sheet.

2.4 Bidder shall submit bid proposal along with non-refundable Cost of RfS Document, Bid Processing Fees and Earnest Money Deposit (EMD) complete in all respect as per the Bid Information Sheet. Bid proposals received without the requisite Cost of RfS Document, Bid Processing Fees and EMD will be rejected. **In the event of any date indicated being declared a holiday, the next working day shall become operative for the respective purpose mentioned herein.**

2.5 RfS documents can be downloaded from the ISN-ETS Portal or from SECI's website. It is mandatory to download official copy of the RfS Document from Electronic Tender System (ISN-ETS) portal to participate in the RfS. Any amendment(s)/corrigendum(s)/clarification(s) with respect to this RfS shall be uploaded on ISN-ETS portal. The Bidder should regularly check for any Amendment(s)/Corrigendum(s)/Clarification(s) on the above mentioned ISN-ETS portal. The same may also be uploaded on SECI website. However, in case of any discrepancy, the information available on ISN-ETS portal shall prevail. SECI reserves the right to cancel/ withdraw/ defer this invitation for bids without assigning any reason and shall bear no liability whatsoever consequent upon such a decision.

2.6 SECI has issued this RfS in the capacity of "Intermediary Procurer" as defined in the aforementioned Guidelines. SECI may develop a suitable monitoring mechanism, to analyze the performance of the Project and carry out random checks to verify compliance of quality standards.

2.7 INTERPRETATIONS

- Words comprising the singular shall include the plural & vice versa.
- An applicable law shall be construed as reference to such applicable law including its amendments or re-enactments from time to time.
- A time of day shall save as otherwise provided in any agreement or document be construed as a reference to Indian Standard Time.
- Different parts of this contract are to be taken as mutually explanatory and supplementary to each other and if there is any differentiation between or among the parts of this contract, they shall be interpreted in a harmonious manner so as to give effect to each part.
- The table of contents and any headings or sub-headings in the contract has been inserted for case of reference only & shall not affect the interpretation of this agreement.

SECTION 2. SPECIAL CONDITIONS OF CONTRACT

3 Scope of Work

3.1 Under this RfS, the RE Power Developer (RPD) shall be required to set up ISTS-connected RE Power Project(s) with Energy Storage System (ESS), including the transmission network up to the Interconnection/ Delivery Point(s), with the primary objective of supplying RE power to SECI, at its own cost and as per the provisions of the RfS and PPA.

3.2 Identification of land, installation and ownership of the Project(s), along with obtaining connectivity and necessary approvals and interconnection with the ISTS network/STU or InSTS network (as applicable) for supply of power to SECI, will be under the scope of the RPD. For the purpose of STU interconnection, RPD may install the Project in the same State where the Buying Entity is located. It is clarified that by default, "Delivery Point" shall mean ISTS substation, and shall mean an InSTS or STU substation only in case both the RPD and the Buying Entity agree to this modification.

3.3 The Projects to be selected under this scheme provide for deployment of RE Power Projects, along with Energy Storage System (ESS). However, the selection of Projects would be technology agnostic.

4 Total capacity offered

4.1 Selection of RE Power Projects for a total Contracted Capacity of 1000 MW will be carried out through e-bidding followed by e-Reverse Auction process.

4.2 **RTC configuration**

i. RE Projects are required to be designed for interconnection with the ISTS substation at voltage level of 220 kV or above. However, for STU/InSTS connected project, voltage level may be as per the concerned State Regulations.

ii. The RfS has been issued for procurement of cumulative "Contracted Capacity" of 1000 MW, which corresponds to RTC power from the Projects.

iii. Energy Storage Systems (ESS) shall mandatorily constitute part of the Project. It is clarified that ESS charged using a source other than RE power would not qualify as RE power. For avoidance of any doubt, it is hereby clarified that ESS may be owned by the RPD or may be tied-up separately with a third party by the RPD, for supply of power. The ESS technology can be changed by the RPD at any time during the Term of the PPA. Any change in the ESS component during the term of the PPA shall be at the risk and cost of the RPD and under intimation to SECI.

iv. The capacity (in MW) quoted by the Bidders in the Covering Letter (and the LoA issued by SECI) shall mean "Contracted Capacity".

v. For a Contracted Capacity of 250 MW (for e.g.), the "Installed Capacity" as per the General Network Access (GNA) Regulations can be more than Contracted Capacity. Project Capacity shall mean rated AC capacities of Solar PV, Wind power and other RE based components along with energy storage as committed to be installed under

the PPA, and shall be equal to the installed capacity committed under the Connectivity granted under the GNA Regulations. It is to be noted that prior to commencement of supply of power under the PPA, the installation and commencement of power supply from the corresponding committed rated capacity of RE generating components as declared in the PPA, may be verified by the SECI.

vi. A "Project" under the RfS, PPA and PSA refers to the "RE Project", along with ESS, which forms part of the RTC configuration declared under the PPA. For avoidance of doubt, it is clarified that a single RPD may break up the cumulative awarded Contracted Capacity into multiple Projects. Each such Project may comprise any combination of RE components and ESS within the provisions of the RfS. In case the RPD chooses to install multiple Projects under the cumulative Contracted Capacity awarded, the "Installed Capacity" for which connectivity has been granted for each Project, shall be considered separately for each Project.

vii. The RE component sizing should be suited to meet the RTC power supply requirement of the Buying Entity, as detailed in Clause 8 of the RfS.

viii. For each Project, the Project configuration, i.e. the Installed Capacity proposed, will be submitted by the Bidder at the time of bid submission. The above configuration can be changed by the RPD until the Scheduled Commencement of Supply Date (SCSD)/extended SCSD of the Project. SECI shall communicate any change in configuration to Buying Entity(ies).

5 Maximum Eligibility for Contracted Capacity Allocation to a Bidder

Following conditions shall be applicable to the Bidders for submission of bids against this RfS:

5.1 A Bidder, including its Parent, Affiliate or Ultimate Parent or any Group Company shall submit a single bid offering a minimum quantum of cumulative Contracted Capacity of **100 MW** and a maximum quantum of **500 MW**, in the prescribed formats. The cumulative Contracted Capacity shall be quoted in integral values only.

Note: In case a common Company/Companies directly or indirectly hold(s) more than 10% but less than 26% shareholding in more than one Bidder participating in the RfS, each of such Bidders will be required to submit the Disclosure as per Format 7.8A. In all other cases, Format 7.8 will be applicable.

5.2 The cumulative Contracted Capacity to be allocated to a Bidder including its Parent, Affiliate or Ultimate Parent or any Group Company shall be limited to **500 MW**.

5.3 The evaluation of bids shall be carried out as described in Section-5 of the RfS. The methodology for Allocation of Projects is elaborated in Section-5 of the RfS.

5.4 Subject to the exception as per Clause 5.1 above, multiple bids from same company including its Parent/ Ultimate Parent/Affiliates/Group Companies shall make all the bids submitted by the group invalid.

6 *Project Location*

6.1 The Projects can be located anywhere in India, at the locations chosen by the Bidder/RPD at its own discretion of and risk, cost and responsibility. For a single Project, the RE generation components, along with ESS, may either be co-located, or may be located at different locations. The different Project components can be connected with ISTS network at different ISTS sub-stations. However, Project location(s) should be chosen taking cognizance of the provision as per Clause 7 of the RfS.

6.2 The term "Project" shall have the meaning as defined in Section-6 of the RfS, and shall refer to the Project capacity or the Installed Capacity as quoted by the Bidder (at the time of bidding)/awarded to the Bidder (as per the LoA).

6.3 The RPDs are free to change the Project location and/or Delivery Point up to the deadline for Financial Closure as per Clause 21 of the RfS.

i. In this regard, any change in Delivery Point from the one mentioned in the Covering Letter at the time of bid submission shall be allowed till the deadline to apply for connectivity, subject to the condition that the Scheduled Commissioning Date of the proposed new Delivery Point is on or before 30th June, 2028.

The Bidder/ RPD is required to provide the proof of SCD of substation in this regard at the time of intimation of such change to SECI. For the proof of SCD of substation, in case a Bidder/ RPD chooses to submit the proof of application of connectivity/ in-principle grant of connectivity/ final grant of connectivity of any entity than the Bidder/ RPD (whose connectivity is allowed to be utilized by the Bidder as per GNA regulations), the Bidder/ RPD is required to submit an Undertaking from the connectivity applicant/ grantee as per Annexure-I, along with copy of the application/ in-principle/ final grant of connectivity.

ii. Subsequent to lapse of the deadline to apply for connectivity, any change in Delivery Point shall be allowed by SECI only in case the scheduled commissioning date of the ISTS substation of the proposed revised Delivery Point is on or before the scheduled commissioning date of the existing Delivery Point of the Project, at the time of seeking approval from SECI by the RPD.

The RPD is required to provide the proof of SCD of substation in this regard at the time of seeking approval from SECI. For the proof of SCD of substation, in case a RPD chooses to submit the proof of application of connectivity/ in-principle grant of connectivity/ final grant of connectivity of any entity than the RPD (whose connectivity is allowed to be utilized by the Bidder as per GNA regulations), the RPD is required to submit an Undertaking from the connectivity applicant/ grantee as per Annexure-I, along with copy of the application/ in-principle/ final grant of connectivity.

In this case, the RPD will be required to apply for connectivity at the proposed substation within 7 working days of intimation of approval for the same by SECI.

In case the RPD fails to obtain connectivity on account of reasons attributable to it, including but not limited to failure to apply for connectivity within the deadline, the

RPD will not be eligible for corresponding extension in the timelines for meeting the Project milestones.

7 *Connectivity with the Grid*

7.1 The Project should be designed for interconnection with the ISTS/ InSTS in accordance with the prevailing CERC/ SERC regulations in this regard. In case the Buying Entity is located in the same State where the Project is located, the RPD may choose to interconnect the Project at the STU/InSTS Substation at a minimum voltage level as per the applicable State regulations, subject to acceptance of such an arrangement by the Buying Entity. In such cases, relevant provisions of the RfS, PPA and PSA documents referring to ISTS Substations at the Delivery Point shall also mean STU/InSTS substations, wherever applicable. Similarly, reference to CEA regulations with respect to connectivity and synchronization with the grid will also mean reference to the applicable SERC/State Government regulations for InSTS-connected Projects. For interconnection with the grid and metering, the RPD shall abide by the applicable Grid Code, Grid Connectivity Standards, Regulations on Communication System for transmission of electricity and other regulations/procedures (as amended from time to time) issued by Appropriate Commissions and Central Electricity Authority (CEA). Minimum voltage level for interconnection at the ISTS shall be 220 kV.

7.2 The responsibility of getting the ISTS connectivity shall entirely be of the RPD and shall be at the cost of the RPD, in line with applicable regulations. In case of the Project being set up in a Solar Park/RE Park, applicable connectivity regulations shall govern the scope of the RPD. With such availability of transmission system being dynamic in nature, the Bidder has to ensure actual availability of power injection/evacuation capacity at an ISTS substation. The transmission of power up to the point of interconnection where metering is done for energy accounting, shall be the responsibility of the RPD at its own cost. In case an RPD is required to use InSTS to bring RE power at ISTS point, it may do so as per rules and regulations prescribed by the respective SERC in this regard. The maintenance of transmission system up to the Interconnection Point(s) shall be responsibility of the RPD, to be undertaken entirely at its risk, cost, and expense.

7.3 The arrangement of connectivity can be made by the RPD through a transmission line up to the Interconnection Point. The entire cost of transmission including cost of construction of line, wheeling charges, SLDC/Scheduling charges, SOC, MOC, maintenance, losses etc. and any other charges from the Project up to and including at the Interconnection Point will be borne by the RPD.

7.4 The RPD shall be required to follow the Detailed Procedure as issued by CERC/CTU under the General Network Access under the Central Electricity Regulatory Commission (Connectivity and General Network Access to the Inter-State Transmission System) Regulations, 2022. RE Power Project shall comply with all the technical requirements specified under Central Electricity Authority (Technical Standards for Connectivity to the Grid) Regulations, 2007, including subsequent amendment and clarifications issued thereto, as well as other Rules/Regulations issued by CERC/CEA and as amended from time to time. It is further clarified that the Entities (RPD and Buying Entity) as indicated in the procedure issued under the above Rules/Regulations, will be responsible for their

respective obligation as notified in the procedure, irrespective of the provisions of the RfS, PPA and PSA. The Projects shall also comply with the Central Electricity Authority (Measures relating to Safety and Electric Supply) Regulations, including subsequent amendments and clarifications issued thereto.

7.5 The Bidders are free to choose the ISTS substations for Interconnection of the Project to the Grid on a pan-India basis. While doing so, the Bidders shall apply due diligence while choosing the proposed substation, and may choose their substations from any one of the following options:

i. Existing substations having available margin as indicated by the respective substation owner.

ii. Existing substations/ substations under construction where augmentation is under process or plans for augmentation have been announced.

iii. Substations approved under the updated plan made available by the CTU on its website, https://www.ctuil.in/renewable-energy, subject to availability of requisite margin for grant of connectivity.

iv. Substations identified for RE capacity under para 3, 4, 5, and 9 of 'Transmission System for Integration of over 500 GW RE Capacity by 2030' published by CEA on its website, https://cea.nic.in/wpcontent/uploads/psp___a_i/2022/12/CEA_Tx_Plan_for_500GW_Non_fossil_capac ity_by_2030.pdf, including subsequent revision therein from time-to-time.

Bids indicating substations outside the above four choices will be liable for rejection.

The substation being chosen in line with Sl. i, ii, iii, and iv above, should have a scheduled commissioning date on or before **30th June, 2028**. The Bidder is required to provide the proof of SCD of substation in this regard at the time of bid submission, as part of Format-7.1 of the RfS.

For the proof of SCD of substation, in case a Bidder chooses to submit the proof of application of connectivity/ in-principle grant of connectivity/ final grant of connectivity of any entity than the Bidder (whose connectivity is allowed to be utilized by the Bidder as per GNA regulations), the Bidder is required to submit an Undertaking from the connectivity applicant/ grantee as per Annexure-I, along with copy of the application/ in-principle/ final grant of connectivity, as part of Format-7.1 of the RfS.

7.6 Metering arrangement of each Project shall have to be adhered to in line with relevant clause of the PPA. Two or more Projects can be connected to a common pooling substation from which the pooled power can be transferred to the ISTS substation through a common transmission line subject to the following conditions:

i. Acceptance of such an arrangement by CTU/ RLDC.

ii. Energy injected by each Project will be recorded and jointly signed by respective RPDs and copies of the same will be submitted to SECI/CTU as required.

iii. The energy accounts are divided and clearly demarcated for the power supplied by the Project and are issued by the STU/SLDC/RLDC/RPC concerned.

iv. In case of Pooling substation, losses in the transmission line between the Pooling substation and the ISTS substation, shall be apportioned among the RPDs who share such a Pooling arrangement, based on their monthly generation

7.7 The RPD shall comply with CERC/SERC regulations on Forecasting, Scheduling and Deviation Settlement, as applicable and are responsible for all liabilities related to Connectivity. The scheduling of power from the Project as per the applicable regulation shall be the responsibility of the RPD and any financial implication on account thereof shall be borne by the RPD. In order to remove potential discrepancies and ambiguities, the RPDs are hereby instructed that, as part of scheduling of power from the Project, they will be required to punch-in their respective schedules and subsequent revisions, by themselves, at the interfaces of all the RLDCs concerned for the corridor of power flow, including the RLDC of the Buying Entities, as per the Regulations in force, under intimation to SECI. SECI may facilitate in identification of any discrepancy and assist the RPD for its early rectification without any liability on SECI. The RPD shall be solely responsible for discrepancy identification and its rectification to avoid any rejection/less payment of invoices.

7.8 Reactive power charges and charges against power drawn from grid as per CERC/SERC regulations, shall be payable by RPD as per provisions of PPA. Metering arrangement for the Project shall have to be adhered to in line with relevant provisions of the PPA.

7.9 Pursuant to Clause 7.4 above, the Buying Entities will be responsible for obtaining General Network Access (GNA), and shall bear all transmission charges and losses and any other charges as applicable under the respective regulations beyond the Delivery Point and up to the drawl point.

7.10 In case the ESS component is located separately from the RE generating components of a Project, the charges for charging the ESS, as applicable under GNA regulations and other orders issued by MoP/CERC will be borne by the RPD.

7.11 The RPDs will be required to apply for connectivity at its identified substation(s), as mentioned in the Covering Letter (Format 7.1), latest by the date as on 30 days after the Effective Date of PPA, and shall furnish copies of the application, complete in all respect, to SECI within 15 days of date of filing of application. RPD shall also have to provide the copy of in-principle grant of connectivity, final grant of connectivity, connectivity agreement within 15 days of issuance of letter by CTU / signing of connectivity agreement, as the case may be, to SECI.

The RPD has to follow the timelines mentioned in the GNA regulation with respect to connectivity. In case the connectivity gets revoked due to non-compliance of RPD, in such case the capacity may not be off-taken and RPD will keep SECI/Buying Entity indemnified from any losses; further, the RPD shall be liable for any penalty for non-performance as specified in the RfS/PPA.

After fulfilling the compliances, in case the RPD fails to obtain the full/part connectivity at a Substation identified by the Bidder, the same shall be immediately notified by the RPD to SECI. In such case the RPD will be allowed for another 90 days to apply for connectivity from the date of rejection by the CTU.

8 Power Supply by the RE Power Developer

8.1 Criteria for Power Supply

a. Demand Fulfilment Ratio: The procurement shall be in power (MW) terms. The RPD shall supply RE power in Round-the-Clock manner by maintaining the following Demand Fulfilment Ratios (DFR):

(i) **a minimum DFR of 90% in each time-block during the Peak Hours;**

(ii) **a minimum DFR of 80% in each time-block during the off-Peak Hours; provided that the RPD may designate, by prior written notice to the Buying Entity latest by 31st May of that year, any two calendar months between (and including) July and September, during which the minimum DFR requirement in each time-block during the off-Peak Hours shall stand relaxed to 70%, such designation being limited to complete calendar months only;**

(iii) **a minimum DFR of 90% on annual basis.**

b. "Demand Fulfilment Ratio" in a particular time-block for scheduling shall be calculated as follows: DFR = [Power Injection Scheduled by the RPD (MW) in a particular time block ÷ Contracted Capacity (MW)], subject to the maximum value of DFR being 1.

The RPD's performance against this metric will be measured by:

(i) adding up the shortfall of each time-block in meeting the min. DFR requirement during the Peak Hours;
(ii) adding up the shortfall of each time-block in meeting the min. DFR requirement during the off-Peak Hours;

Penalty for both the above shortfalls will be calculated on time-block wise basis and will be reconciled on monthly basis. This aggregate penalty of both the above shortfalls shall be recovered on monthly basis from the subsequent monthly bill.

However, it is further clarified that in the event a project is being mapped with two or more Buying Entities, the penalty for both the above shortfalls shall be calculated separately for each Buying Entity considering peak and off-peak hours of respective Buying Entity.

(iii) averaging the DFR of all the time-blocks in a Contract Year, to measure the DFR compliance on annual basis.

The above shortfall will be reconciled on annual basis for each Contract Year.

In a Contract Year, higher of the two penalties ((sum of (i) and (ii) for all the months of the Contract Year), (iii)) shall be levied on the RPD and the same shall be recovered from the subsequent monthly bill.

c. Peak Hours: The Buying Entity shall choose any 6 hours on a daily basis between 00:00 Hrs. to 10:00 Hrs. and 18:00 Hrs. to 24:00 Hrs. of a day, which shall be the 'Peak Hours' for that day. For the purpose of scheduling, a 'day' shall commence from 00:00 Hrs. and end at 24:00 Hrs. These 6 hours shall be intimated by the Buying Entity on day-ahead basis and will constitute the Peak Hours for that day. All remaining hours outside these 6 Peak Hours chosen by the Buying Entity shall be referred to as 'Off-Peak Hours'.
In case of non-receipt of Peak Hours schedule from the Buying Entity, the Peak Hours for that day shall be considered same as the Peak Hours of the preceding day.

d. In case of the power being re-mapped /diverted to some other Buying Entities, the RPD will have to comply with the peak hour supply requirement of those new Buying Entities.

e. In case of change in Peak hours as notified by the Buying Entities, same will have to be complied by the RPD.

f. Pursuant to the provisions of Clause c above, the RPD shall plan the dispatch of electricity and convey its scheduling thereof by the SLDC or RLDC, as the case may be, and shall supply electricity in accordance with the provisions of the Grid Code and the Electricity Act, 2003.

g. It is mandated to make available the Project to the Buying Entity on a Round-the-Clock basis. The generated energy shall be dispatched through scheduling of power by the Buying Entity.

h. Not used.

i. The RPD shall schedule power on day-ahead basis. The Buying Entities shall compulsorily off-take all such power, subject to the maximum power scheduled in any time-block being equal to the Contracted Capacity.

j. The RPD shall offer power such that 100% of the annual energy offered corresponds to RE power. The RPD can, however, source up to 5% RE power (in energy terms), on annual basis, from the green market sources/bilateral agreements outside the PPA as per extant regulations, towards meeting the supply conditions stipulated in the RfS/PPA. It is hereby clarified that sourcing of 5% energy from green market sources/bilateral agreements, as indicated in the Clause, refers to 5% of the total annual energy required to be supplied. It is hereby clarified that in case of excess supply by the RPD over the 5% limit as stipulated in these provisions, RPD shall not be entitled for energy payment against such excess energy supplied and the same shall not be considered while calculating the RPD's performance with respect to this Clause and Article 4.4.3 of the PPA. Any liability arising out of such excess energy supply shall be to the sole account of RPD. Further, in the case of supply of energy

from the ESS towards meeting this 5% requirement (in part or full), only the energy discharged from the ESS shall be considered for calculating the 5% requirement, and not the corresponding charging energy required.

8.2 Shortfall in Power Offered

a) Subsequent to commencement of power supply from the full Contracted Capacity or the Contracted Capacity finally accepted by SECI, if for any Contract Year, in case the Project's DFR is less than the parameters as specified in Clause 8.1.a above, save and except in case of Force Majeure, such shortfall in performance shall make the RPD liable to pay the penalty provided in the PSA (Power Sale Agreement) as payable by SECI to Buying Entity and the RPD shall duly pay such penalty to SECI to enable SECI to remit the amount to Buying Entity.

b) The amount of penalty against shortfall for each of the min. DFR requirements stipulated in Clause 8.1.a above shall be equal to 1.5 times the cost of this shortfall in energy terms, calculated at the PPA tariff.

c) Not used.

d) In a particular Contract Year, in case of shortfall in meeting min. annual DFR, along with shortfall in meeting time-block wise Peak and Off-Peak Hours DFR requirements, the higher of the following two penalties shall be applicable: (i) the penalty for shortfall in the minimum annual DFR, or (ii) the aggregate penalty for shortfall in the minimum DFR requirements for Peak and Off-Peak Hours. Illustration to this effect is enclosed at Annexure-C of the RfS.

e) The detailed list of documents required for verification of energy supply and performance of the Project will be intimated to the RPD subsequent to commencement of power supply. For each month in a Contract Year, the above data will be required to be submitted by the respective RPD to SECI within 10 days after expiry of the previous month, for verification of the performance parameters for calculating applicable penalty on account of shortfall, if any.

8.3 Excess Power Supply

In order to allow optimization of operation of RE Power generating systems, the RPD is allowed to supply power in excess of the Contracted Capacity in any time-block, to any third party or power exchange, without requiring any No-Objection Certificate (NOC) from SECI/Buying Entity. In case such power is purchased by the Buying Entity, it shall be purchased at the PPA tariff (plus SECI's trading margin). It may be noted that at any instance of energy supply from the Project, priority shall be accorded to meet the energy requirements as per PPA, before selling any quantum in the open market.

Any instance of third-party sale of power from the Project by the RPD, while the Contracted Capacity in any-time block remains unfulfilled, shall constitute a breach of RPD's obligations under the PPA and make the RPD liable for additional penalty @2 times of extant market rate/kWh (reference rate being the highest of the applicable rates in the DAM/G-DAM/RTM of all Power Exchanges operating in India on that day) for

the quantum of such sale. In the event of early part commencement of power supply from the Project/ early commencement of supply of power from individual Project component/ non-availability of GNA/ transmission line constraints/ intentional scheduling of power by the RPD to a third party/ any other case, SECI shall analyze the actual constraints and power evacuation details and the applicability of this penalty shall be determined based on this analysis.

The RPD can repower the Project at any stage at its own risk and cost, if required, in order to meet the energy supply requirements from this Project. It is to be noted that the summation of generation schedule of RE Power to the Buying Entity from multiple sources and/or locations cannot be more than the Contracted Capacity specified in the PPA. The RPD may, however, apply for connectivity and access (if applicable), in accordance with extant regulations.

9 *Commencement of Power Supply*

The RPD shall commission the Project in line with provisions of the Central Electricity Regulatory Commission (Indian Electricity Grid Code) Regulations, 2023, as amended from time to time. In line with this regulation, the RPD proposing the Project or its part (including single component) for commissioning, shall give to SECI and the Buying Entity, a preliminary notice not later than 60 days prior and advance notice not later than 30 days prior to the proposed commissioning date. Further, the RPD shall also give a notice of not less than seven (7) days, for trial run or repeat of trial run, to the concerned RLDC(s), Buying Entity(ies), and SECI. However, in case the repeat trial run is to take place within 48 hours of the failed trial run, fresh notice shall not be required.

The RPD shall submit requisite documents as mentioned below, at least 30 days prior to trial run of the Project –

i. Installation report duly signed by the authorized signatory as per Annexure-E of the RfS indicating rating and quantity of inverters and Solar PV modules (as applicable), Energy Storage System of each type for the capacity proposed for commissioning only duly signed by authorized signatory.

ii. Submission of details of payment security deposit amount as per RfS/ PPA (if applicable).

iii. Synchronization declaration by the RPD for the capacity proposed for commissioning, including details of the synchronized Solar blocks (as applicable), ESS units and WTGs (as applicable) as per Annexure-G of the RfS.

iv. Board resolution for authorized signatory for signing the documents related to commissioning of the Project.

v. Affidavit from the authorized signatory of the RPD stating that

   a. the solar cells and modules have been procured from a manufacturer listed in the ALMM/ ALMMC by MNRE (as applicable).

   b. the Wind turbines installed in the said Project have been procured from a turbine manufacturer listed in the RLMM issued by MNRE (as applicable).

c. all the equipment including but not limited to solar PV modules (as applicable), Inverters/PCU, Power transformer, ESS, WTGs (as applicable), Transmission Systems, and cables have been installed in compliance with the technical requirements specified under the RfS/PPA.

d. In case of individual component commissioning, RPD is required to submit affidavit as above.

e. RPD has obtained all the necessary approvals for commencement of power supply from the Project.

f. Indemnifying SECI against any discrepancies in the above details.

vi. Plant layout along with the Single Line Diagram (SLD), clearly indicating the details of WTG size and capacity along with the individual WTG Serial Nos. (as applicable), their locations, feeder details, 230/220/33 kV Pooling Sub Station, the ESS, Solar Block Capacity (as applicable), Inverters/ICR Blocks, Inverter Duty Transformer, Power Transformers, and Energy meters.

vii. Energization approval from CEI/CEIG/CEA (as applicable) for WTGs, solar PV modules, inverters, transformers, ESS (as applicable) along with all annexures and attachments.

viii. CEIG/ CEA approval for 33 kV Transmission Line(s) and Feeders, CEIG/ CEA approval for ISTS S/s Bay, 220 kV Line & PSS.

ix. Final grant of connectivity letter issued by CTUIL for the Project in the name of either the RPD or the Bidding Company. If the RPD intends to commission the project before the operationalization of connectivity, RPD shall submit an undertaking indemnifying SECI, as per the format in Annexure-H.

x. Trial run certificate issued by appropriate authority in accordance with IEGC.

xi. MoD NOC approval /Affidavit indemnifying SECI in case of Green Zone, as declared by NIWE.

xii. Documents to prove the clear possession of or right to use the identified land. Affidavit from the RPD certifying possession of land identified for the project, bearing the details of such land parcels where Project is located, and indemnifying SECI against any discrepancies in the above details.

xiii. The generating company (RPD) proposing its generating station or a unit thereof for trial run or repeat of trial run shall give a notice of not less than seven (7) days to the concerned RLDC, and the beneficiaries of the generating stations, including intermediary procurers, wherever identified.

xiv. Intimation regarding commissioning, specifying the proposed capacity and commissioning date, is required to be submitted at least 30 days prior to the proposed commissioning date.

xv. A complete set of documents except trial run certificate and Synchronization declaration, required to be submitted by RPD 15 days before the proposed date of the commissioning of the Project.

xvi. Geotagging intimation to NIWE.

xvii. Metering scheme from RLDC/other concerned authority.

In case the RPD fails to submit the abovementioned documents 15 days prior to the proposed date of trial run to SECI, then No-Objection Certificate (NOC) towards sale of infirm power will not be issued to the RPD. In this case, if it is found that the infirm power is being scheduled to any third party/ power exchange without obtaining NOC from SECI, the RPD will be liable to pay compensation to SECI for the amount corresponding to 50% of the Applicable Tariff as per PPA, only if the tariff is higher than 50% of the Applicable Tariff as per PPA. Such compensation will be passed on to the Buying Entity after deducting SECI's trading margin.

It is clarified that SECI shall bear no responsibility in declaration of commissioning/COD of the Project. However, on the basis of above documents, the RPD shall be required to obtain No-objection certificate (NOC)/PPA Compliance Certificate from SECI prior to declaration of commissioning/COD of the Project.

SECI's scope will be limited to verifying the installation of rated capacity(ies) of the Project as per the COD certificate submitted by the RPD. This verification will be at SECI's discretion and shall not constitute any certification/confirmation of commissioning/COD of the Project by SECI. Prior to declaration of commencement of power supply, the RPD shall submit COD certificate for the corresponding Installed Capacity to SECI as part of the requisite documents.

The date of onset of commercial offtake of power by SECI/Buying Entity shall be determined as the date of commencement of power supply under the RfS/PPA.

The RPD shall be required to obtain NOC from SECI prior to sale of infirm power to any third party prior to declaration of COD. However, in case the Buying Entity is ready to offtake that infirm power as per regulations prior to declaration of COD then such infirm power shall be scheduled to the Buying Entity in line with Central Electricity Regulatory Commission (Indian Electricity Grid Code) Regulations, 2023. In case the infirm power is off-taken by Buying Entity, then such power shall be purchased at 50% of the Applicable Tariff (as per Article 9.1 of PPA). In case Buying Entity does not consent to purchase such infirm power, the right of refusal shall then vest with SECI.

9.1 Part Commencement of supply of power

Part commencement of supply of power from the Project shall be accepted by SECI subject to the condition that the minimum capacity for acceptance of first and subsequent part(s) shall be 50 MW (with the last part being the balance Contracted Capacity), without prejudice to the imposition of penalty in terms of the PPA on the part which has not yet commenced supply of power. In case of part commencement of supply, the DFR measurement will also be proportionately adjusted to the extent of the part Contracted

Capacity, and any power being supplied over and above the part Contracted Capacity will be treated as excess power under the RfS/PPA.

However, the Scheduled Commencement of Supply Date will not get altered due to part commencement of supply. Irrespective of dates of part commencement of power supply, the PPA will remain in force for the period as specified in the PPA.

Penalty on account of shortfall in Project performance during the first year after the commencement of supply of power shall be recovered by encashing the PBG submitted by the RPD, in case the penalty is not paid by the RPD.

9.2 **Commencement of Supply schedule and Penalty for Delay in Commencement of power supply**

a. The Scheduled Commencement of Supply Date (SCSD) for supplying power from the full Project capacity shall be the date as on **18 months** from the Effective Date of the PPA (for e.g., if Effective Date of the PPA is 07.06.2026, then SCSD shall be 07.12.2027).
b. The maximum time period allowed for commencement of power supply from the full Project Capacity with applicable penalty, shall be limited to the date as on **6 months** from the SCSD or the extended SCSD (if applicable) (for e.g., if SCSD is 07.12.2027, then the above deadline for commencement of power supply shall be 07.06.2028).
c. In case of delay in commencement of power supply beyond the SCSD/ extended SCSD until the date as per Clause 9.2.b above, as part of the penalty, the total PBG amount for the Project shall be encashed on pro-rata basis and proportionate to the Contracted Capacity that has not commenced supply of power.
d. For delay in commencement of power supply beyond the date as per Clause 9.2.b above, the Contracted Capacity shall stand reduced/amended to the Project Capacity that has commenced supply of power until the date as per Clause 9.2.b. above, and PPA for the balance Contracted Capacity will stand terminated. Also, the PBG corresponding to the capacity which has not started commencement of power supply until the date as per Clause 9.2.b above, shall be encashed on pro-rata basis.

10 Delay in Commencement of power supply on Account of Delay in readiness of ISTS evacuation infrastructure/ Start Date of Connectivity

The responsibility of obtaining General Network Access (GNA) shall be of the Buying Entity prior to commencement of supply of power from the Project. For sale of power to SECI from SCSD, the GNA is required to be obtained by the Buying Entity. Subsequent to grant of connectivity, in case there is a delay in Start Date of Connectivity by the CTU and/or there is a delay in readiness of the ISTS substation at any Delivery Point beyond SCSD of the Project, including readiness of the power evacuation and transmission infrastructure of the ISTS network until SCSD of the Project, or delay in Start Date of Connectivity, and it is established that:

i. The RPD has complied with the complete application formalities as per Clause 7.5 above and as per the Detailed Procedure as issued by the CTU,

ii. The RPD has adhered to the applicable regulations/ procedures in this regard as notified by the CERC/CEA, and

iii. The delay in Start Date of connectivity/GNA by the CTU and/or delay in readiness of the ISTS substation at the Delivery Point, including readiness of the power evacuation and transmission infrastructure of the ISTS network, is a factor attributable to the CTU/transmission licensee and is beyond the control of the RPD;

The above shall be treated as delays beyond the control of the RPD and SCSD for such Projects shall be revised as the date as on 60 days subsequent to the readiness of the Delivery Point and power evacuation infrastructure and/or Start Date of Connectivity. Decision on requisite extension on account of the above factor shall be taken by SECI.

In case of delay in commencement of power supply from the Project due to reasons beyond the reasonable control of the RPD, SECI may extend the SCSD after examining the issue on a case-to-case basis.

Further, in case of delay in commencement of power supply from the Project on account of reasons solely attributable to the RPD, resulting in any liquidated damages/penalty levied on the Buying Entity including Transmission charges under the GNA Regulations and/or applicable regulation as notified by CERC, such damages/penalty shall be passed on to the RPD.

11 Early Commencement of supply of power

11.1 The RPD shall be permitted for commencement of supply of power from full as well as part capacity of the Project even prior to the SCSD, subject to availability of transmission connectivity and General Network Access (GNA). Early commencement of power supply under the PPA will be allowed solely at the risk and cost of the RPD, and first right of refusal for offtake of such power will be vested with the Buying Entity. In cases of early part or full commencement of supply of power, the RPD shall give fifteen (15) days' advance notice to both Buying Entity and SECI regarding the advance commissioning of full or part capacity. Buying Entity and SECI shall give acceptance for availing such power within 15 days from the date of service of such notice. In case, both the Buying Entity and SECI do not give their acceptance to purchase power within the above stipulated period, the RPD can sell the power to the extent not accepted by the Buying Entity and SECI in the power exchanges or through bilateral arrangements until SCSD or the date of commencement of procurement of power from the Project as notified by SECI, whichever is earlier.

Provided that in case both the Buying Entity and SECI give their acceptance to purchase of power, the Buying Entity will be accorded priority in availing such power. In case the designated Buying Entity does not give its acceptance, then SECI can offtake such power directly or designate another potential buyer/entity to offtake such power at the Applicable Tariff as per PPA.

In case SECI/Buying Entity agrees to purchase power from such early part/full Contracted Capacity prior to SCSD, such power will be purchased by SECI at the PPA

tariff and sold to the Buying Entity at the PSA tariff and other terms and conditions of power procurement may be in reference of the PPA & PSA on back-to-back basis.

11.2 In case of multiple Project components, and if one or more such component (wind, solar PV or any other RE source) is/are ready for injection of power into the grid, but the remaining component(s) is/are unable to commence supply of power, the RPD will be allowed to commence power supply from such component which is ready, outside the ambit of PPA, with first right of refusal for such power being vested with the Buying Entity. Subsequent to refusal of such power by the Buying Entity, the right of refusal shall vest with SECI. In case Buying Entity/SECI decides to buy such discrete component's power outside the PPA, such power shall be purchased @ 50% of the PPA Tariff.

Following should be noted under this scenario:

In case the Buying Entity procures such power through SECI, trading margin of 7 paise/unit will be applicable on such power procurement and other terms and conditions of power procurement may be in reference of the PPA & PSA on back-to-back basis. The above scenario does not qualify under the provisions of Part/Early Commencement of power supply under the RfS, PPA and PSA. This is a special scenario wherein in case one or more project component(s) is/are ready, the power supply from such component is not wasted. The above scenario will be applicable until the RPD is ready to commence power supply as per the provisions of Clauses 9 and 11 of the RfS.

Further, if the RPD installs any ESS component(s) at its own risk and cost without the corresponding generating component (wind, solar PV or any other RE source), such ESS component shall be recognized by SECI only after the corresponding generating component has been installed.

SECTION 3. STANDARD CONDITIONS OF CONTRACT

12 *Obtaining RfS Documents*

Interested Bidders shall have to download the official copy of RfS & other documents after login into the ISN-ETS portal by using the Login ID & Password provided by ISN-ETS during registration (Refer Annexure - D). The Bidder shall be eligible to submit/ upload the bid document only after logging into the ISN-ETS portal and downloading the official copy of RfS.

13 *Cost of RfS Document & Bid Processing Fees*

Prospective Bidders are required to submit their Project proposals in response to this RfS document along with non-refundable Cost of RfS Documents and Bid Processing Fee as mentioned in the Bid Information Sheet. A Bidder will be eligible to participate in the bidding process only on submission of entire financial amounts as per the Bid Information Sheet. Payments against Cost of RfS document and Bid Processing Fee shall be done only through NEFT/RTGS (electronic transfer), and the Bidder shall submit the transaction receipt, as part of the online bid submission.

The bank details of SECI are available at SECI's website, www.seci.co.in, under the "Payment Modes" of "Business Partners" tab. Upon making the necessary payments, the prospective Bidders shall immediately write to SECI (mailing to *finance@seci.co.in*), providing the payment details along with name and registered address of the Bidder (with GSTIN of the paying entity), to enable seamless issuance of payment invoices for taxation purpose. SECI will not be liable for any delay in issuing necessary invoices in this regard.

Bids submitted without cost of the RfS document and/or Bid Processing Fee and/or Bank Guarantee/ POI/ Surety Bond against EMD (including partial submission of any one of the above amounts/ instruments), shall be summarily rejected.

MSEs (Micro and Small Enterprises) having valid UDYAM registration as on the last date of bid submission only are exempted from submission of Cost of the RfS document, Bid Processing Fee & Earnest Money Deposit (EMD). For a Consortium to be eligible for exemption from submission of Cost of RfS document, Bid Processing Fee & Earnest Money Deposit, all the members of the Consortium shall be registered as MSE.

Note: In all cases, a Bidder (including all the members in case of a Consortium) shall be allowed to avail the above exemptions provided to MSEs only in case the Bidder (including all the members in case of a Consortium) meets the technical and/or financial eligibility criteria as per Clause 34 and 35, respectively, on its own technical and/ or financial credentials or the technical and/ or financial credentials of the Affiliates who are an MSE. In case the Bidder (including any member in case of a Consortium) proposes to meet the technical and/or financial eligibility criteria as per Clause 35 based on the credentials of its Affiliates and any of the Affiliates is not an MSE, the Bidder/Bidding Consortium will not be eligible for exemption from submission of Cost of RfS document, Bid Processing Fee & EMD. As a result, in case a Bidder/ Bidding Consortium does not submit requisite Cost of RfS, Bid Processing Fees, and EMD by

availing exemption under this Clause, and proposes to meet the technical and/ or financial eligibility criteria based on the credentials of its Affiliates with any of the Affiliates not being an MSE, the bid submitted by such Bidder/ Bidding Consortium shall be considered as non-responsive under Clause 25.(a) and Clause 25.(h) of the RfS, and the bid will be summarily rejected.

14 Project Scope & Technology Selection

Under this RfS, the RPD shall set up the Project including the transmission network up to the Interconnection/Delivery Point, at its own cost and in accordance with the provisions of this RfS document. All approvals, permits and clearances required for setting up of the Project(s) and/or transmission network up to the Interconnection/ Delivery Point (along with connectivity), including those required from State Government and local bodies, shall be in the scope of the RPD. The Projects to be selected under this scheme provide for deployment of RE and ESS capacities. However, the selection of Projects would be technology agnostic.

15 Clearances Required from the State Government and Other Local Bodies

The RE Power Developers are required to obtain all necessary clearances and permits as required for setting up the Projects, including but not limited to the following:

a. No Objection (NOC)/Environmental clearance (if applicable) for the Project.
b. Forest Clearance (if applicable) for the land for the Project.
c. Approval for water from the concerned authority (if applicable) required for the Project.
d. RPDs setting up Projects in the vicinity of Air Force bases/aerodromes, are advised to apply for necessary MoD clearances within 90 days of Effective Date of PPAs or 30 days from the date of possession of the land identified for the Project, whichever is later, and forward the copies of application to SECI within 07 days of filing the applications.
e. In case of Projects being set up in the States of Gujarat & Rajasthan, the RPD shall abide by applicable Supreme Court Orders and MNRE's Guidelines on "Retrofitting of transmission lines and wind turbines to avoid bird collision in Great Indian Bustard (GIB) habitats of Rajasthan & Gujarat", vide OM No. 238/2/2019-Wind dated 22nd Feb 2019, and subsequent amendments and clarifications thereof.
f. Any other clearances as may be legally required, in order to establish and operate the Project.

The above clearances, as applicable for the Project, will be required to be submitted to SECI prior to commencement of power supply from the Project, if sought by SECI. In case of any of the clearances as indicated above being not applicable for the said Project, the RPD shall submit an undertaking in this regard, and it shall be deemed that the RPD has obtained all the necessary clearances for establishing and operating the Project. Any consequences contrary to the above shall be the responsibility of the RPD. The RPD shall also comply with all the laws, regulations, orders and procedures issued by the appropriate authority, applicable for setting up and implementing the Project.

The RPD shall be required to follow the applicable rules regarding project registration with the State Nodal Agency in line with the provisions of the applicable policies/regulations of the State where the Project is being located. It shall be the responsibility of the RPD to remain updated about the applicable charges payable to the SNA under the respective State Policy.

Note: Except for Sl. d. above, the RPD should apply for all the necessary approvals, permits and clearances not more than 90 days from the Effective Date of the PPA, which shall be complete in all respects, incorporating the clarifications/changes as required by the concerned authorities. The above timeline shall be adhered to, in order to examine cases where the RPD faces delay in grant of the necessary approvals and permits, for a period substantially greater than the standard period of grant of approval by the respective organizations.

16 Earnest Money Deposit (EMD)

16.1 Based on the cumulative Installed Capacity committed by the Bidder as part of its response to RfS, Earnest Money Deposit (EMD) shall be submitted as per the following formula:

EMD amount = **Rs. [9,54,000 * S + 13,32,000 * W + 2,35,450 * E],**

where,

S= Rated cumulative Installed Capacity of Solar component (in MW);

W= Rated cumulative Installed Capacity of Wind component and other RE generating sources (in MW);

E= Rated cumulative Installed Capacity of the ESS component (in MWh);

The EMD shall be submitted by the Bidder along with the bid in the form of Bank Guarantee according to Format 7.3A and valid for 12 months from the last date of bid submission and shall be submitted by the Bidder along with their bid, failing which the bid shall be summarily rejected. The claim period of the EMD shall be at least 30 days beyond the expiry of the validity period. The Bank Guarantees towards EMD have to be issued in the name of the Bidding Company/ Lead Member of Bidding Consortium. In the event of encashment of EMD, the encashed amount shall include all applicable taxes. Electronic Bank Guarantee (e-BG) is also acceptable against EMD under this RfS.

The Bidder shall furnish the Bank Guarantee towards EMD from an Indian branch of a Scheduled Commercial Bank as listed on the website of Reserve Bank of India (RBI), as applicable on the date of issuance of bank guarantee.

The EMD shall be valid as per the timelines stipulated above. However, shortfall in the EMD validity, if any, up to a period of seven (7) days shall be acceptable. Further, an additional shortfall only in the following cases shall be acceptable: If the Bidder has submitted the EMD with validity as per original bid submission date or as per any revised submission date and if the deadline for submission of bids has been extended further, the EMD shall be acceptable, provided, the EMD is valid for more than two months from the actual date of bid submission and the Bidder submits the EMD extension for the requisite period within seven days from the date of actual bid submission, if required.

16.2 SECI has agreed to accept the EMD in the form of an unconditional and irrevocable Bank Guarantee instead of the cash deposit with the clear position intimated to the bidder that the EMD Bank Guarantee shall be encashable for being appropriated by SECI in terms of the guarantee as in the case of appropriation of the cash deposit lying with SECI.

16.3 **Forfeiture of EMD:**

The BG towards EMD shall be encashed by SECI in following cases:

i. If the Bidder withdraws or varies the bid after due date and time of bid submission and during the validity of bid;

ii. In case, SECI offers to execute the PPA with the Selected Bidder and if the Selected Bidder does not submit the requisite documents as per Clause 20 of the RfS or does not execute the PPA within the stipulated time period;

iii. If after issuance of LoA, it is found that the documents furnished by the Bidders as part of response to RfS are misleading or misrepresented in any way;

iv. If the Bidder fails to furnish required Performance Bank Guarantee/POI/Surety Bond in accordance with Clause 17 of the RfS.

16.4 **Payment on Order Instrument (POI):** As an alternative to submission of EMD as above, the Bidder also has an option to submit a letter of undertaking issued by either of the following two organizations, viz. (i) Power Finance Corporation Limited or (ii) REC Limited. This Letter of Undertaking shall be issued as "Payment on Order Instrument" (POI), wherein the POI issuing organization undertakes to pay in all scenarios under which the EMD would be liable to be encashed by SECI within the provisions of RfS/PPA. This instrument would have to be furnished as per Format 7.3B of the RfS, within the timelines as per Clause 16.1 above, for the amount and validity period as per those Clause 16.1 above.

16.5 **Insurance Surety Bond (Surety Bond):** As an alternative to submission of EMD as above, the bidder also has an option to submit Insurance Surety Bond from an Insurer as per the guidelines issued by the Insurance Regulatory and Development Authority of India (IRDAI). The Surety Bond issuing organization undertakes to pay in all scenarios under which the EMD would be liable to be encashed by SECI within the provisions of RfS/PPA. This instrument would be furnished as per Format 7.3C of the RfS, within the timelines as per Clause 16.1 above, for the amount and validity period as per Clause 16.1 above.

16.6 The term "Bank Guarantee (BG) towards/ against EMD" occurring in the RfS shall be read as "Bank Guarantee (BG)/ Payment on Order Instrument (POI)/Surety Bond towards/ against EMD".

16.7 All expenditure towards execution of Bank Guarantees/ POI/ Surety Bond such as stamp duty etc. shall be borne by the Bidders. Any Bank Guarantee or amendment to be submitted as part of the bidding process, shall be effective only when the BG issuance message is transmitted by the issuing bank through SFMS to IDFC First Bank, with the following bank details:

Account Holder's Name: Solar Energy Corporation of India Ltd,
Account No.: 10070882654,
IFSC: IDFB0020101,
Bank Name: IDFC First Bank Limited,
Branch: Express Building, 2nd Floor, 9-10, Bahadurshah Zafar Marg, New Delhi-110002,

and a confirmation in this regard is received by SECI.

Message Type: IFN760COV is to be used by the issuing bank.

17 Performance Bank Guarantee (PBG)/ Payment on Order Instrument (POI)

17.1 Bidders selected by SECI based on this RfS shall submit Performance Guarantee for a value determined as per the following formula:

PBG amount = **Rs. [23,85,000* S + 33,30,000* W + 5,88,625 * E],**
where,

S= Rated cumulative Installed Capacity of Solar component (in MW);
W= Rated cumulative Installed Capacity of Wind component and other RE generating sources (in MW);
E= Rated cumulative Installed Capacity of the ESS component (in MWh);

PBG shall be submitted by the Bidders prior to signing of PPA, in line with provisions as per Clause 20.4 of the RfS. It may be noted that Successful Bidders shall submit the Performance Guarantee according to the Format 7.3D with a validity period up to (& including) the date as on 9 months after the SCSD of the Project. The claim period of the PBG shall be at least 30 days beyond the expiry of the validity period.

For the purpose of payment of PBG by the Successful Bidder/RPD, the Installed Capacity shall include the rated capacity of the ESS component (in MW), irrespective of the fact whether separate connectivity has been obtained by the Successful Bidder/RPD for such ESS component or not.

On receipt and after successful verification of the total PBG/POI in the acceptable form, the BG/POI submitted towards EMD shall be returned by SECI to the Successful Bidder. It may be noted that PPA will be signed only upon successful verification of the PBG submitted by the RPD. Electronic Bank Guarantee (e-BG) is also acceptable against PBG under this RfS. Prior to signing of PPA, in case of any shortfall in validity of the PBG, the same will be acceptable, subject to the condition that the PBG validity is enhanced by the RPD prior to expiry of validity of the PBG.

17.2 Since the PBG is linked to the Installed Capacity of the Project, and the same is allowed to be modified subsequent to issuance of LoA, in case of enhancement/reduction in the Installed Capacity until the date as per Clause 4.2 above, for which modified connectivity is granted for the Project, the RPD will be required to submit the revised PBG corresponding to the revised Installed Capacity prior to commencement of supply of power from the Project(s).

17.3 The PBG is required to be submitted in the name of the entity signing the PPA. In case of PPA being eventually signed with the SPV incorporated/utilized by

the successful bidder, the PBG may be submitted in the name of the Successful Bidder at an earlier date, if the Bidder chooses to do so, and the same shall be replaced by the PBG issued in the name of the SPV, prior to signing of PPA, subject to submission of Board Resolution from the Successful Bidder to transfer the project to its SPV and Board Resolution from the SPV accepting the said Project from the Successful Bidder.

17.4 PBG shall be submitted separately for each Project. The RPD shall furnish the PBG from an Indian branch of a Scheduled Commercial Bank as listed on the website of Reserve Bank of India (RBI), as applicable on the date of issuance of bank guarantee. In case of the Project being implemented through a SPV incorporated/ utilized by the successful bidder, the PBG shall be furnished in the name of the SPV, except for the case as indicated in Clause 35.3 of the RfS.

17.5 The format of the Bank Guarantees prescribed in the Format 7.3 A (EMD)/ 7.3 D (PBG) shall be strictly adhered to and any deviation from the above Formats shall result in rejection of the EMD/PBG and consequently, the bid. In case of deviations in the formats of the Bank Guarantees, the corresponding PPA shall not be signed.

17.6 SECI has agreed to accept the PBG in the form of an unconditional and irrevocable Bank Guarantee instead of the cash deposit with the clear position intimated to the Bidder that the PBG shall be encashable for being appropriated by SECI in terms of the guarantee as in the case of appropriation of the cash deposit lying with SECI.

17.7 The Successful Bidder is required to sign PPA(s) with SECI within the timeline as stipulated in Clause 20 of the RfS. In case, SECI offers to execute the PPA(s) with the Selected Bidder and if the Selected Bidder does not submit the requisite documents as per Clause 20 of the RfS, or does not meet eligibility criteria upon submission of documents, or does not execute the PPA(s) within the stipulated time period, then the Bank Guarantee equivalent to the amount of the EMD shall be encashed by SECI from the Bank Guarantee available with SECI (i.e. EMD or PBG) as penalty, the selected Project shall stand cancelled and the selected Bidder expressly waives off its rights and objections, if any, in that respect. It is further clarified that the penalties are genuine pre-estimate and Bidder/RPD agrees that in case of invocation of BG, SECI is under no obligation to produce any estimate of loss in this regard.

17.8 The Bank Guarantees have to be executed on non-judicial stamp paper of appropriate value as per Stamp Act relevant to the place of execution.

17.9 All expenditure towards execution of Bank Guarantees/ POI/ Surety Bond such as stamp duty etc. shall be borne by the Bidders/RPDs. Any Bank Guarantee or amendment to be submitted as part of the bidding process / contract execution, shall be effective only when the BG issuance message is transmitted by the issuing bank through SFMS to IDFC First Bank with the following account details:

Account Holder's Name: Solar Energy Corporation of India Ltd,
Account No.: 10070882654,
IFSC: IDFB0020101,
Bank Name: IDFC First Bank Limited,

Branch: Express Building, 2nd Floor, 9-10, Bahadurshah Zafar Marg, New Delhi-110002,

and a confirmation in this regard is received by SECI.

Message Type: IFN760COV is to be used by the issuing bank.

17.10 Not used.

17.11 After the bidding process is over, SECI may release the Bank Guarantees/POI towards EMD of the unsuccessful Bidders within 15 days after the completion of e-Reverse Auction (e-RA). The Bank Guarantees/ POI/ Surety Bond towards EMD of the Successful Bidders shall be released subsequent to submission of PBGs by them to SECI. The PBGs of RPDs shall be returned to them, within 45 days of successful commencement of supply of power from the full Project Capacity/capacity finally accepted by SECI, as per the Terms of PPA, after taking into account any penalties due to delays in commencement of supply of power beyond the SCSD as per Clause 9 and Clause 10 of the RfS. In case of part-commencement of supply of power, PBG corresponding to such part capacity shall be released within 45 days of the actual commencement of supply of power from such part-capacity.

17.12 **Payment on Order Instrument (POI):** As an alternative to submission of PBG as above, the RPD also has an option to submit a letter of undertaking issued by either of the following two organizations, viz. (i) Power Finance Corporation Limited or (ii) REC Limited. This Letter of Undertaking shall be issued as "Payment on Order Instrument" (POI), wherein the POI issuing organization undertakes to pay in all scenarios under which the PBG would be liable to be encashed by SECI within the provisions of RfS/PPA. This instrument would have to be furnished as per Format 7.3 E of the RfS, within the timelines as per Clause 17.1 above, for the amount and validity period as per those Clause 17.1 above. In case the RPD chooses to submit POI, delay in submission of the POI beyond the timeline stipulated at Clause 17.1 above, will be applicable in this case too.

17.13 **Insurance Surety Bond (Surety Bond):** As an alternative to submission of PBG as above, the RPD also has an option to submit Insurance Surety Bond from an Insurer as per the guidelines issued by the Insurance Regulatory and Development Authority of India (IRDAI). The Surety Bond issuing organization undertakes to pay in all scenarios under which the PBG would be liable to be encashed by SECI within the provisions of RfS/PPA. This instrument would be furnished as per Format 7.3F of the RfS, within the timelines as per Clause 17.1 above, for the amount and validity period as per Clause 17.1 above. In case the RPD chooses to submit Surety Bond, delay in submission of the Surety Bond beyond the timeline stipulated at Clause 17.1 above, will be applicable in this case too.

17.14 The term "Performance Bank Guarantee (PBG)" occurring in the RfS shall be read as "Performance Bank Guarantee (PBG)/Payment on Order Instrument (POI)/Insurance Surety Bond".

18 Success Charges & Payment Security Mechanism (PSM) Charges

18.1 **Success Charges:** The Selected Bidders shall have to pay Success Charges @ INR 1,00,000/MW (Indian Rupees One Lakhs only/MW)+ applicable taxes, corresponding to the Installed Capacity committed as per the PPA to be signed, to SECI towards administrative overheads, project monitoring activities, coordination with State Authorities and others including the DISCOM/STU/CTU, etc. 1st installment of the Success Charges, i.e. 50% of the above amount shall be paid to SECI within 30 days after issuance of LoA, and remaining 50% amount (i.e. the 2nd installment of the Success Charges) shall be paid prior to the deadline as per Clause 20.4 of the RfS. For the second installment, the due date shall be the date as intimated by SECI, which shall be at most 7 days prior to signing of PPA. The payment has to be made by the RPD in the form of DD/ Pay Order/ NEFT/ RTGS mode. In case of modification in Installed Capacity prior to signing of PPA, the 2nd installment of Success Charges will be calculated based on the revised value of the total Success Charges calculated @Rs. 1,00,000/MW + applicable taxes of the revised Installed Capacity. In case of any of the above deadline being a holiday, the next working day in SECI will be the deadline for payment of Success Charges.

For the purpose of payment of Success Charges by the Successful Bidder/RPD, the Installed Capacity shall include the rated capacity of the ESS component (in MWh), irrespective of the fact whether separate connectivity has been obtained by the Successful Bidder/RPD for such ESS component or not.

18.2 Any delay in depositing the amount pertaining to the 1st installment of Success Charges within the stipulated time as above, shall attract delay charges @Rs. 1000/MW/day + applicable GST until the date of payment of the above amount. In case of delay in making full payment of above delay charges (along with 1st installment of success charges), the amount paid shall be first reduced from the total amount due towards the delay charges. Such delay charges shall be non-refundable. Further, any delay in depositing the amount pertaining to the 2nd installment of Success Charges to SECI as mentioned above within the stipulated timeline as per Clause 20.4 of the RfS shall attract late payment charges stipulated in Clause 20.4 of the RfS. PPA shall only be signed after deposit of full amount of the Success Charges to SECI.

Any revision in Installed capacity subsequent to signing of PPA shall also be reflected in commensurate revision in Success Charges payable to SECI. The enhancement in Success charges, if any, shall be paid prior to commencement of power supply from the Project(s). Refund of Success Charges in case of reduction in the Installed Capacity shall not be accompanied with any interest refund, and GST refund will be as per applicable rules.

18.3 **Payment Security Mechanism (PSM) Charges:** As part of the Payment Security Mechanism as brought out in the PPA, to be eligible for coverage from the PSM, the RPD will undertake to pay PSM Charges @Rs. 0.02/kWh to SECI, by offering a commensurate discount in the monthly tariff payment being made by SECI.

It is hereby clarified that in case a Bidder opts for coverage under the PSM in line with this Clause, by undertaking to give a discount in the Covering Letter (Format 7.1) submitted as part of its response to RfS, the same will be applicable for the entire term of the PPA, i.e. this discount shall be provided by the RPD in each monthly bill raised under the PPA for the entire term of the PPA. In the alternate scenario, in case the Bidder does not opt for coverage under the PSM in line with this Clause, it shall not be eligible to be covered under the PSM for the entire term of the PPA.

19 Integrity Pact (IP)

In respect of this RfS, the Independent External Monitor (IEM) would be monitoring the execution of contract to oversee implementation and effectiveness of the Integrity Pact (IP) Program based on the IP executed with the Selected Bidder, as per Format 7.9. The names of Independent External Monitor(s) (IEMs) who have been appointed by Employer, i.e. SECI, in terms of Integrity Pact (IP) which will form a part of the Employer Contracts are:

a) Shri Rakesh Mohan, IA&AS (Retd.), E Mail Id: rmohan1987@gmail.com

b) Shri Najib Shah, IRS (Retd.), e-mail ID: najibshah@hotmail.com

The above-mentioned IEMs are authorized to examine/consider all references made to it under this tender/Contract. The Contractor, i.e. the RPD, in case of any dispute(s)/complaint(s) pertaining to this project may raise the issue either with the designated Nodal Officer in SECI or directly with the IEM at SECI office at following Address:

Solar Energy Corporation of India Limited,
6th Floor, Plate-B, NBCC Office Block Tower-2, East Kidwai Nagar, New Delhi-110023, India
Kind Attn.: Executive Director (C& P)
Telephone No.: - 0091-(0)11-24666200
E-mail: - aknaik@seci.co.in
The Independent External Monitor (IEM) has the right to access without restriction to all Project documentations of the Employer including that provided by the contractor. The contractor will also grant the Monitor, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his Project Documentations. The same is applicable to Subcontractors. The Monitor is under contractual obligation to treat the information and documents of the Bidder/Contractor/Sub-Contractors / JV Partners / Consortium member with confidentiality.

The Nodal officer for necessary coordination in this regard shall be as under:

(i) HOD of Contracts & Procurement (C&P): For issues pertaining to C&P department.

(ii) Head of concerned Department: For issues pertaining to other departments.

20 Power Purchase Agreement (PPA)

20.1 SECI shall enter into Power Purchase Agreements (PPAs) with Bidders selected based on this RfS. A copy of standard PPA to be executed between SECI and the selected RPD

is available on ISN-ETS Portal and on SECI's website. The PPA signing date will be intimated by SECI subsequent to issuance of Letter of Award (LoA). PPA(s) will be executed between SECI and Successful Bidder or its SPV, separately for each Project.

Note: The PPA will be executed between SECI and the RPD as per the breakup of the cumulative Contracted Capacity as awarded to the Bidder. The Bidder shall provide the Project breakup for the cumulative Contracted Capacity quoted in the Covering Letter (Format 7.1), and this breakup may be changed by the RPD subsequent to issuance of LoA up to the date as on 30 days from issuance of LoA. For example, if the Bidder has been issued a single LoA for a cumulative capacity of 200 MW, the Successful Bidder may choose to split the 200 MW into more than one Project (2 x 100 MW, for example), within the above deadline.

The Installed Capacity break-up, as submitted as part of the Bidder's response to RfS can be changed by the RPD, in line with Clause 4.2 of the RfS. Delay in meeting the PPA timelines on account of changes in the Installed Capacity, shall be at the risk and cost of the Successful Bidder. The PPA(s) will be signed after signing of PSA(s) for the respective Contracted Capacity(ies).

Delay in meeting the PPA timelines on account of changes in the Project parameters from the data as submitted in the Covering Letter (Format 7.1), shall be at the risk and cost of the Successful Bidder.

The RPD shall submit a detailed completion Schedule for the Project prior to the signing of PPA. Broad details to be captured in the Schedule are the land procurement, grid connectivity; order, supply and erection status of various Project components; financial arrangement/ tie up etc. The RPD shall also submit the progress report to SECI in a form acceptable to SECI and shall contain percentage completion achieved compared with the planned percentage completion for each activity, and any such other information as required by SECI.

20.2 The PPAs shall be valid for a period of 25 years from the SCSD. The RPDs are free to operate their projects after expiry of the 25 years of PPA period if other conditions such as land lease etc., permit. However, any extension of the PPA period beyond 25 years shall be through mutual agreements between the RPD, SECI and the Buying Entities, as the case may be, as approved by the Appropriate Commission, provided that the arrangements with the land and infrastructure owning agencies, the relevant transmission utilities and system operators permit operation of the Project beyond the initial period of 25 years.

20.3 The Performance Bank Guarantee as per Clause 17 above and Success Charges as per Clause 18 above, shall be submitted by the RPD prior to signing of PPA. Before signing of PPA between SECI and the RPDs, SECI will verify the shareholding of the Project Company along with a copy of complete documentary evidence. If at this stage, it is found that the documents furnished by the RPDs are false / misleading or misrepresented in any way, then the provisions contained in this RfS will be applicable.

20.4 (i) SECI will invite the Successful Bidders for signing of PPA, through written intimation. The Bidder shall be required to submit the necessary documents, including

the 2nd instalment of Success Charges and PBG as required prior to PPA signing, within 30 days of the above intimation issued by SECI. Checklist for submission of necessary documents/charges/PBG is placed at Annexure-F of the RfS.

(ii) Notwithstanding the actual PPA signing date, the Effective Date of the PPA shall be the date as on 15 days after the date of above intimation by SECI. In case of such day falling on a holiday, the Effective Date shall be the next working day.

(iii) In case of delay in submission of the requisite documents/ 2nd instalment of Success Charges/ PBG and/or signing of PPA by the Successful Bidder, delay charges @Rs. 1000/MW/day + applicable GST corresponding to the unsigned PPA capacity shall be levied on the Bidder on per-day basis, until the date of submission of such documents/ charges by the Successful Bidder. Such charges shall be non-refundable. The amount of Rs. 1000/MW/day + GST shall be paid by the Bidder in advance prior to the commencement of the said delay period and shall be calculated based on the period of delay as estimated by the Bidder. In case of the Bidder signing the PPA before the last date of such proposed delay period (for which delay charges have been paid), the remaining amount out of the deposited amount by the Bidder shall be returned by SECI. Interest on account of delay in deposition of the above-mentioned charges or on any subsequent extension sought, shall be levied @ one-year SBI MCLR rate /annum on pro-rata basis.

(iv) The above penalty period shall be applicable for 30 days beyond the deadline for submission of requisite documents/PBG/Success Charges. Subsequent to lapse of this 30-day penalty period, SECI may grant further extension in PPA signing deadline, based on its discretion and subject to payment of applicable delay charges by the bidder and submission of documentary evidences justifying the delay is beyond control of successful bidder.

(v) SECI shall not be liable for delay in verification of documents and subsequent delay in signing of PPA.

20.5 Back-to-back Power Sale Agreement(s) (PSA(s)) in respect of all rights and obligation under the PPA between the RPD and SECI, will be executed by SECI with the Buying Entities for sale of power to the Buying Entities, with the Buying Entities assuming all the obligations of SECI under the PPA. SECI's obligation to RPD under the PPA shall also be on the back-to-back basis as provided in the PPA and the corresponding PSA.

Power procured from the Project awarded under this RfS shall be allocated on back-to-back basis to the Buying Entities at the discretion of SECI, in consultation with Buying Entities. Various provisions provided in the SECI-RPD PPA shall mutatis mutandi apply to PSA between SECI and Buying Entity, however, PSA signed with Buying Entities could be in elaborated form or in short form as per consultation done with Buying Entities.

20.6 The RPD will be free to repower the Projects from time to time during the PPA duration at its own risk and cost, pursuant to Clause 8 above. However, SECI/Buying Entities will be obliged to buy power only upto the Contracted Capacity as per the PPA.

20.7 In addition to the above, subsequent to signing of PPA, the RPD shall be required to submit the monthly Project status on 5th day of every calendar month as per Annexure-E of the RfS or any format as provided subsequent to signing of PPA.

20.8 In case the Project is ready for part/full commencement of supply of power but the PPA has not been signed, No-objection Certificate (NOC) may be issued to the RPD (if sought by the RPD) for third-party sale of power from the Project until signing of PPA. The NOC so granted shall be withdrawn by SECI once the readiness of off-take of the power as per PPA is intimated by SECI with a notice period of 7 calendar days.

21 Financial Closure or Project Financing Arrangements

21.1 The Projects shall achieve Financial Closure by the date as on 6 months prior to the SCSD/ extended SCSD. (For e.g. if SCSD of the Project is 07.06.2028, then scheduled Financial Closure date shall be 07.12.2027).

21.2 At the stage of Financial Closure, the RPDs shall report 100% tie-up of Financing Arrangements for the Projects. In this regard, the RPD shall submit a certificate/ necessary documents from all financing agencies regarding the tie-up of 100% of the funds indicated for the Project, including arrangements of funds in the form of equity/investment. The RPD shall also submit details of all planned/ proposed solar panels, inverters, wind turbine generators, other RE generating source, ESS (manufacturer, model number, datasheet), along with necessary purchase order/agreements for the Project. The RPD shall also indicate the rated capacity of storage facility.

21.3 In case of default in achieving above condition as may be applicable within the stipulated time, SECI shall be entitled to encash PBG/POI/Surety Bond and may remove the Project from the list of the selected Projects. An extension may however be considered, on the sole request of RPD, on advance payment of extension charges of INR 100/- per day per MW (of Contracted Capacity) + applicable GST. This extension will not have an impact on the obligation of RPD to commence supply of power by the Scheduled Commencement of Supply Date of the Project. Subsequent to the completion of deadline for achieving financial closure, SECI shall issue notices to the RPDs who are not meeting the requirements of Financial Closure as per the RfS deadlines. The notice shall provide a period of 7 business days to the respective RPDs to either furnish the necessary documents or make the above-mentioned payment of Rs. 100/MW/day + GST. In case of non-submission of either-the requisite documents or the necessary amount upon expiry of the above-mentioned notice period of 7 days-SECI shall encash the PBG/POI/ Surety Bond of the corresponding RPDs and may terminate the PPA for the corresponding Project. The amount of Rs. 100/MW/day + GST shall be paid by the RPDs in advance prior to the commencement of the said delay period and shall be calculated based on the period of delay as estimated by the RPD. In case of the RPD meeting the requirements of Financial Closure before the last date of such proposed delay period (for which extension charges have been paid), the remaining amount out of the deposited amount by the RPD shall be returned by SECI. Interest on account of delay in deposition of the above-mentioned charges or on any subsequent extension sought, shall be levied @ one-year SBI MCLR rate /annum on pro-rata basis. Any extension charges paid so, shall be

returned to the RPD without any interest and GST amount on achievement of successful commencement of power supply within the Scheduled Commencement of Supply Date, on pro-rata basis, based on the Contracted Capacity that has commenced supply of power as on Scheduled Commencement of Supply Date.

21.4 The RPD will have to submit the required documents to SECI at least 14 days prior to the scheduled Financial Closure date. In case of delay in submission of documents mentioned above, SECI shall not be liable for delay in verification of documents and subsequent delay in Financial Closure.

22 Shareholding by the Project Promoter

22.1 The Bidder shall provide complete information in its bid in reference to this RfS about its promoters and upon issuance of LoA, the RPD shall provide information about its promoters and their shareholding in the Company before signing of PPA with SECI.

22.2 No change in the controlling shareholding of the Bidding Company or Bidding Consortium shall be permitted from the date of submission of response to RfS till the execution of the PPA.

Following shall not be considered as change in shareholding:

i. Infusion of Fresh equity capital amongst the existing shareholders/promoters at the time of Bid Submission to meet equity requirements.
ii. Conversion of CCDs, CCPs etc. already issued to existing shareholders.
iii. Death, marriage, Divorce, minor attaining major (any legal heir who was minor at the time of signing of PPA), insolvent, insane of existing shareholders.
iv. Transfer of shares within the members of Immediate Promoter Group only.
v. Transfer of shares to IEPF.
vi. Issue of Bonus Shares.
vii. Transfer of shares within the group companies due to merger/amalgamation subject to court approval.

22.3 In case of the Successful Bidder itself executing the PPA, it shall ensure that its promotors shall not cede control (Control shall mean the ownership, directly or indirectly, of more than 50% of the voting shares of such Company or right to appoint majority Directors) of the Bidding Company/Consortium until 01 (one) year after the SCSD, except with the prior approval of SECI.

22.4 In case of companies having multiple promoters (but none of the shareholders having more than 50% of voting rights and paid-up share capital), it shall be considered as a company under joint control. In such cases, the shareholding pattern in the company as submitted at the time of bidding, shall be maintained for a period of 01 (one) year after SCSD.

22.5 In case of Project being executed through SPVs, the Successful Bidder, if being a single company, shall ensure that its shareholding in the SPV/ Project Company executing the PPA shall not fall below 51% at any time prior to 01 (one) year after SCSD, except with the prior approval of SECI. In the event the Successful Bidder is a consortium, then the

combined shareholding of the consortium members in the SPV/ Project Company executing the PPA, shall not fall below 51% at any time prior to 01 (one) year after SCSD, except with the prior approval of SECI. Further, the successful bidder shall ensure that its promoters shall not cede control of the bidding company till 1 (one) year from the SCSD, except with the prior approval of SECI.

22.6 Any change in the shareholding after the expiry of 01 (one) year after SCSD can be undertaken under intimation to SECI.

22.7 In the event of Change in Shareholding/ Substitution of Promoters triggered by the Financial Institutions leading to signing of fresh PPA with a new entity, an amount of INR 10,00,000 (Indian Rupees Ten Lakh per Project) +applicable taxes per transaction as Facilitation Fee (non-refundable) shall be deposited by the developer to SECI.

23 Instructions to Bidders for Structuring of Bid Proposals in Response to RfS

The Bidder including its Parent, Affiliate or Ultimate Parent or any Group Company shall submit a single response to RfS. Detailed Instructions to be followed by the bidders for online submission of response to RfS are stated at Annexure – B. Submission of bid proposals by Bidders in response to RfS shall be in the manner described below:

i. Covering Letter as per **Format 7.1.**

ii. In case of a Bidding Consortium, a Power of Attorney in favour of the Lead Member issued by the other Members of the Consortium shall be provided in original as per format attached hereto as **Format 7.2.**

In the event any Member of the Bidding Consortium (other than Lead Member) is a foreign entity, it may submit Board Resolutions in place of Power of Attorney for the purpose of fulfilling the requirements under this clause. Provided that such Board Resolutions shall be supported by an unqualified opinion issued by the legal counsel of such foreign entity stating that the Board Resolutions are in compliance with the applicable laws of the respective jurisdictions of the issuing Company and the authorizations granted therein are true and valid.

iii. Bank Guarantee/Payment on Order Instrument/ Insurance Surety Bond against Earnest Money Deposit (EMD) as per **Format 7.3 A/ 7.3B/ 7.3 C.**

iv. Board Resolutions, as per prescribed formats enclosed as per **Format 7.4** duly certified by the Company Secretary or the Director of the relevant Bidder, as applicable to the Bidder and mentioned hereunder:

   i. Board Resolution from the Bidding Company or the Lead Member of the Consortium, as the case may be, in favour of the person signing the response to RfS and in the event of selection of the Projects and to sign the PPA with SECI. Board Resolution from each of the Consortium Members in favour of the person signing Consortium Agreement.

   ii. Board Resolution from the Bidding Company committing 100% (One Hundred Percent) of the equity requirement for the Project/ Board Resolutions from each of the Consortium Members together in aggregate committing to 100% (One Hundred Percent) of equity requirement for the Project (in case of Bidding Consortium); and

   iii. Board Resolutions from each of the Consortium Members and Lead member contributing such additional amount over and above the percentage limit (specified

for the Lead Member and other member in the Consortium Agreement) to the extent becoming necessary towards the total equity share in the Project Company, obligatory on the part of the Consortium pursuant to the terms and conditions in the Consortium Agreement.

v. In case of a Consortium, the Consortium Agreement between the Members in the Consortium as per **Format 7.5** along with Board resolution from each Member of the Consortium for participating in Consortium.

vi. Format for Financial Requirements as per **Format 7.6** along with the certificate from practicing Chartered Accountant/ Statutory Auditors showing details of computation of the financial credentials of the Bidder.

vii. Undertaking as per **Format 7.7.**

viii. A disclosure statement as per **Format 7.8/7.8A** regarding participation of any related companies in the bidding process.

ix. Duly signed and stamped Integrity Pact between SECI and the Bidding Company as per **Format 7.9**.

x. Attachments

i. Memorandum of Association, Article of Association of the Bidding Company needs to be attached along with the bid. The bidder should also highlight the relevant provision which highlights the objects relating to Power/ Energy/ Renewable Energy/ Solar/ Wind Power plant development.

- In case, there is no mention of the above provisions in the MoA/ AoA of the bidding company/ any member of the bidding consortium at the time of bid submission, the bid submitted shall be treated as non-responsive and shall be rejected.
- If the selected Bidder wishes to execute the project through a Special Purpose Vehicle (SPV), the MoA/ AoA of the SPV highlighting the relevant provision which highlights the objects relating to Power/ Energy/ Renewable Energy/ Solar/ Wind Power plant development has to be submitted prior to signing of PPA.

ii. Certificate of Incorporation of Bidding Company/ all member companies of Bidding Consortium.

iii. A certificate of shareholding of the bidding company, its Parent and Ultimate Parent (if any) duly certified by a practicing Chartered Accountant/ practicing Company Secretary as on a date within 30 days prior to the last date of bid submission. SECI reserves the right to seek additional information relating to shareholding in promoter companies, their parents/ ultimate parents and other group companies to satisfy themselves that RfS conditions have been complied with and the bidder will ensure submission of the same within the required timelines.

iv. Certified copies of annual audited accounts for the last financial year, i.e. FY 2024-25, or provisional accounts duly certified by a practicing Chartered Accountant (as applicable), along with certified copies of Balance Sheet, Profit & Loss Account, Schedules and Cash Flow Statement supported with bank statements as on the date at least 7 days prior to the due date of bid submission (if applicable) shall be required to be submitted.

v. Details of all types of securities/instruments which are pending conversion into equity whether optionally or mandatorily.

xi. Covering letter of the Financial bid as per **Format - 7.10.**

xii. Break-up of the Preliminary Estimate of Cost of Project as per **Format 7.11** (separately for each Project).

24 Important Notes and Instructions to Bidders

24.1 Wherever information has been sought in specified formats, the Bidders shall fill in the details as per the prescribed formats and shall refrain from any deviations and referring to any other document for providing any information required in the prescribed format.

24.2 The Bidders shall be shortlisted based on the declarations made by them in relevant schedules of RfS. The documents submitted online will be verified before signing of PPA in terms of Clause 20 of the RfS.

24.3 If the Bidder/Member in a Bidding Consortium conceals any material information or makes a wrong statement or misrepresents facts or makes a misleading statement in its response to RfS, in any manner whatsoever, SECI reserves the right to reject such response to RfS and/or cancel the Letter of Award, if issued, and the Bank Guarantee/POI/Surety Bond provided up to that stage shall be encashed. Bidder shall be solely responsible for disqualification based on their declaration in the submission of response to RfS.

24.4 If the event specified at Clause 24.3 is discovered after the Effective Date of PPA, consequences specified in PPA shall apply.

24.5 Response submitted by the Bidder shall become the property of the SECI and SECI shall have no obligation to return the same to the Bidder. However, the EMDs submitted by unsuccessful Bidders shall be returned as specified in Clause 17 of the RfS.

24.6 All documents of the response to RfS (including RfS and subsequent Amendments/ Clarifications/ Addenda, PPA and PSA) submitted online must be digitally signed by the person authorized by the Board as per Format 7.4.

24.7 The response to RfS shall be submitted as mentioned in Clause 23 of the RfS. No change or supplemental information to a response to RfS will be accepted after the scheduled date and time of submission of response to RfS. However, SECI reserves the right to seek additional information from the Bidders, if found necessary, during the course of evaluation of the response to RfS.

24.8 The Bidder shall make sure that the correct, valid and operative Pass-Phrase to decrypt the relevant Bid-part is submitted into the 'Time Locked Electronic Key Box (EKB)' after the deadline of Bid submission, and before the commencement of the Online Tender Opening Event (TOE) of Techno-commercial bid.

24.9 All the information should be submitted in English language only. In case of foreign bidders having documents in other than English language, then the documents shall be translated in English language by certified translator and submitted.

24.10 Bidders shall mention the name of the contact person and complete address and contact details of the Bidder in the covering letter.

24.11 Response to RfS that are incomplete, which do not substantially meet the requirements prescribed in this RfS, will be liable for rejection by SECI.

24.12 Response to RfS not submitted in the specified formats will be liable for rejection by SECI.

24.13 Bidders delaying in submission of additional information or clarifications sought will be liable for rejection.

24.14 Non-submission and/ or submission of incomplete data/ information required under the provisions of RfS shall not be construed as waiver on the part of SECI of the obligation of the Bidder to furnish the said data/ information unless the waiver is in writing.

24.15 The Central Electricity Regulatory Commission shall be the appropriate commission to exercise the regulatory and adjudicatory jurisdiction in regard to matters between RPD and SECI as well as SECI and Buying Entity(ies). Subject to the above, only New Delhi Courts shall have exclusive jurisdiction in all matters pertaining to this RfS.

24.16 All the financial transactions to be made with SECI including success charges, delay charges, and any additional charges (if required), shall attract applicable taxes on each transaction, irrespective of the same being mentioned in the RfS/PPA.

25 Non-Responsive Bid

The electronic response to RfS submitted by the bidder along with the documents submitted **online** to SECI shall be scrutinized to establish "Responsiveness of the Bid". Each Bidder's response to RfS shall be checked for compliance with the submission requirements set forth in this RfS.

Any of the following conditions shall cause the Bid to be "Non-responsive":

(a) Non-submission of the requisite Cost of RfS document and/ or Bid Processing Fee as mentioned in the Bid Information Sheet.
(b) Response to RfS not received by the due date and time of bid submission.
(c) Non-submission of correct, valid and operative Pass-Phrases for both Technical and Financial Bid (Price Bid) Parts after the deadline of Bid Submission, and before the commencement of the Online Tender Opening Event (TOE) of Technical Bid.
(d) Any indication of tariff in any part of response to the RfS, other than in the financial bid.
(e) Non-submission of payment details against Cost of RfS Document and/or Bid Processing Fee.
(f) Data filled in the Electronic Form of Financial Bid (Second Envelope), not in line with the instructions mentioned in the same electronic form.
(g) Except for the scenario as per Clause 5.1 above, in case it is found that the Bidding Company including Ultimate Parent Company/ Parent Company/ Affiliate/ Group Companies have submitted more than one response to this RfS, then all these bids submitted shall be treated as non-responsive and rejected.

(h) Non-submission or partial submission of EMD in acceptable form along with response to RfS.

In any of the above cases, the bid shall not be considered for bid opening and evaluation process.

26 Method of Submission of Response to RfS by the Bidder

26.1 Documents to be Submitted Offline

The bidder has to submit original of following documents **offline.**

i. Bank Guarantee/Payment on Order Instrument/Surety Bond towards EMD as mentioned in the Bid Information Sheet (as per Format 7.3A/ 7.3B/ 7.3C). One EMD may be submitted for the cumulative capacity quoted by the Bidder, or individual EMDs may be submitted for each Project.

ii. Pass-phrases for Techno-commercial and Financial bids submitted on the ETS portal.

No documents will be accepted in person, on or before the date of bid submission.

Bank Guarantee /POI/Surety Bond against EMD needs to be submitted in both online and offline modes. The Bidders will be required to submit the bank guarantee/POI/Surety Bond, either in person or through post, at the office of SECI until the date as on 2 working days after the closing date of bid submission. The 2-day duration will be counted from the date of bid submission.
For e.g., if the bid submission deadline is 18:00 hrs. on 22.11.2026, the above deadline will expire at 18:00 hrs. on 24.11.2026. In case the above deadline being a holiday, the next working day in SECI will be the deadline for submission of Bank Guarantees/POI/Surety Bond.

Note: In all cases, the Bank Guarantee/POI/Surety Bond against EMD (if applicable), shall be issued on or before the bid submission deadline. These instruments issued after the expiry of the deadline will be summarily rejected.

The bidding envelope shall contain the following sticker:

Selection of RE Power Developers for Supply of for Supply of 1000 MW of Round-the-Clock Thermal Mimic (RTC-TM) Power from ISTS-connected Renewable Energy (RE) Power Projects under Tariff-based Competitive Bidding (SECI-RTC-TM-V)	
Cumulative Capacity of the Projects applied for	_____ *MW*
No. of Projects Bid for	
RfS Reference No.	SECI/C&P/IPP/13/0020/25-26 dated 10.03.2026
Submitted by	*(Enter Full name and address of the Bidder)*
Organization ID (OID) on ETS portal	*(Enter the OID through which the Bid has been submitted online on ETS portal)*
Authorized Signatory	*(Signature of the Authorized Signatory)* *(Name of the Authorized Signatory)* *(Stamp of the Bidder)*
Bid Submitted to	**Executive Director (C&P)** **Solar Energy Corporation of India Limited** **6th Floor, Plate-B, NBCC Office Block Tower-2,** **East Kidwai Nagar, New Delhi-110023** **Tel No. 011-24666200**

26.2 **Documents to be Submitted Online**

Detailed instructions to be followed by the Bidders for online submission of response to RfS as stated as Annexure-B. The Bidders shall strictly follow the instructions mentioned in the electronic form in respective technical bid and financial bid while filling the form.

If the Bidder has submitted bid online and fails to submit the Bank Guarantee/POI/Surety Bond against EMD for requisite amount offline within 2 working days from last date of bid submission, then the same shall be treated as incomplete bid and Cost of RfS, Bid Processing Fee submitted at this stage will be encashed, the EMD(s) shall be returned and the submitted bid will stand cancelled.

All documents of the response to RfS submitted online must be digitally signed and uploaded on the website, ***https://www.bharat-electronictender.com*** which should contain the following:

I. Technical Bid (First Envelope)

The Bidder shall upload single technical bid containing **scanned copies** of the following documents duly signed and stamped on each page by the authorized signatory as mentioned below.

(a) Formats - 7.1, 7.2 (if applicable), 7.3 A/ 7.3B/ 7.3C, 7.4, 7.5 (if applicable), 7.6, 7.7, 7.8/7.8A and 7.9 as elaborated in Clause 22 of the RfS.

(b) All attachments elaborated in Clause 23 of the RfS, under the sub-clause xi: Attachments, with proper file names.

(c) All supporting documents regarding meeting the eligibility criteria.

(d) Scanned Copies of NEFT/RTGS details towards Cost of RfS Document and Bid Processing Fee as mentioned in Bid Information Sheet.

(e) Scanned Copies of requisite amount of Bank Guarantee/POI/Surety Bond towards EMD as mentioned in the Bid Information Sheet.

The Bidder will have to fill the Electronic Form provided at the ISN-ETS portal as part of Techno-commercial Bid.

Submission of Pass-phrases: In line with Clause 24.8, and Annexure-B, the Bidder shall be required to submit the Pass-Phrase to decrypt the relevant Bid-part is submitted into the 'Time Locked Electronic Key Box (EKB)' after the deadline of Bid submission, and before the commencement of the Online Tender Opening Event (TOE) of Techno-commercial bid.

II. Financial Bid (Second Envelope)

1. Bidders shall submit the single Financial Bid containing the scanned copy of following document(s):
   (a) Covering letter of the Financial Bid as per Format - 7.10 of the RfS
   (b) Preliminary Estimate of Cost of the Project, as per Format 7.11 of the RfS.

2. **As part of the financial bid submission, only a single tariff bid for all the Projects applied for, shall have to be filled online in the Electronic Form provided at the ISN-ETS portal. The instructions mentioned in the Financial Bid Electronic Form have to be strictly followed without any deviation, else the bid shall be considered as non-responsive.**

III. Important Note:

(a) The Bidders shall not deviate from the naming and the numbering formats of envelops mentioned above, in any manner.

(b) All the envelopes shall be properly sealed with the signature of the Authorized Signatory running across the sealing of the envelopes.

(c) In case the Bidder submits the online documents on ISN-ETS portal within the bid submission deadlines and fails to submit the offline documents in the office of SECI within the bid submission deadlines, the online bid of the Bidder shall not be opened and shall be 'archived' on the ISN-ETS portal. However, in this case, if the bidder is an MSE, its bid will be opened upon submission of proof of it being an MSE. Similarly, bids submitted offline but without any online submission on ISN-ETS portal shall not be opened and the EMD shall be returned to the respective

Bidder. In such cases, Bid Processing fee and cost of RfS document, if paid by the Bidder, will not be refunded to the Bidder.

(d) In case a Bidder has paid cost of RfS document and Bid Processing Fee for this RfS and chooses not to participate in the bidding process (i.e. the Bidder does not submit any of the online or offline bid documents to SECI), the respective amounts paid to SECI will be refunded without any interest payment, to the respective Bidder.

27 Notice Board for Display

The RPD will have to put a notice board (at least 180 cm x 120 cm) at its project site main entrance prominently displaying the following message before commencement of power supply under the PPA.

___ MW ISTS-Connected RE Project

Owned and operated by

---------- (insert name of the RPD)

[Under RfS for Selection of RE Power Developers for Supply of 1000 MW Round-the-Clock Thermal Mimic (RTC-TM) RE Power from ISTS-Connected Renewable Energy (RE) Power Projects in India, under Tariff-based Competitive Bidding (SECI-RTC-TM-V) by Solar Energy Corporation of India Limited]

Village:……, Tehsil……., District…….., State……

28 Validity of the Response to RfS

The Bidder shall submit the response to RfS which shall remain valid up to the date as on 12 months from the last date of submission of response to RfS ("Bid Validity"). SECI reserves the right to reject any response to RfS which does not meet the aforementioned validity requirement. It is clarified that subsequent to issuance of LoAs, the discovered tariffs shall be deemed to be valid until the signing of PPA, pursuant to Clause 41.4 of the RfS.

29 Bid Preparation Cost

The Bidder shall be responsible for all the costs associated with the preparation of the response to RfS and participation in discussions and attending pre-bid meeting(s) etc. SECI shall not be responsible in any way for such costs, regardless of the conduct or outcome of the bid process.

30 Clarifications/ Pre-Bid Meeting/ Enquiries/ Amendments

30.1 Clarifications/ Doubts, if any, on RfS document may be emailed and/ or through ISN-ETS portal. The format for submission of clarifications is available on the portal.

30.2 SECI will make efforts to respond to the same in the Pre-Bid Meeting to be held as mentioned in the Bid Information Sheet. A compiled list of such questionnaire and SECI's response will be uploaded in the ISN-ETS portal https://www.bharat-electronictender.com. If necessary, amendments, clarifications, elaborations shall be issued by SECI which will be notified on SECI/ ISN-ETS website. No separate reply/ intimation will be given for the above, elsewhere. No clarification on the RfS will be issued subsequent to the bid submission deadline. In the event of the issuance of any revision or amendment of the RfS documents, the Bidders shall be provided a period of at least 7 days therefrom, for submission of bids.

30.3 A Pre-Bid Meeting shall be held as mentioned in the Bid Information Sheet (Venue to be notified later on SECI's website).

31 Right of SECI to Reject a Bid

SECI reserves the right to reject any or all of the responses to RfS or cancel the RfS or annul the bidding process for any project at any stage without assigning any reasons whatsoever and without thereby any liability. In the event of the tender being cancelled prior to opening of bids, the Bid Processing Fee (excluding GST, if amount credited to SECI's account), without any interests, and EMD submitted by the Bidders shall be returned to the respective Bidders.

Note: In the event of opening of bids, Bid Processing Fee will not be refunded. In case SECI is unable to sign PPA for the awarded capacity on account of reasons not attributable to the Successful Bidder, in line with Clause 41.4 below, the 1st and 2nd installment of the Success Charges paid by the Successful Bidder will be refunded by SECI without any interest. In such cases, refund of GST amount will be dealt according to extant provisions of GST Act. However, in case PPA is eventually not signed on account of reasons attributable to the Successful Bidder, the 1st and 2nd installment of Success Charges, as paid by the RPD, will not be refunded by SECI.

32 Post Award Compliances

Timely completion of all the milestones i.e., signing of PPA, commissioning, commencement of power supply etc. will be the sole responsibility of RPD. SECI shall not be liable for issuing any intimations/ reminders to RPDs for timely completion of milestones and/ or submission of compliance documents.

Any checklist shared with RPD by SECI for compliance of above-mentioned milestones to be considered for the purpose of facilitation only. Any additional documents required as per the conditions of Guidelines, RfS and PPA must be timely submitted by the RPD.

SECTION 4. QUALIFICATION REQUIRMENTS FOR BIDDERS

Shortlisting of Bidders will be based on the following Criteria:

33 General Eligibility Criteria

Bidders participating in the RfS will be required to meet the following eligibility criteria (as applicable).

33.1 The Bidder shall be a Company as defined.

33.2 Bidding Consortium with one of the Companies as the Lead Member. Consortium shortlisted and selected based on this RfS has to either (i) form a Project Company and get it registered under the Companies Act, 2013 prior to signing of PPA, keeping the original shareholding of the Bidding Consortium (as per the Consortium Agreement submitted at the time of bid submission) unchanged, or (ii) utilize an already registered company with the shareholding of this company being identical to the shareholding as per the Consortium Agreement submitted at the time of bid submission. In case applications for multiple Projects have been made by a Consortium, separate Project Companies can be formed for each Project. For the avoidance of doubt, it is hereby clarified that the shareholding pattern of the Project Company shall be the identical to the shareholding pattern of the Consortium as indicated in the Consortium Agreement (Format 7.5). It is clarified that in case of Consortium, each of the Consortium members shall have a non-zero equity participation in the Consortium, i.e. a Consortium of 2 members with a 100:0 arrangement of equity commitment will not be eligible as a bidder under this RfS.

33.3 A foreign company can also participate on standalone basis or as a member of consortium at the RfS stage. In case of foreign company participating on standalone basis and its selection as successful Bidder, it shall form a "Special Purpose Vehicle" (SPV), i.e. an Indian Company registered under the Companies Act, 2013 as its subsidiary Company, with at least 51% shareholding in the SPV, before signing of PPA. In case a Foreign Company is selected as the successful Bidder, it shall comply with all the laws and provisions related to Foreign Direct Investment in India.

In case the foreign company participating as a member of consortium, Clause 33.7 of the RfS shall be applicable.

33.4 In line with the O.M. issued by the Department of Expenditure, Ministry of Finance, vide No. 7/10/2021-PPD(1) dated 23.02.2023 and subsequent amendments and clarifications thereto, the Bidder shall meet the following criteria for its bid to be considered for evaluation under the RfS:

i. Any Bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority (as defined in the OM as referred above).

ii. Any Bidder (including an Indian Bidder) who has a Specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India will be eligible to participate in this RfS only if the Bidder is registered with the Competent Authority under the referred OM.

iii. "Bidder" in this reference, means any person or firm or company, including any member of a consortium, every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in this tender.

iv. "Bidder from a country which shares a land border with India" for the purpose of this clause, means:

  i. An entity incorporated, established or registered in such a country; or
  ii. A subsidiary of an entity incorporated, established or registered in such a country; or
  iii. An entity substantially controlled through entities incorporated, established or registered in such a country; or
  iv. An entity whose beneficial owner is situated in such a country; or
  v. An Indian (or other) agent of such an entity; or
  vi. A natural person who is a citizen of such a country; or
  vii. A consortium where any member of the consortium falls under any of the above.

v. "Beneficial owner" for the purposes of Clause 36.4.iv.iv. above will be as defined in the referred OM, including subsequent amendments and clarifications thereto.

vi. In support of the above, the Bidder shall be required to submit necessary Undertaking, as per Format 7.8/7.8A of the RfS.

vii. Other provisions of the referred OM dated 23.02.2023, except Sl. 17 of the OM, will also be applicable for this tender. Any interpretation of the above clauses will be made in line with the referred OM, including subsequent amendments and clarifications thereto.

33.5 Proprietorships, Partnerships, Trusts, NGOs and Limited Liability Partnership (LLPs) are not eligible for participation on an individual basis or as a part of a Consortium.

33.6 A Bidder which has been selected as Successful Bidder based on this RfS can also execute the Project through a Special Purpose Vehicle (SPV) i.e. (a) existing subsidiary Company of the Successful Bidder, or (b) a Project Company incorporated as a subsidiary Company of the Successful Bidder, for setting up the Project; and in each case, having at least 51% shareholding in the SPV, which has to be registered under the Indian Companies Act, 2013, before signing of PPA. Multiple SPVs may also be utilized for executing more than one Project.

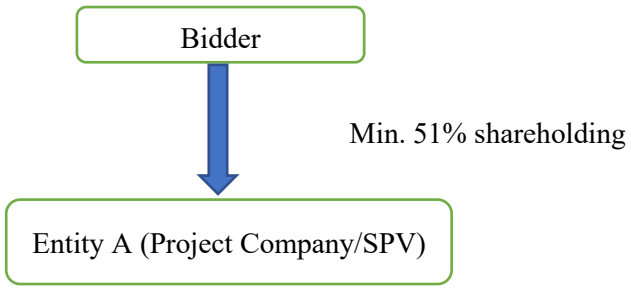
33.7 Any consortium, if selected as Successful Bidder for the purpose of supply of power to SECI, shall incorporate/ utilize an already existing Project company with equity participation by the Members in line with consortium agreement (to be submitted along with the response to RfS) before signing of PPA with SECI, i.e. the Project Company incorporated shall have the same shareholding pattern as that indicated in the Consortium Agreement given at the time of submission of response to RfS. This shall not change till the signing of PPA and thereafter the combined shareholding of the Consortium Members

in the SPV/Project Company shall not fall below 51% at any time prior to 1 year from the SCSD, except with the prior approval of SECI.

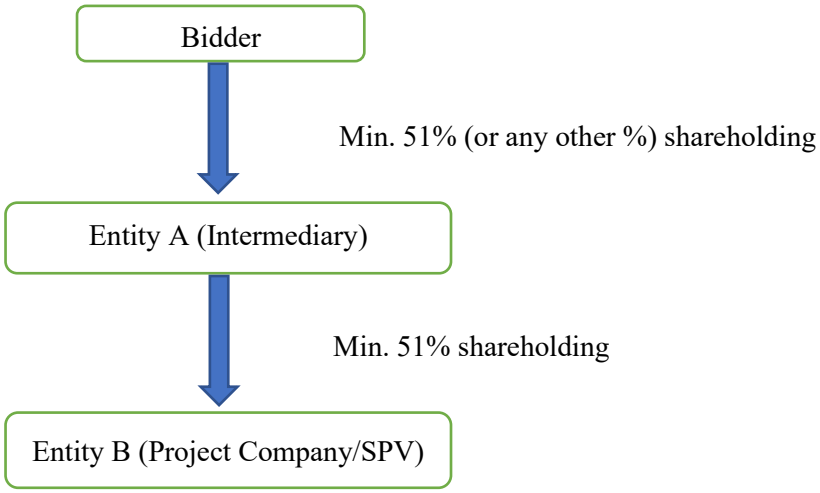
33.8 As on the bid submission deadline, Bidder or any of its Affiliates should not be a willful defaulter to any lender. Further, as on the bid submission deadline, the Bidder & any of its Affiliate including any Consortium Member & any of its Affiliate, their directors should not have been barred or included in the blacklist by any government agency or authority in India, the government of the jurisdiction of the Bidder or Members where they are incorporated or the jurisdiction of their principal place of business, any international financial institution such as the World Bank Group, Asian Development Bank, African Development Bank, Inter-American Development Bank, Asian Infrastructure Investment Bank, etc. or the United Nations or any of its agencies.. The Bidder shall submit an undertaking to this effect as per Format 7.7 of the RfS.

33.9 For avoidance of doubt, it is clarified that the fully owned subsidiary Company as mentioned in Clauses 33.3 and 33.6 above should be an immediate subsidiary of the bidder, without any intermediaries involved. The following illustrations are provided to clarify the same:

Scenario 1:



Scenario 2:



As per provisions of the RfS, only Scenario 1 is permissible under this RfS, in case of Projects being implemented by SPVs.

34 Technical Eligibility Criteria

34.1 Under this RfS, it is proposed to promote only commercially established and operational technologies to minimize the technology risk and to achieve timely commencement of

power supply from the Projects. The Bidder may indicate regarding the selection of technology and its details at the time of submission of bids, in the prescribed Format 7.9.

34.2 In order to ensure only quality systems are installed, and in order to bring-in advantage of latest development/Models, the type certified wind turbine models listed in Revised List of Models and Manufactures (RLMM) issued by MNRE as updated until the SCSD of the Project will be allowed for deployment under this RfS.

34.3 A Bidder quoting for 'X' MW Contracted Capacity shall be required to submit credentials either of the following:

i. The Bidder should have successfully commissioned **a single RE Project**, as defined under the Guidelines, **of Contracted Capacity not less than '4X/5' MW** in last seven years as on last date of bid submission.

OR

ii. The Bidder should have successfully commissioned **02 (two) RE Projects**, as defined under the Guidelines, **of Contracted Capacity not less than 'X/2' MW each** in last seven years as on last date of bid submission.

OR

iii. The Bidder should have successfully commissioned **03 (three) RE Projects**, as defined under the Guidelines, **of Contracted Capacity not less than '2X/5' MW each** in last seven years as on last date of bid submission.

The Bidder will be required to submit the commissioning certificate issued by the Competent Authority, along with copy of the latest invoice for energy payment supported with REA/ SEA/ JMR/ Obligation report issued by Power Exchange, along with their bid as part of the bid submission.

In case of the Bidder being a Bidding Consortium, the above technical requirement shall be met by the Lead Member of the Consortium.

For the purpose of meeting the above qualification requirements, the Bidder may seek qualification on the basis of technical capability of its Affiliate(s). In case of the Bidder being a Bidding Consortium, the Lead Member may seek qualification on the basis of technical capability of its Affiliate(s).

34.4 Detailed technical parameters for Solar PV Projects to be met by RPDs are at Annexure-A. The Bidders shall strictly comply with the technical parameters detailed in the Annexure-A. Further, the provisions as contained in the O.M. dated 10.03.2021 issued by MNRE on the subject "Approved Models and Manufacturers of Solar Photovoltaic Modules (Requirement of Compulsory Registration) Order, 2019-Implementation-Reg." and its subsequent amendments and clarifications issued until the bid submission deadline, shall be applicable for this RfS. The solar PV modules and solar PV cells used in the Projects under this RfS shall be from the models and manufacturers included in ALMM List-I (for solar PV modules) and ALMM List-II (for solar PV cells) under the above Order, valid as on the date of invoicing of such modules.

34.5 The wind power projects will be developed as per the Guidelines issued by the Government of India or its agencies for development of Wind Power Projects. For solar

modules and balance of systems, the technical guidelines issued by the Government of India from time to time for grid connected Solar PV systems and the technical guidelines prevalent at the time of commencement of power supply from the Project, will be followed. Installation of other RE generating sources as part of the Project shall be governed by applicable technical standards issued by the Government from time to time.

34.6 The Bidder is required to undertake to furnish evidence of meeting the above criteria in line with provisions of Clause 21 of RfS.

34.7 The Projects shall also comply with the criteria for energy supply as detailed in Clause 8 of the RfS.

34.8 RPD shall install and maintain GPS enabled Automatic Weather Station (AWS) as per the technical specifications and standards specified by relevant Central Government Agency. Availability of the data from such AWS shall be ensured as specified by the appropriate Load Dispatch Centre and other Central Government agencies in accordance with the provisions of Indian Electricity Grid Code and instructions from the appropriate Load Dispatch Centre from time to time.

34.9 RPD shall comply with applicable cyber security regulations, directives, and guidelines issued by the Central Government Authorities dealing with cyber security.

35 Financial Eligibility Criteria

35.1 **Net-Worth**

i. The Net-Worth of the Bidder should be equal to or greater than the amount calculated as per the following formula, based on the Installed Capacity break-up quoted by the Bidder:

Minimum Net-Worth requirement = [(Rs. 95,40,000 x Rated cumulative Installed Capacity of Solar PV component (MW)) + (Rs. 1,33,20,000 x Rated cumulative Installed Capacity of Wind Power component and other RE sources (MW)) + (Rs. 23,54,500 x Rated cumulative Installed Capacity of ESS component (MWh))].

The above Net-Worth amount shall be demonstrated by the Bidder as on the last of previous Financial Year, i.e., FY 2024-25 or as on the day at least 7 days prior to the bid submission deadline.

ii. The Net Worth to be considered for the above purpose will be the cumulative net-worth of the Bidding Company or Consortium, together with the Net Worth of those Affiliates of the Bidder(s) that undertake to contribute the required equity funding and performance bank guarantees/POI/Surety Bond in case the Bidder fails to do so in accordance with the RfS.

iii. Net Worth to be considered for this clause shall be the total Net Worth as calculated in accordance with the Companies Act, 2013 and any further amendments thereto.

iv. **Note:** In case of revision in Installed Capacity prior to SCSD, resulting in an increase in the Installed Capacity being committed by the RPD, the RPD will be required to demonstrate the revised Net-Worth requirements (as per provisions of the RfS) based on the revised Installed Capacity.

35.2 **Liquidity**

In order to ascertain that the Bidder has sufficient means to manage the fund requirements for the Project, the Bidder shall be required to demonstrate at least one of the following parameters:

i. A minimum annual turnover of **INR 4,00,00,000/MW** (Indian Rupees Four Crores/ MW) of the quoted Contracted Capacity during the previous financial year, 2024-25 or as on the day at least 7 days prior to the bid submission deadline. It is hereby clarified that "Other Income" as indicated in the annual accounts of the Bidder shall not be considered for arriving at the annual turnover.

ii. Internal resource generation capability, in the form of Profit Before Depreciation Interest and Taxes (PBDIT) excluding other and exceptional income for a minimum amount of **INR 80,00,000/MW** (Indian Rupees Eighty Lakhs/MW) of the quoted Contracted Capacity, as on the last date of previous financial year, 2024-25, or as on the day at least 7 days prior to the bid submission deadline.

iii. In-principle sanction letter from the lending institutions/ banks of the Bidder, committing a Line of Credit for a minimum amount of **INR 1,00,00,000/MW** (Indian Rupees One Crore/MW) of the quoted Contracted Capacity, towards meeting the working capital requirement of the project quoted under this RfS. Such letter can also be obtained by the Affiliate(s) of the Bidder.

Note: In case of revision in Installed Capacity prior to SCSD, resulting in an increase in the Installed Capacity being committed by the RPD, the RPD will be required to demonstrate the revised liquidity requirement (as per provisions of the RfS) based on the revised Installed Capacity.

35.3 The Bidder may seek qualification on the basis of financial capability of its Affiliate(s) for the purpose of meeting the qualification requirements as per Clauses 35.1 and 35.2 above. In case of the Bidder being a Bidding Consortium, any Member may seek qualification on the basis of financial capability of its Affiliate(s). In such cases, the Bidder shall be required to submit Board Resolutions from the respective Affiliate(s), undertaking to contribute the required equity funding and Performance Bank Guarantees/POI/Surety Bond in case the Bidder(s) fail to do so in accordance with the RfS.

35.4 For the purposes of meeting financial requirements, latest consolidated/ unconsolidated audited annual accounts of the bidding company shall be used. However, in case the bidding Company is seeking qualification on the basis of the financial capability of its Affiliates (fully or partly), then only the unconsolidated audited Annual Accounts of the Affiliate(s) shall be used.

35.5 A Company/Consortium would be required to submit annual audited accounts for the last financial year, 2024-25, or provisional accounts as on the day at least 7 days prior to the bid submission deadline, along with Net Worth, annual turnover and/or PBDIT certificate (as applicable) from a practicing Chartered Accountant/ Statutory Auditor to demonstrate fulfillment of the criteria. In case of foreign companies, the Bidders shall be required to submit the annual audited accounts for the last respective financial year as per the general

norm in the country where the Bidder or its Affiliate(s) is/ are located, or provisional accounts as on the day at least 7 days prior to the bid submission deadline.

Note: In case of foreign Bidders, in the event the Bidder is unable to furnish the audited annual accounts for the previous financial year as per the prevalent norm in the respective country, the Bidder shall submit the annual audited accounts of the last financial year for which the audited accounts are available. This, however, would be acceptable, subject to the condition that the last date of response to this RfS falls on or within the deadline for completion of audit of annual accounts of companies, as stipulated by the laws/rules of the respective country, and the Bidder shall submit the corresponding documentary evidence against the same. In case the annual accounts or provisional accounts as on the day at least 7 days prior to the bid submission deadline, are submitted in a language other than English, a certified English translation from an approved translator shall be required to be submitted by the Bidder.

35.6 For meeting the above financial eligibility criteria, if the data is provided by the Bidder in a foreign currency, equivalent Indian Rupees of Net Worth and other financial parameters will be calculated by the Bidder using Reserve Bank of India's reference rates prevailing on the date of closing of the accounts for the respective financial year.

35.7 In case of any currency for which RBI reference rate is not available, Bidders shall convert such currency into US Dollar (USD) as per the exchange rates certified by their banker prevailing on the relevant date and used for such conversion. After such conversion, Bidder shall follow the procedure/ submit document as elaborated in Clause 35.6 above.

35.8 In case the response to RfS is submitted by a Consortium, then the financial requirement (both the Net-Worth and Liquidity requirements) to be met by the Consortium shall be computed on aggregate basis, summing up the meeting of eligibility requirements as demonstrated by the individual Consortium members.

SECTION 5. BID EVALUATION AND SELECTION OF PROJECTS

36 Bid Evaluation

Bid evaluation will be carried out considering the information furnished by Bidders as per provisions of this RfS. The detailed evaluation procedure and selection of Bidders are described in subsequent clauses in this Section.

37 Techno-Commercial Evaluation of Bidders (Step 1)

37.1 The first envelope (Techno-commercial Bid submitted online) of only those Bidders will be opened by SECI whose required documents as mentioned at Clause 23 of the RfS are received by SECI. Bid opening (online) will be done only after the deadline for submission of Bank Guarantee.

For e.g., if the bid submission deadline is 18:00 hrs. on 05.11.2026, the online bid opening will be conducted on 08.11.2026. In case of the above date being a holiday, the bids will be opened on the next working day.

37.2 Documents (as mentioned in the previous clause) received after the bid submission deadline specified in the Bid Information Sheet shall be rejected and returned unopened, if super-scribed properly with address, to the Bidder.

37.3 Subject to Clause 23 of the RfS, SECI will examine all the documents submitted by the Bidders and ascertain meeting of eligibility conditions prescribed in the RfS. During the examination of bids, SECI may seek clarifications/additional documents to the documents submitted etc. from the Bidders if required to satisfy themselves for meeting the eligibility conditions by the Bidders. Bidders shall be required to respond to any clarifications/additional documents sought by SECI within 07 (seven) days from the date of such intimation from SECI. All correspondence in this regard shall be made through email/ISN-ETS portal only. It shall be the responsibility of the Bidder to ensure that the email id of the authorized signatory of the Bidder is functional. The Bidder may provide an additional email id of the authorized signatory in the covering letter. No reminders in this case shall be sent. It shall be the sole responsibility of the Bidders to remove all the discrepancies and furnish additional documents as requested. SECI shall not be responsible for rejection of any bid on account of the above.

37.4 The response to RfS submitted by the Bidder shall be scrutinized to establish Techno-Commercial eligibility as per the RfS.

38 Financial Bid Evaluation (Step 2)

38.1 In this step, evaluation of Techno-Commercially Qualified Bids shall be done based on the "First Round Tariff" quoted by the Bidder in the Electronic Form of Financial Bid. After this step, the shortlisted bidders shall be invited for the Reverse Auction.

38.2 Second Envelope (containing First Round Tariff) of only those Bidders shall be opened whose technical bids are found to be qualified as per the RfS.

38.3 The Bidder including its Parent, Affiliate or Ultimate Parent or any Group Company will have to submit a single bid (single application) quoting a single "First Round Tariff" in

Indian Rupee per kWh for all the Projects applied for. **The tariff shall be quoted in Indian Rupee per kWh up to two places of decimal only**. If it is quoted with more than two digits after the decimal, digits after the first two decimal places shall be ignored. (For e.g. if the quoted tariff is INR 4.337, then it shall be considered as INR 4.33).

38.4 In this step, evaluation will be carried out based on the tariff quoted by Bidders. It is clarified that irrespective of the Installed Capacities quoted by the Bidders, shortlisting and award of capacities under the RfS will be carried out based on the cumulative Contracted Capacities quoted by them.

38.5 On completion of Techno-Commercial bid evaluation, if it is found that only one or two Bidder(s) is/are eligible for the next stage, opening of the financial bid of the Bidder(s) will be at the discretion of SECI. Thereafter, SECI will take appropriate action as deemed fit.

38.6 If the first-round tariff quoted is same for two or more Bidders, then all the Bidders with same tariff shall be considered of equal rank/ standing in the order.

38.7 All Bidders with same tariff shall be eligible for reverse auction round, provided their rank is equal to or less than n^{th} Bidder as mentioned in Clause 39.2 of the RfS.

38.8 Ranking of bidders after Financial Bid Evaluation: Following illustrates an example of ranking of bidders after financial bid opening and evaluation

Bidder	Submitted Financial Bid (Tariff in ₹/ kWh)	Ranking
B1	₹ 4.10	*L1*
B2	₹ 4.20	*L2*
B3	₹ 4.30	*L3*
B4	₹ 4.30	*L3*
B5	₹ 4.43	*L4*
B6	₹ 4.60	*L5*
B7	₹ 4.65	*L6*

39 Reverse Auction (Step 3)

39.1 The reverse auction for the total tendered capacity shall be conducted on the portal https://www.bharat-electronictender.com, on the day as intimated by SECI to the eligible bidders. Rules of the auction process are brought out below, and are also contained in Annexure-B of the RfS. As part of submission of their response to RfS, the Bidders shall submit the scanned copy of Annexure-B of the RfS duly signed and stamped by the Authorized signatory, as an acceptance of the provisions contained therein,

39.2 The Total number of eligible bidders for the reverse auction shall be decided as mentioned below:

Assuming
T = Total Techno-Commercially Qualified Bidders, and
S_k = Cumulative bid capacity till the 'k'th serial number bidder (not the 'k'th rank bidder) after ranking is done in ascending order from L1 onwards

S_E = (Eligible capacity for award)	(i) In case $S_T \leq 1000$ MW, $S_E = 0.8 \times S_T$ (ii) In case $S_T > 1000$ MW, $S_E = 0.8 \times S_T$ subject to maximum eligible capacity being 1000 MW.

Total number of Bidders eligible for e-Reverse Auction

i. In case $(0.8 \times S_T) \leq 1000$ MW: all the techno-commercially qualified bidders whose financial bids are in line with the RfS provisions, will be shortlisted for e-RA. Accordingly, the no. of bidders shortlisted for e-RA, i.e., "n" = "T".

ii. In case $(0.8 \times S_T) > 1000$ MW: The lowest ranked bidder, i.e., the bidder quoting the highest tariff (the "H1 bidder") shall be eliminated at this stage, and the remaining techno-commercially qualified bidders whose financial bids are in line with the RfS provisions, will be shortlisted for e-RA.
Accordingly, the no. of bidders shortlisted for e-RA, i.e., "n" = "T"-1

Note:

(a) In case more than one bidder is ranked as "H1" bidder, no elimination will take place at this stage.

(b) The above elimination will take place subject to the condition that 80% of the total bid capacity after such elimination remains more than the tendered capacity (1000 MW in this case), and the minimum number of shortlisted bidders for e-RA after elimination at this stage remains 3. In the contradictory scenario, no elimination will take place at this stage.

For e.g. (Shortlisting of Bidders for reverse auction):

Scenario-1: Total bid capacity of techno-commercially shortlisted bidders = S_T =2100 MW

Sl. No.	Techno commercially qualified Bidder	Rank	Capacity (MW)	T	(0.8x S_T)	S_E	n*	Shortlisted Bidders
1	B3	L1	250	10	1680 MW	1000 MW	9	B3
2	B5	L2	300					B5
3	B1	L3	150					B1
4	B4	L3	150					B4
5	B2	L4	100					B2
6	B6	L5	200					B6
7	B7	L6	100					B7
8	B8	L7	250					B8
9	B9	L8	300					B9
10	B10	L9	300					

*n = 10-1 = 9 as per the above formula.

Scenario-2: Total bid capacity of techno-commercially shortlisted bidders= S_T=1000 MW

S. No.	Techno commercially qualified Bidder	Rank	Capacity (MW)	T	(0.8x S_T)	S_E	n	Shortlisted Bidders
1	B3	L1	100	5	800 MW	800 MW	5	B2
2	B2	L2	300					B3
3	B1	L3	150					B1
4	B4	L4	200					B4
5	B5	L5	250					B5

*n = 5 as per the above formula

39.3 At least one week prior to reverse auction, an advance intimation regarding the date and time of the reverse auction will be sent by e-mail to all the Bidders whose technical bids have been opened and found to be qualified. However, from this advance intimation it shall not be construed by the Bidders that they have been shortlisted for Reverse Auction. Further, at least two hours before the scheduled start time of Reverse Auction, a system generated email for invitation for Reverse Auction will be sent to all those Bidders only who have been shortlisted based on the criteria mentioned at Clause 39.2 above.

39.4 Shortlisted bidders for Reverse Auction will be able to login into the ISN-ETS portal of reverse auction 15 minutes before the start time of reverse auction.

i. During the 15 minutes prior to start of reverse auction process, the respective tariff of the bidder shall be displayed on its window.

ii. The minimum decrement value for tariff shall be INR 0.01 per kWh. The Bidder can mention its revised discounted tariff which has to be at least 01 (One) Paisa less than its current tariff.

iii. Bidders can only quote any value lower than their previous quoted tariff taking into consideration the minimum decrement value mentioned in the previous clause. However, at any stage, increase in tariff will not be permissible. Bidders can improve their ranking by quoting the tariff lower than their last quoted tariff.

iv. During reverse auction, the Bidder shall not have the option of changing the total Contracted capacity quoted, while quoting the tariff.

v. In the Bidder's bidding window, the following information can be viewed by the Bidder:

   i. Its tariff as the initial start price and there after last quoted tariff along with the cumulative Contracted Capacity for which the Bidder is qualified.

   ii. The list of all the Bidders with their following details: Pseudo Identity, last quoted tariff and offered Contracted Capacity.

vi. The initial auction period will be of 30 (thirty) minutes with a provision of auto extension by 8 (eight) minutes from the scheduled/ extended closing time. Such auto extension shall be affected if by way of reduction in tariff, a Bidder causes a change in its zonal placement at that instant. The 'zones' are as defined below:

- Green Zone: This zone consists of the Bidders who may be allocated their full quoted Contracted Capacity, subject to provisions of Clause 40, if the auction is closed at that instant.

- Orange Zone: This zone consists of the Bidders who may be allocated a part of their full quoted Contracted Capacity, subject to provisions of Clause 40, if the auction is closed at that instant.
- Red Zone: This zone consists of the Bidders who will not be awarded their quoted Contracted Capacity, if the auction is closed at that instant.

If no such change as described above is affected during the last 8 minutes of auction period or extended auction period, then the reverse auction process will automatically get closed.

40 Selection of Successful Bidders

40.1 Subsequent to conclusion of the e-RA process, the Bidders in the "Green" and "Orange" zones as per Clause 39.4 (vi) above, will be listed in the increasing order of the tariffs discovered at the end of e-RA.

40.2 The Bidders who fall within the range of (and including) the lowest tariff (L1 tariff) + 2% of the L1 tariff-hereinafter referred to as "the range"- will be declared as Successful Bidders under the RfS, subject to the following conditions:

i. In case the cumulative capacity shortlisted as per the range exceeds S_E (capacity eligible for award as per Clause 39.2), the list of Successful Bidders shall be limited by S_E.

ii. In a borderline case, i.e., the scenario wherein more than one Bidder is eligible to be declared as Successful Bidder at the highest tariff (the tariff at the end of the range), and the cumulative capacity exceeds S_E, time stamping of Bidders shall be used to limit allocation of cumulative capacity up to S_E. In such cases, those bidders who are at the same tariff, but they are ranked lower than the ones which fall within the cumulative capacity limit of S_E, will not be eligible to be declared as Successful Bidders.

In other words, in every possible scenario, the total capacity to be awarded under the RfS shall be limited to S_E.

iii. Time stamping- In case of a tie among two or more Bidders (i.e. their last quoted tariff being the same), they will be considered in the chronological order of their last quoted tariff during the e-RA with preference to be given to that Bidder who has quoted his last tariff during the e-RA, earlier than others.

iv. In the above case, if the time of quote also becomes exactly same among the Bidders at a tie, then the ranking among these Bidders shall be done as follows:

• Step 1: Highest rank will be given to the Bidder who has quoted the lowest in Financial Bid (Electronic Form) and so on. If there is also a tie among any of these bidders, then the following step (Step 2) will be followed.

• Step 2: Ranking will be done based on draw of lots.

40.3 **Illustration:** Following example provides a possible illustration of the above methodology:

• L1 tariff discovered after e-RA: Rs. 4.40/kWh

• The range (L1+2% of L1): Rs. 4.488/kWh

Rank	Quoted Capacity (MW)	Cumulative Capacity (MW)	Time stamp	Tariff (INR/kWh)	Qualified as Successful Bidder
L1	250	250	NA	4.40	L1
L2	240	490	NA	4.40	L2
L3	250	440	16:00:01	4.41	L3
L3	260	1000	16:00:02	4.41	L3
L4	300	1300	16:00:03	4.41	---
L5	60	1360	NA	4.44	---
L5	300	1660	NA	4.52	---

40.4 Note: The allocation of cumulative Contracted Capacity shall be closed at S_E. However, in no case, shall the capacity of a single Project selected under this RfS, be less than 50 MW. In case of the last Successful Bidder, if the balance cumulative Contracted Capacity is less than the total Contracted Capacity mentioned by the Bidder but greater than 50 MW, then the Project with highest preference (as mentioned in the Covering Letter) shall be awarded to the Bidder, subject to the maximum cumulative capacity not exceeding S_E, being awarded under the RfS.

In case the partial capacity offered to the last Successful Bidder as per Cl. 40.2 above, is lower than 50% of the total quoted capacity by such Bidder or 100 MW, the Bidder shall have an option to refuse such offered partial capacity, and the BG/POI/Surety Bond against EMD submitted by such Bidder shall be returned along with those of the unsuccessful Bidders. Such refusal shall be intimated to SECI not later than 7 days of issuance of LoAs by SECI, failing which, the awarded capacity shall be deemed to be accepted by the said Bidder.

In case the partial capacity offered to the last Successful Bidder as per Cl. 40.2 above, is greater than or equal to 50% of the total quoted capacity by such Bidder, it shall be mandatory for the last Bidder to accept the partial capacity offered against its quoted capacity, subject to the total cumulative capacity awarded under the RfS not exceeding S_E. In case the last Successful Bidder refuses to accept such partial capacity offered by SECI, the Bank Guarantee(s)/POI/Surety Bond against EMD submitted by such Bidder shall be encashed by SECI.

41 Issuance of LoAs

41.1 At the end of selection process, Letters of Award (LoAs) will be issued to the Successful Bidders discovered as above. The LoAs shall be awarded for the Contracted Capacity as quoted by the respective successful bidder, or the partial Contracted Capacity, as the case may be. In case of a Consortium being selected as the successful Bidder, the LoA will be issued to the Lead Member of the Consortium.

41.2 In case SECI is unable to find buyers/off-takers for the tariffs as discovered after the bidding process, SECI reserves the right to annul the bid process without any financial implications to any of the parties concerned. SECI reserves the right to cancel any or all of the bids in view of higher tariff discovered after e-RA.

41.3 SECI reserves the right to cancel any or all of the bids in view of higher tariff discovered after e-RA. In all cases, SECI's decision regarding selection of Bidder through Reverse Auction or other- wise based on tariff or annulment of tender process shall be final and binding on all participating Bidders.

41.4 PPAs will be executed subsequent to signing of PSAs by SECI. After the issuance of LoA(s) for the cumulative awarded capacity, in case the total capacity of PSAs signed by SECI is lower than the cumulative awarded capacity, the cumulative PPA capacity to be executed by SECI will be reduced accordingly. For a particular Bidder, in case the finally modified capacity offered by SECI for signing of PPA is lower than the capacity for which the LoA was issued to the said Bidder, the respective Bidder may choose to reject such modified capacity, and will be allowed to exit the process without any liability to either party (i.e., SECI or the Bidder), and the said refused capacity will be offered to the next successful Bidder as per the list of successful bidders. In case such offered partial capacity for signing of PPA is less than 50 MW, subject to provision of Clause 5.1 of the RfS, PPA will not be executed with such Bidder.

41.5 In case of delay in signing of PPA by SECI beyond the date as on 12 months subsequent to issuance of LoAs, the LoA shall stand cancelled and the EMD submitted by such Bidder shall be returned by SECI.

SECTION 6. DEFINITIONS OF TERMS

42 Following terms used in the documents will carry the meaning and interpretations as described below:

42.1 **"ACT" or "ELECTRICITY ACT, 2003"** shall mean the Electricity Act, 2003 and include any modifications, amendments and substitution from time to time.

42.2 **"AFFILIATE"** shall mean a company that, directly or indirectly,

i. controls, or

ii. is controlled by, or

iii. is under common control with, a company developing a Project or a Member in a Consortium developing the Project and control means ownership, directly or indirectly, of more than 50% (fifty percent) of the voting shares of such company or right to appoint majority Directors to the Board of Directors.

42.3 **"APPROPRIATE COMMISSION"** shall mean as defined in the PPA.

42.4 **"BID"** or **"PROPOSAL"** shall mean the documents submitted by the Bidder towards meeting the techno-commercial and financial qualifying requirements, along with the price bid submitted by the Bidder and submissions during the e-Reverse Auctions, if applicable, as part of its response to the RfS issued by SECI.

42.5 **"BIDDER"** shall mean Bidding Company (including a foreign company) or a Bidding Consortium submitting the Bid. Any reference to the Bidder includes Bidding Company/ Bidding Consortium, Member of a Bidding Consortium including its successors, executors and permitted assigns and Lead Member of the Bidding Consortium jointly and severally, as the context may require; foreign companies participating in the bidding process shall be registered as companies as per the rules of their country of origin.

42.6 **"BIDDING CONSORTIUM"** or **"CONSORTIUM"** shall refer to a group of Companies that collectively submit the response in accordance with the provisions of this RfS under a Consortium Agreement.

42.7 **"BID CAPACITY"** shall mean the Contracted Capacity of the RE Power Project as proposed by the Bidder.

42.8 **"BUYING ENTITY"** shall mean an End Procurer as defined in the Guidelines.

42.9 **"CHARTERED ACCOUNTANT"** shall mean a person practicing in India or a firm whereof all the partners practicing in India as a Chartered Accountant(s) within the meaning of the Chartered Accountants Act, 1949.

For bidders incorporated in countries other than India, "Chartered Accountant" shall mean a person or a firm practicing in the respective country and designated/ registered under the corresponding Statutes/ laws of the respective country.

42.10 **"COMPANY"** shall mean a body corporate incorporated in India under the Companies Act, 2013 or any law in India prior thereto relating to Companies, as applicable.

42.11 **"CONTRACTED CAPACITY"** shall mean the AC capacity in MW contracted with SECI for supply of power by the RPD to SECI at the Delivery Point(s) from the Project(s), based on which the PPA is executed with SECI.

42.12 **"CONTRACT YEAR"** shall mean the period beginning from the Effective Date of the PPA and ending on the immediately succeeding 31st March and thereafter each period of 12 months beginning on 1st April and ending on 31st March provided that:

i. in the financial year in which the SCSD would occur, the Contract Year shall end on the date immediately before the SCSD and a new Contract Year shall commence once again from the SCSD and end on the immediately succeeding 31st March, and thereafter each period of 12 (Twelve) Months commencing on 1st April and ending on 31st March, and

ii. provided further that the last Contract Year of this Agreement shall end on the last day of the Term of the PPA.

42.13 **"CONTROL"** shall mean the ownership, directly or indirectly, of more than 50% (fifty percent) of the voting shares of such Company or right to appoint majority Directors.

42.14 **"CONTROLLING SHAREHOLDING"** shall mean more than 50% of the voting rights and paid up share capital in the Company/ Consortium.

42.15 **"CENTRAL TRANSMISSION UTILITY (CTU)"** shall mean the Central Transmission Utility as defined in sub-section (10) of section 2 of Electricity Act 2003.

42.16 **"DAY"** shall mean calendar day.

42.17 **"EFFECTIVE DATE"** shall be the date as per Clause 20 of the RfS.

42.18 **"ENERGY STORAGE SYSTEMS" or "ESS"** shall mean the system(s) installed in addition to the RE power capacity as part of the Project, that can capture energy produced at one time for use at a later time.

42.19 **"EQUITY"** shall mean Net Worth as defined in Companies Act, 2013.

42.20 **"GENERAL NETWORK ACCESS (GNA)"** shall mean General Network Access as defined under the Central Electricity Regulatory Commission (Connectivity and General Network Access to the Inter-State Transmission System) Regulations, 2022.

42.21 **"GNA REGULATIONS"** shall mean Central Electricity Regulatory Commission (Connectivity and General Network Access to the Inter-State Transmission System) Regulations, 2022 notified on 07.06.2022, including subsequent amendments and clarifications issued thereof. Any reference to the terms "connectivity" or "network access" or "general network access" or "non-solar hour access" or "non-solar hours" in the RfS and PPA shall be interpreted in terms of the provisions of these Regulations.

42.22 **"GUIDELINES"** shall mean "Guidelines for Tariff Based Competitive Bidding Process for Procurement of Firm and Dispatchable Power from Grid Connected Renewable Energy Power Projects with Energy Storage Systems" issued by the Ministry of Power vide Gazette Resolution no. 23/03/2023-R&R dated 09.06.2023 including subsequent amendments and clarifications thereto, if any, issued until the last date of bid submission of this RfS.

42.23 **"GRID CODE REGULATIONS" or "GRID CODE"** shall mean the Central Electricity Regulatory Commission (Indian Electricity Grid Code) Regulations, 2023, as amended from time to time.

42.24 **"GROUP COMPANY"** of a Company means

i. a Company which, directly or indirectly, holds 10% (Ten Percent) or more of the share capital of the Company or;

ii. a Company in which the Company, directly or indirectly, holds 10% (Ten Percent) or more of the share capital of such Company or;

iii. a Company in which the Company, directly or indirectly, has the power to direct or cause to be directed the management and policies of such Company whether through the ownership of securities or agreement or any other arrangement or otherwise or;

iv. a Company which, directly or indirectly, has the power to direct or cause to be directed the management and policies of the Company whether through the ownership of securities or agreement or any other arrangement or otherwise or;

v. a Company which is under common control with the Company, and control means ownership by one Company of at least 10% (Ten Percent) of the share capital of the other Company or power to direct or cause to be directed the management and policies of such Company whether through the ownership of securities or agreement or any other arrangement or otherwise;

Provided that entities which have Government shareholding, financial institution, scheduled bank, foreign institutional investor, Non-Banking Financial Company, and any mutual fund, pension funds, sovereign funds and funds managed by National Investment and Infrastructure Fund Limited shall not be deemed to be Group Company, and its shareholding and the power to direct or cause to be directed the management and policies of a Company shall not be considered for the purposes of this definition unless it is the Project Company or a Member of the Consortium developing the Project.

42.25 **"INTER-CONNECTION POINT/ DELIVERY/ METERING POINT"** shall mean a single point or multiple points at 220kV or above, where the power from the Project is injected into the identified ISTS Substation (including the transmission line connecting the Projects with the substation system) or InSTS/STU substation, in case of intra-state connected Projects, as specified in the RfS document. Metering shall be done at this interconnection point where the power is injected into. For interconnection with grid and metering, the RPDs shall abide by the relevant CERC/ SERC Regulations, Grid Code and Central Electricity Authority (Installation and Operation of Meters) Regulations, 2006 as amended and revised from time to time.

In case the Buying Entity is located in the same State where the Project is located, if the Buying Entity desires the Project to be set up behind its STU/InSTS substation, it will be permitted by SECI subject to acceptance of such an arrangement by the RPD.

42.26 **"INTERESTED PARTIES"** shall mean a situation where control is equally distributed among interested parties in the Group Company or Bidding Consortium;

42.27 **"INTERMEDIARY PROCURER"** shall mean a trader who shall aggregate the power purchased from different RE Projects and sell it to the Buying Entity(ies).

42.28 **"InSTS"** means Intra-State Transmission System.

42.29 **"ISTS"** means Inter-State Transmission System.

42.30 **"JOINT CONTROL"** shall mean a situation where a company has multiple promoters (but none of the shareholders has more than 50% of voting rights and paid-up share capital).

42.31 **"LEAD MEMBER OF THE BIDDING CONSORTIUM"** or **"LEAD MEMBER"**: There shall be only one Lead Member, having the shareholding of not less than 51% in the Bidding Consortium.

42.32 **"LETTER OF AWARD"** or **"LoA"** shall mean the letter issued by Solar Energy Corporation of India Limited (SECI) to the selected Bidder for award of the Project.

42.33 **"LIMITED LIABILITY PARTNERSHIP"** or **"LLP"** shall mean a Company governed by Limited Liability Partnership Act 2008 or as amended.

42.34 **"LLC"** shall mean Limited Liability Company.

42.35 **"MEMBER IN A BIDDING CONSORTIUM"** or **"MEMBER"** shall mean each Company in a Bidding Consortium. In case of a Technology Partner being a member in the Consortium, it has to be a Company.

42.36 **"MONTH"** shall mean calendar month.

42.37 **"NET-WORTH"** shall mean the Net-worth as defined in Section 2 of the Companies Act, 2013.

42.38 **"OFF-PEAK HOURS"** shall refer to all the remaining hours outside the 6 Peak Hours chosen by the Buying Entity.

42.39 **"PAID-UP SHARE CAPITAL"** shall mean the paid-up share capital as defined in Section 2 of the Companies Act, 2013.

42.40 **"PARENT"** shall mean a Company, which holds more than 50% voting rights and paid-up share capital, either directly or indirectly in the Project Company or a Member in a Consortium developing the Project.

42.41 **"PEAK HOURS"** shall mean the energy scheduling hours in a day as chosen by the Buying Entity for supply of peak power from the Project. For the purpose of scheduling, a 'day' shall commence from 00:00 hrs. and end at 24:00 hrs. The Buying Entity shall choose any 6 hours on a daily basis between 00:00 Hrs. to 10:00 Hrs. and 18:00 Hrs. to 24:00 Hrs. of a day, which shall be the 'Peak Hours' for that day. These 6 hours shall be intimated by the Buying Entity on day-ahead basis and will constitute the Peak Hours for that day. All remaining hours outside these 6 Peak Hours chosen by the Buying Entity shall be referred to as 'Off-Peak Hours'. However, with respect to requisition of drawl Schedule, Buying Entity shall comply with CERC/SERC/Indian Electricity Grid Code (as and when implemented), regulations on Forecasting, Scheduling and Deviation Settlement, as applicable.

42.42 **"PEAK POWER"** shall mean the power supplied from the Project during Peak Hours.

42.43 **"POOLING SUBSTATION/POOLING POINT"** shall mean a point where more than one Project may connect to a common Transmission System. Multiple Projects can be connected to a pooling substation from where common transmission system shall be constructed and maintained by the RPD(s) to get connected to the ISTS substation. The voltage level for such common line shall be 220 kV or above. Further, the metering of the pooled power shall be done at the injection point, i.e. the ISTS substation. However, the voltage level of transmission system of individual projects up to the pooling substation may be at 33 kV and above. Sub-meters shall be installed at the pooling substation for metering and forecasting and scheduling of individual Projects. The losses in the common transmission system up to the injection point shall be apportioned to the individual Projects for the purpose of billing.

42.44 **"PGCIL"** or **"POWERGRID"** shall mean Powergrid Corporation of India Limited.

42.45 **"PPA"** shall mean the Power Purchase Agreement signed between the successful Bidder and SECI according to the terms and conditions of the standard PPA enclosed with this RfS.

42.46 **"PSA"** shall mean the Power Sale Agreement signed between SECI and Buying Entity according to the terms and conditions of the standard PSA enclosed with this RfS.

42.47 **"PROJECT" or "RENEWABLE POWER PROJECT" or "RE PROJECT"** shall mean the renewable energy generation facility owned by the RPD, comprising Solar Power Generating systems, Wind Power Generating systems, other renewable energy generating source(s) or a combination thereof, for supply of RE power, including ESS (which may be leased/tied-up from a third party), having single or multiple point(s) of injection into the grid at Interconnection/ Delivery/ Metering Point at ISTS/ InSTS substation, or in case of sharing of transmission lines, by separate injection at Pooling Point and having separate control systems and metering. The Project shall include all units/ modules, auxiliaries and associated facilities, bay(s) for transmission system in the their switchyard, transmission line up to the injection point and all the other assets, buildings/structures, equipment, plant and machinery, facilities and related assets required for the efficient and economic operation of the power generation facility, whether completed or at any stage of development and construction or intended to be developed and constructed for the purpose of supply of power to SECI. It may be noted that the sources of generation and ESS shall be co-located, to be considered as part of a single Project. In case a Project is located at multiple locations, the ESS component shall be required to be co-located with at least one such component. Further, it is clarified that ESS charged using a source other than RE power would not qualify as RE power.

42.48 **"PROJECT CAPACITY"** or **"INSTALLED CAPACITY"** shall mean the rated capacity of the installed Project components, i.e. Solar PV, Wind Power and any other RE generating components, along with ESS Components of the Project, as committed in the PPA. This shall be equal to the "installed capacity" for which connectivity is sought by the RPD under the GNA Regulations. The quantum of Installed Capacity (in MW), including that of the revised Installed Capacity, if any, shall be greater than or equal to the Contracted Capacity. For the purpose of submission of PBG and payment of Success Charges by the Successful Bidder/RPD, the Installed Capacity shall include the rated

capacity of the ESS component (in MWh), irrespective of the fact whether separate connectivity has been sought by the Successful Bidder/RPD for such ESS component or not.

42.49 **"PROJECT DEVELOPER"** or **"DEVELOPER"** or **"RE POWER DEVELOPER (RPD)"** shall mean the Bidding Company or a Bidding Consortium participating in the bid and having been selected and allocated a Project capacity by SECI (through a competitive bidding process), including the SPV formed by the selected bidder/ consortium for the purpose of setting up of the Project and signing of PPA with SECI and supplying power under the PPA.

42.50 **"PROJECT LOCATION(s)"** shall mean the area/areas identified by the RPD, comprising village(s), Tehsil(s)/Taluk(s) and District(s) within a State or States, where the Project is being implemented, and shall also include RE Parks being set up under the respective Guidelines.

42.51 **"PROMOTER"** shall mean Promoter as defined in the Companies Act, 2013.

42.52 **"RENEWABLE ENERGY (RE) POWER"** shall refer to power from Solar Power Generating Systems, Wind Power Generating Systems, Wind Solar hybrid, or any other renewable energy resource based Generating System or a combination thereof, with Energy Storage System (ESS). It is clarified that ESS charged using a source other than RE power would not qualify as RE Power.

42.53 **"RfS"** or **"RfS DOCUMENT"** or **"BIDDING DOCUMENT(S)"** or **"TENDER"** or **"TENDER DOCUMENTS"** shall mean the "Request for Selection" document issued by SECI including standard Power Purchase Agreement and standard Power Sale Agreement along with subsequent clarifications and amendments thereof, vide RfS No. SECI/C&P/IPP/13/0020/25-26 dated 10.03.2026.

42.54 **"ROUND-THE-CLOCK"** or **"RTC"** shall mean the 24-hour period of the day during which the energy as per Contracted Capacity shall be supplied by the RPD.

42.55 **"RE PARK"** shall refer to areas or parks developed, in accordance with the Guidelines issued by Central or State Governments, for setting-up of renewable energy power projects, including Solar-Wind Hybrid Power projects

42.56 **"SCHEDULED COMMENCEMENT OF SUPPLY DATE"** or **"SCSD"** shall be the date as indicated in Clause 9 of the RfS.

42.57 **"SECI"** shall mean Solar Energy Corporation of India Limited.

42.58 **"SELECTED BIDDER"** or **"SUCCESSFUL BIDDER"** shall mean the Bidder selected pursuant to this RfS to set up the Project and supply electrical output as per the terms of PPA.

42.59 **"SOLAR PV POWER PROJECT" or "SOLAR POWER GENERATING SYSTEM/ STATION"** shall mean the Solar Photo Voltaic Power Project that uses sunlight for direct conversion into electricity through Photo Voltaic Technology;

42.60 **"STATE TRANSMISSION UTILITY (STU)"** shall mean the Board or the Government Company notified by the respective State Government under Sub-Section I of Section 39 of the Electricity Act, 2003.

42.61 **"TOE"** shall mean Tender Opening Event.

42.62 **"TRADING MARGIN"** shall mean the margin on sale of RE power to the Buying Entity(ies) under this RfS being charged by SECI and shall be @ INR 0.07/kWh.

42.63 **"ULTIMATE PARENT"** shall mean a Company, which owns more than 50% voting rights and paid-up share capital, either directly or indirectly in the Parent and Affiliates.

42.64 **"WEEK"** shall mean calendar week.

42.65 **"WIND POWER PROJECT"** or **"WIND POWER GENERATING SYSTEMS/ STATIONS"** means the wind power project that uses wind energy for conversion into electricity through a wind turbine generator.

SECTION 7. SAMPLE FORMS & FORMATS FOR BID SUBMISSION

The following formats are required to be submitted as part of the RfS. These formats are designed to demonstrate the Bidder's compliance with the Qualification Requirements set forth in Section 4 and other submission requirements specified in the RfS.

Format 7.1

COVERING LETTER

(The Covering Letter should be submitted on the Letter Head of the Bidding Company/ Lead Member of Consortium)

Ref. No. _____ Date: _____

From: _____ *(Insert name and address of Bidding Company/ Lead Member of Consortium*)

Tel.#:

E-mail address#

To

Solar Energy Corporation of India Limited

6th Floor, Plate-B, NBCC Office Block Tower-2,

East Kidwai Nagar, New Delhi - 110 023

Sub: Response to RfS No. …….. dated …….. for ……. (Insert title of the RfS)

Dear Sir/ Madam,

We, the undersigned ……. *[Insert name of the 'Bidder']* having read, examined and understood in detail the RfS including Qualification Requirements in particular, terms and conditions of the standard PPA for supply of power for the Term of the PPA to SECI, hereby submit our response to RfS.

We confirm that in response to the aforesaid RfS, neither we nor any of our Ultimate Parent Company/ Parent Company/ Affiliate/ Group Company has submitted response to RfS other than this response to RfS, directly or indirectly, in response to the aforesaid RfS (as mentioned in Format 7.8 under Disclosure). (*strike out if not applicable*)

OR

We confirm that in the response to the aforesaid RfS, we have a Group Company who owns more than 10% but less than 26% in the bidding company as well as other companies who may participate in this RfS, and accordingly, we have submitted requisite undertaking as per Format 7.8A in this regard. (*strike out if not applicable*)

We also confirm that we including our Ultimate Parent Company/ Parent Company/ Affiliate/ Group Companies directly or indirectly have not submitted response to RfS for more than cumulative capacity of 500 MW, including this response to RfS.

We are submitting RfS for the development of following Project(s): -

Project No.	Contracted Capacity offered (MW)	Installed Capacity to be committed under the PPA (Rated capacities of respective components)	Location(s) of Project (Village, Tehsil, Dist., State)	Inter-connection Point(s) Details	Project preference*
1.		Solar PV component: ___ MW			
		Wind power component: ____ MW			
		Other RE power generating component: _____ MW			
		ESS component: ____ MW/____ MWh			
2.					

**(The preferences of the Projects shall be considered only for the last successful bidder whose total quoted capacity is more than the balance capacity. In this case, allocation will be done as described in Clause 40.4 of the RfS.)*

1. We give our unconditional acceptance to the RfS, dated …… *[Insert date in dd/mm/yyyy]*, standard PPA and PSA documents attached thereto, issued by SECI. In token of our acceptance to the RfS, PPA and PSA documents along with the amendments and clarifications issued by SECI, the same have been digitally signed by us and enclosed with the response to RfS. We shall ensure that the PPA is executed as per the provisions of the RfS and provisions of PPA and shall be binding on us. Further, we confirm that we will commence power supply from full Project capacity within the deadline as per Clause 9 of the RfS.

2. Earnest Money Deposit (EMD):- (*Please read Clause 16 carefully before filling*)
We have enclosed EMD of INR ……. (*Insert Amount*), in the form of Bank Guarantee no./ Payment on Order Instrument/Surety Bond No. ……. [*Insert bank guarantee/POI/Surety Bond number*] dated ……. [*Insert date of bank guarantee/POI/Surety Bond*] as per Format 7.3A/7.3B/7.3C from …… [*Insert name of bank providing bank guarantee/POI/Surety Bond issuing agency*] and valid up to…….in terms of Clause No. 16 of this RfS. The quoted Contracted Capacity of the RE Project offered by us is ……. MW [*Insert cumulative Contracted Capacity proposed*]. (*strike off whichever is not applicable*)

3. We hereby declare that in the event our Project(s) get selected and we are not able to submit Bank Guarantee/POI/Surety Bond of the requisite value(s) towards PBG, Success charge for the selected Projects, within due time as mentioned in Clause Nos. 17 & 18 of this RfS on issue of LoA by SECI for the selected Projects and/ or we are not able to sign PPA with SECI within the timeline as stipulated in the RfS for the

selected Projects, SECI shall have the right to encash the EMD submitted by us and return the balance amount (if any) for the value of EMD pertaining to unsuccessful capacity.

4. We hereby declare that the part/cumulative Contracted Capacity, for which the bid is being submitted by us, has already been commissioned by us, and for the same, we have not suo-moto terminated any already signed PPAs with Renewable Energy Implementing Agencies as identified by the MNRE and/or State-owned Distribution Company (DISCOM) for participating in this RfS under Clause 1.8 of the RfS (*applicable only in case of already commissioned Projects. Strike-off if not applicable).*

5. We hereby undertake that we shall give a rebate of Rs. 0.02/kWh to SECI in the payment of monthly bills to be made by SECI, as part of payment security mechanism charges under the PPA, to avail the benefits under the payment security mechanism as per PPA. (*Strike out if not accepted by the Bidder*)

6. We have submitted our response to RfS strictly as per Section 7 (Sample Forms and Formats) of this RfS, without any deviations, conditions and without mentioning any assumptions or notes in the said Formats.

7. We hereby declare that during the selection process, in the event our bid happens to be the last bid in the list of successful bids and SECI offers a capacity which is greater than or equal to 50% of our quoted capacity due to overall bid capacity limit, we shall accept such offered capacity.

8. **Acceptance:-**
We hereby unconditionally and irrevocably agree and accept that the decision made by SECI in respect of any matter regarding or arising out of the RfS shall be binding on us. We hereby expressly waive and withdraw any deviations from the provisions of the RfS and all claims in respect of this process.
We also unconditionally and irrevocably agree and accept that the decision made by SECI in respect of award of Projects according to our preference order as above and in line with the provisions of the RfS, shall be binding on us.

9. **Familiarity with Relevant Indian Laws & Regulations: -**
We confirm that we have studied the provisions of the relevant Indian Laws and Regulations as required to enable us to submit this response to RfS and execute the PPA, in the event of our selection as Successful Bidder.

10. In case of our selection as the Successful bidder under the scheme and the project being executed by a Special Purpose Vehicle (SPV) incorporated/ utilized by us which shall be our subsidiary, we shall infuse necessary equity to the requirements of RfS. Further we will submit a Board Resolution prior to signing of PPA with SECI, committing total equity infusion in the SPV as per the provisions of RfS.

11. We are submitting our response to the RfS with formats duly signed as desired by you in the RfS online for your consideration.

12. It is confirmed that our response to the RfS is consistent with all the requirements of submission as stated in the RfS, including all clarifications and amendments and subsequent communications from SECI.

13. The information submitted in our response to the RfS is correct to the best of our knowledge and understanding. We would be solely responsible for any errors or omissions in our response to the RfS.

14. We confirm that all the terms and conditions of our Bid are valid up to a period up to the date as on 12 months from the last date of submission of response to RfS. We confirm that in the event of issuance of LoA under the RfS, the tariff indicated in the LoA shall be valid until the signing of PPA, pursuant to Clause 41.5 of the RfS.

15. **Contact Person**

Details of the representative to be contacted by SECI are furnished as under:

Name : ……
Designation : ……
Company : ……
Address : ……
Phone Nos. : ……
Mobile Nos. : ……
E-mail address: ……

16. We have neither made any statement nor provided any information in this Bid, which to the best of our knowledge is materially inaccurate or misleading. Further, all the confirmations, declarations and representations made in our Bid are true and accurate. In case this is found to be incorrect after our selection as Successful Bidder, we agree that the same would be treated as a seller's event of default under PPA and consequent provisions of PPA shall apply.

Enclosure: Proof of SCD of the Interconnection Point in line with Clause 7.5 of the RfS.

Dated the_____day of_____, 20….

Thanking you,
We remain,
Yours faithfully,
Name, Designation, Seal and Signature of Authorized Person in whose name Power of Attorney/ Board Resolution/ Declaration.

Format 7.2

FORMAT FOR POWER OF ATTORNEY

(Applicable Only in case of Consortium)

(To be provided by each of the other members of the Consortium in favor of the Lead Member)
(*To be stamped in accordance with Stamp Act, the Non-Judicial Stamp Paper of Appropriate Value***)**

KNOW ALL MEN BY THESE PRESENTS THAT M/s……. having its registered office at ……., …., and M/s ……. having its registered office at ……., (Insert names and registered offices of all Members of the Consortium) the Members of Consortium have formed a Bidding Consortium named ……. (insert name of the Consortium if finalized) (hereinafter called the 'Consortium') vide Consortium Agreement dated……. and having agreed to appoint M/s……..…as the Lead Member of the said Consortium do hereby constitute, nominate and appoint M/s…….……..a company incorporated under the laws of ……..……and having its Registered/ Head Office at ……..…….as our duly constituted lawful Attorney (hereinafter called as Lead Member) to exercise all or any of the powers for and on behalf of the Consortium in regard to submission of the response to RfS No……..

We also authorize the said Lead Member to undertake the following acts:

i) To submit on behalf of Consortium Members response to RfS.
ii) To do any other act or submit any information and document related to the above response to RfS Bid.

It is expressly understood that in the event of the Consortium being selected as Successful Bidder, this Power of Attorney shall remain valid, binding and irrevocable until the Bidding Consortium achieves execution of PPA.

We as the Member of the Consortium agree and undertake to ratify and confirm all whatsoever the said Attorney/ Lead Member has done on behalf of the Consortium Members pursuant to this Power of Attorney and the same shall bind us and deemed to have been done by us.

IN WITNESS WHEREOF M/s ……., as the Member of the Consortium have executed these presents on this……. day of .....under the Common Seal of our company.

For and on behalf of Consortium Member

M/s…….

---------- (Signature of person authorized by the board)

(Name
Designation
Place:
Date:)

Accepted

(Signature, Name, Designation and Address
of the person authorized by the board of the Lead Member)

Attested

(Signature of the executant)

(Signature & stamp of Notary of the place of execution)

Place: ----------
Date: ----------

Format 7.3A

FORMAT FOR BANK GUARANTEE TOWARDS EARNEST MONEY DEPOSIT (EMD)

(*To be stamped in accordance with Stamp Act, the Non-Judicial Stamp Paper of Appropriate Value*)

Reference: …….
Bank Guarantee No.: .....…
Date: .....……...

In consideration of the _____ [*Insert name of the Bidder*] (hereinafter referred to as 'Bidder') submitting the response to RfS inter alia for Selection of RE Power Developers for Supply of 1000 MW of Round-The-Clock Thermal Mimic Power from ISTS-Connected Renewable Energy (RE) Power Projects in India under Tariff-based Competitive Bidding (SECI-RTC-TM-V) of the capacity of ……. MW [*Insert cumulative Contracted capacity proposed*] for supply of power therefrom on long term basis, in response to the RfS No. _____ dated _____ issued by Solar Energy Corporation of India Limited (hereinafter referred to as SECI) and SECI considering such response to the RfS of ……[*Insert the name of the Bidder*] as per the terms of the RfS, the _____ [*Insert name & address of bank*] hereby agrees unequivocally, irrevocably and unconditionally to pay to SECI at [*Insert Name of the Place from the address of SECI*] forthwith without demur on demand in writing from SECI or any Officer authorized by it in this behalf, any amount upto and not exceeding Rupees _____ [*Insert amount not less than that derived in line with Clause 16 of the RfS*], only, on behalf of M/s _____ [*Insert name of the Bidder*].

This guarantee shall be valid and binding on this Bank up to and including _____[*insert date of validity in accordance with Clause No. 16 of this RfS*] and shall not be terminable by notice or any change in the constitution of the Bank or the term of contract or by any other reasons whatsoever and our liability hereunder shall not be impaired or discharged by any extension of time or variations or alternations made, given, or agreed with or without our knowledge or consent, by or between parties to the respective agreement.

Our liability under this Guarantee is restricted to INR _____ (Indian Rupees _____ only). Our Guarantee shall remain in force until _____ [*insert date of validity in accordance with Clause No. 16 of this RfS*].

The Guarantor Bank hereby agrees and acknowledges that the SECI shall have a right to invoke this BANK GUARANTEE in part or in full, as it may deem fit.

The Guarantor Bank hereby expressly agrees that it shall not require any proof in addition to the written demand by SECI, made in any format, raised at the above-mentioned address of the Guarantor Bank, in order to make the said payment to SECI.

The Guarantor Bank shall make payment hereunder on first demand without restriction or conditions and notwithstanding any objection by _____ [*Insert name of the Bidder*] and/ or any other person. The Guarantor Bank shall not require SECI to justify the

invocation of this BANK GUARANTEE, nor shall the Guarantor Bank have any recourse against SECI in respect of any payment made hereunder.

This BANK GUARANTEE shall be interpreted in accordance with the laws of India and the courts at New Delhi shall have exclusive jurisdiction.

The Guarantor Bank represents that this BANK GUARANTEE has been established in such form and with such content that it is fully enforceable in accordance with its terms as against the Guarantor Bank in the manner provided herein.

This BANK GUARANTEE shall not be affected in any manner by reason of merger, amalgamation, restructuring or any other change in the constitution of the Guarantor Bank.

This BANK GUARANTEE shall be a primary obligation of the Guarantor Bank and accordingly SECI shall not be obliged before enforcing this BANK GUARANTEE to take any action in any court or arbitral proceedings against the Bidder, to make any claim against or any demand on the Bidder or to give any notice to the Bidder or to enforce any security held by SECI or to exercise, levy or enforce any distress, diligence or other process against the Bidder.

This BANK GUARANTEE shall be effective only when the Bank Guarantee issuance message is transmitted by the issuing Bank through SFMS to IDFC First Bank and a confirmation in this regard is received by SECI.

Notwithstanding anything contained hereinabove, our liability under this Guarantee is restricted to INR _____ (Indian Rupees _____ Only) and it shall remain in force until _____ [*Date to be inserted on the basis of Clause No. 16 of this RfS*]. SECI shall be entitled to invoke this Guarantee till _____ [*Insert a date which is at least 30 days beyond the expiry of the validity period on the basis of Clause No. 16 of this RfS*].

We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only if SECI serves upon us a written claim or demand.

Signature: _____

Name: _____

Power of Attorney No.: _____

For

_____ [*Insert Name and Address of the Bank*] __

Contact Details of the Bank:

E-mail ID of the Bank:

Banker's Stamp and Full Address.

Dated this ____ day of ____, 20__

Format 7.3 B

FORMAT OF PAYMENT ON ORDER INSTRUMENT TO BE ISSUED BY REC/PFC (IN LIEU OF BG TOWARDS EMD)

No. Date

SECI,

Registered

_____,

_____

Reg: M/s _____(*insert name of the Bidder*) – Issuance of Payment on Order Instrument for an amount of Rs._____

Dear Sir,

1. It is to be noted that M/s. _____(*insert name of the POI issuing Agency*) **('REC/PFC')** has sanctioned a non-fund based limit loan of Rs. _____ (Rupees_____only) to M/s _____ under the Loan Agreement executed on _____ to execute Renewable Energy Projects.

2. At the request of M/s _____, on behalf of _____(*insert name of the Bidder*), this Payment on Order Instrument (POI) for an amount of Rs. _____(Rupees_____(in words)). This Payment on Order Instrument comes into force immediately.

3. In consideration of the _____ [*Insert name of the Bidder*] (hereinafter referred to as 'Bidder') submitting the response to RfS inter alia for Selection of RE Power Developers for Supply of 1000 MW of Round-The-Clock Thermal Mimic Power from ISTS-Connected Renewable Energy (RE) Power Projects in India under Tariff-based Competitive Bidding (SECI-RTC-TM-V) of the capacity of ……. MW [*Insert cumulative Contracted capacity proposed*] for supply of power there from on long term basis, in response to the RfS No. _____ dated _____ issued by Solar Energy Corporation of India Limited (hereinafter referred to as SECI) and SECI considering such response to the RfS of ……[*insert the name of the Bidder*] as per the terms of the RfS, the _____ [*insert name & address of PFC/REC*] hereby agrees unequivocally, irrevocably and unconditionally to pay to SECI at [In*sert Name of the Place from the address of SECI*] forthwith without demur on demand in writing from SECI or any Officer authorized by it in this behalf, any amount upto and not exceeding Rupees _____ [*Insert amount as per Clause 16 of the RfS*], only, on behalf of M/s _____ [*Insert name of the Bidder*].

4. In consideration of the above facts, REC/PFC, having its registered office at _____, agrees to make payment for the sum of Rs. _____ lakhs (in words…….) to SECI on the following conditions: -

(a) REC/PFC agrees to make payment of the said amount unconditionally, without demur and without protest upon receipt of request from SECI within the validity period of this letter as specified herein;

(b) The commitment of REC/PFC, under this Payment of Order Instrument will have the same effect as that of the commitment under the Bank Guarantee issued by any Public Sector Bank and shall be enforceable in the same manner as in the case of a Bank Guarantee issued by a Bank and the same shall be irrevocable and shall be honored irrespective of any agreement or its breach between REC/PFC or its constituents notwithstanding any dispute that may be raised by them against SECI;

(c) The liability of REC/PFC continues to be valid and binding on REC/PFC and shall not be terminated, impaired and discharged, by virtue of change in its constitution and specific liability under letter of undertaking shall be binding on its successors or assignors;

(d) The liability of REC/PFC shall continue to be valid and binding on REC/PFC and shall not be terminated/ impaired/ discharged by any extension of time or variation and alternation made given or agreed with or without knowledge or consent of the parties (SECI and Bidding Party), subject to however to the maximum extent of amount stated herein and REC/PFC is not liable to any interest or costs etc;

(e) This Payment of Order Instrument can be invoked either partially or fully, till the date of validity;

(f) REC/PFC agrees that it shall not require any proof in addition to the written demand by SECI made in any format within the validity period. REC/PFC shall not require SECI to justify the invocation of the POI against the SPV/RPD, to make any claim against or any demand against the SPV/RPD or to give any notice to the SPV/RPD;

(g) The POI shall be the primary obligation of REC/PFC and SECI shall not be obliged before enforcing the POI to take any action in any court or arbitral proceedings against the SPV/RPD;

(h) Neither SECI is required to justify the invocation of this POI nor shall REC/PFC have any recourse against SECI in respect of the payment made under letter of undertaking;

5. Notwithstanding anything contrary contained anywhere in this POI or in any other documents, this POI is and shall remain valid upto_____ and REC/PFC shall make payment thereunder only if a written demand or request is raised within the said date and to the maximum extent of Rs……..and REC/PFC shall in no case, be liable for any interest, costs, charges and expenses and REC's/PFC's liability in no case will exceed more than the above amount stipulated. SECI shall be entitled to invoke this POI till _____ [*Insert a date which is at least 30 days beyond the expiry of the validity period on the basis of Clause No. 16 of this RfS*].

6. In pursuance of the above, REC/PFC and SECI have signed an Umbrella Agreement dated ____ setting out the terms and conditions for issue of letter of undertaking by REC/PFC to SECI and the said terms and conditions shall be read as a part of this letter of undertaking issued for the project of the project of PP mentioned above.

Thanking you,

Yours faithfully

For and on behalf of

M/s. _____

(name of the POI issuing agency).

( )

General Manager (TS)

Copy to:-

M/s. __PP_____

_____

_____ As per their request

( )

General Manager (TS)

Format 7.3 C

FORMAT OF INSURANCE SURETY BOND TOWARDS EMD

(To be stamped in accordance with stamp act of India)

Insurance Surety Bond No.:
Date:

To,
Solar Energy Corporation of India Limited,
6th Floor, Plate-B, NBCC Office Block Tower-2,
East Kidwai Nagar, New Delhi - 110 023

Dear Sir,
In accordance with your RfS No. …….dated ……., M/s ……[*Insert name of the Bidder]* having its Registered/Head Office at……. [*Insert address of the bidder*] (hereinafter referred to as 'bidder') wish to participate in the said bid for ……..[*Insert name of the RfS*].

As an irrevocable Insurance Surety Bond against Bid Security for an amount of ..... [*Insert amount not less than that derived in line with Clause No. 16 of the RfS*] valid for……[*insert date of validity in accordance with Clause No. 16 of this RfS*] required to be submitted by the bidder as a condition precedent for participation in the said bid which amount is liable to be forfeited on the happening of any contingencies as mentioned under the RfS Documents.

We, the……. [*Insert name of the 'Insurer'*] having our Head Office at ……..[*Insert address of the Insurer*] guarantee and undertake to pay immediately on demand by Solar Energy Corporation of India Limited (hereinafter referred to as 'SECI') the amount of ..... [*Insert amount not less than that derived in line with Clause 16 of the RfS*] without any condition, demur, reservation, contest, recourse or protest and/or without any reference to the Bidder. Any such demand made by SECI shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder and/or any right/remedy available to the Bidder in terms thereof.

This Insurance Surety Bond shall be unequivocal, unconditional as well as irrevocable and shall remain valid upto..... *[insert date of validity in accordance with Clause No. 16 of this RfS*]. If any further extension of this Insurance Surety Bond is required, the same shall be extended to such required period on receiving instructions from M/s ……[Insert name of the Bidder] on whose behalf this Insurance Surety Bond is issued.

The Insurer hereby agrees and acknowledges that the SECI shall have a right to invoke this Insurance Surety Bond in part or in full, as it may deem fit.

The Insurer hereby expressly agrees that it shall not require any proof in addition to the written demand by SECI, made in any format, raised at the above-mentioned address of the Insurer, in order to make the said payment to SECI.

The Insurer shall make payment hereunder on first demand without restriction or conditions and notwithstanding any objection by _____ *[Insert name of the Bidder]* and/ or any other person. The Insurer shall not require SECI to justify the invocation of this Insurance Surety Bond, nor shall the Insurer have any recourse against SECI in respect of any payment made hereunder. SECI shall be entitled to invoke this Bond till _____ [*Insert a date which is at least 30 days beyond the expiry of the validity period on the basis of Clause No. 16 of this RfS*].

This Insurance Surety Bond shall not be affected in any manner by reason of merger, amalgamation, restructuring or any other change in the constitution of the Insurer.

This Insurance Surety Bond shall be a primary obligation of the Insurer and accordingly SECI shall not be obliged before enforcing this Insurance Surety Bond to take any action in any court or arbitral proceedings against the Bidder, to make any claim against or any demand on the Bidder or to give any notice to the Bidder or to enforce any security held by SECI or to exercise, levy or enforce any distress, diligence or other process against the Bidder.

In witness where of the Insurer, through its authorized officer, has set its hand and stamp on this ..... day of ..... 20..... at .....

.....
(Signature)
.....
(Name)
.....
(Designation with Insurer Stamp)
Power of Attorney No.....
Date.....
Email id of the Branch for confirmation of this Bond: …….

NOTE:

1. The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI) as amended from time to time.
2. SECI shall be the Creditor, the bidder shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.
3. The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of bidder/Insurer issuing the Insurance Surety Bond.

Format 7.3 D

FORMAT FOR PERFORMANCE BANK GUARANTEE (PBG)

(To be submitted separately for each Project)
(*To be stamped in accordance with Stamp Act, the Non-Judicial Stamp Paper of Appropriate Value*)

Reference: …….
Bank Guarantee No.: .....…
Date: .....……..

In consideration of the _____ [*Insert name of the Bidder*] (hereinafter referred to as 'selected RE Power Developer' or 'RPD') submitting the response to RfS inter alia for …… [*Insert title of the* RfS] of the Contracted Capacity of ……. MW [*enter Contracted Capacity as per the PPA*] through setting up of ……MW [*Insert committed Installed Capacity as per the PPA*] of Installed Capacity, at ……..*[Insert name of the Project location(s)*], for supply of power there from on long term basis, in response to the RfS dated…… issued by Solar Energy Corporation of India Limited (hereinafter referred to as SECI) and SECI considering such response to the RfS of ……[*Insert name of the Bidder*] (which expression shall unless repugnant to the context or meaning thereof include its executers, administrators, successors and assignees) and selecting the Project of the RE Power Developer and issuing Letter of Award No. _____ to _____ (*Insert Name of selected RE Power Developer*) as per terms of RfS and the same having been accepted by the selected RPD resulting in a Power Purchase Agreement (PPA) to be entered into, for purchase of Power [from selected RE Power Developer or a Project Company, M/s _____ {a Special Purpose Vehicle (SPV) formed for this purpose}, if applicable].

As per the terms of the RfS, the _____ [*Insert name & address of Bank*] hereby agrees unequivocally, irrevocably and unconditionally to pay to SECI at [*Insert Name of the Place from the address of the SECI*] forthwith on demand in writing from SECI or any Officer authorised by it in this behalf, any amount up to and not exceeding Indian Rupees _____ [Total Value] only, on behalf of M/s _____ [*Insert name of the selected RE Power Developer/ Project Company*]

This guarantee shall be valid and binding on this Bank up to and including ……. and shall not be terminable by notice or any change in the constitution of the Bank or the term of contract or by any other reasons whatsoever and our liability hereunder shall not be impaired or discharged by any extension of time or variations or alternations made, given, or agreed with or without our knowledge or consent, by or between parties to the respective agreement.

Our liability under this Guarantee is restricted to INR _____ (Indian Rupees _____ only).

Our Guarantee shall remain in force until……. SECI shall be entitled to invoke this Guarantee till …….

The Guarantor Bank hereby agrees and acknowledges that SECI shall have a right to invoke this BANK GUARANTEE in part or in full, as it may deem fit.

The Guarantor Bank hereby expressly agrees that it shall not require any proof in addition to the written demand by SECI, made in any format, raised at the above mentioned address of the Guarantor Bank, in order to make the said payment to SECI.

The Guarantor Bank shall make payment hereunder on first demand without restriction or conditions and notwithstanding any objection by _____ [*Insert name of the selected RE Power Developer/ Project Company as applicable*] and/ or any other person. The Guarantor Bank shall not require SECI to justify the invocation of this BANK GUARANTEE, nor shall the Guarantor Bank have any recourse against SECI in respect of any payment made hereunder

This BANK GUARANTEE shall be interpreted in accordance with the laws of India and the courts at New Delhi shall have exclusive jurisdiction.

The Guarantor Bank represents that this BANK GUARANTEE has been established in such form and with such content that it is fully enforceable in accordance with its terms as against the Guarantor Bank in the manner provided herein.

This BANK GUARANTEE shall not be affected in any manner by reason of merger, amalgamation, restructuring or any other change in the constitution of the Guarantor Bank.

This BANK GUARANTEE shall be a primary obligation of the Guarantor Bank and accordingly SECI shall not be obliged before enforcing this BANK GUARANTEE to take any action in any court or arbitral proceedings against the selected RE Power Developer/ Project Company, to make any claim against or any demand on the selected RE Power Developer/ Project Company or to give any notice to the selected RE Power Developer/ Project Company or to enforce any security held by SECI or to exercise, levy or enforce any distress, diligence or other process against the selected RE Power Developer/ Project Company.

This BANK GUARANTEE shall be effective only when the Bank Guarantee issuance message is transmitted by the issuing Bank through SFMS to IDFC First Bank and a confirmation in this regard is received by SECI.

The Guarantor Bank acknowledges that this BANK GUARANTEE is not personal to SECI and may be assigned, in whole or in part, (whether absolutely or by way of security) by SECI to any entity to whom SECI is entitled to assign its rights and obligations under the PPA.

Notwithstanding anything contained hereinabove, our liability under this Guarantee is restricted to INR _____ (Indian Rupees _____ only) and it shall remain in force until ……. We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only if SECI serves upon us a written claim or demand. SECI shall be entitled to invoke this Guarantee till _____ [*Insert a date which is at least 30 days beyond the expiry of the validity period on the basis of Clause No. 17 of this RfS*].

Signature: _____
Name: _____
Power of Attorney No.: _____

For

_____ *[Insert Name and Address of the Bank*] __

Contact Details of the Bank:

E-mail ID of the Bank:

Banker's Stamp and Full Address.

Dated this ____ day of ____, 20__

Witness:

1. …….

Signature

Name and Address

2. …….

Signature

Name and Address

Notes:

1. The Stamp Paper should be in the name of the Executing Bank and of appropriate value.
2. The Performance Bank Guarantee shall be executed by an Indian branch of a Scheduled Commercial Bank as listed on the website of Reserve Bank of India (RBI), as applicable on the date of issuance of Bank Guarantee.

Format 7.3 E

FORMAT OF PAYMENT ON ORDER INSTRUMENT TO BE ISSUED BY REC/PFC (IN LIEU OF PBG)

No. Date

SECI, **Registered**

_____,

_____

Reg: M/s _____(insert name of the PPA signing entity) (Project No. _____(insert project ID issued by SECI) – Issuance of Payment on Order Instrument for an amount of Rs._____

Dear Sir,

1. It is to be noted that M/s. _____(insert name of the POI issuing Agency) **('REC/PFC')** has sanctioned a non-fund based limit loan of Rs. _____ (Rupees _____ only) to M/s _____ under the Loan Agreement executed on _____ to execute Renewable Energy Projects.

2. At the request of M/s _____, on behalf of _____ (insert name of the SPV), this Payment on Order Instrument (POI) for an amount of Rs. _____ (Rupees_____(in words)). This Payment on Order Instrument comes into force immediately.

3. In consideration of the ----- [Insert name of the Bidder] (hereinafter referred to as selected RE Power Developer') submitting the response to RfS inter alia for selection of Contracted Capacity of …….. MW through an Installed Capacity of ……..MW, at ……[Insert name of the Project location(s)] under RfS for _____(insert name of the RfS), for supply of power there from on long term basis, in response to the RfS dated…… issued by Solar Energy Corporation of India Ltd (hereinafter referred to as SECI) and SECI considering such response to the RfS of ……[insert the name of the selected RE Power Developer] (which expression shall unless repugnant to the context or meaning thereof include its executers, administrators, successors and assignees) and selecting the RE Power Project of the RE Power Developer (RPD) and issuing Letter of Award No ------- to (Insert Name of selected RE Power Developer) as per terms of RfS and the same having been accepted by the selected RPD resulting in a Power Purchase Agreement (PPA) to be entered into, for purchase of Power [from selected RE Power Developer or a Project Company, M/s ---------- {a Special Purpose Vehicle (SPV) formed for this purpose}, if applicable]. As per the terms of the RfS, the _____ [insert name & address of PFC/REC] hereby agrees unequivocally, irrevocably and unconditionally to pay to SECI at [Insert Name of the Place from the address of the SECI] forthwith on demand in writing from SECI or any Officer authorized by it in this behalf, any amount up to and not exceeding Rupees------ [Total Value] only, on behalf of M/s _____ [Insert name of the selected RE Power Developer / Project Company].

4. In consideration of the above facts, REC/PFC, having its registered office at _____, agrees to make payment for the sum of Rs. _____ lakhs (in words…….) to SECI on the following conditions:-
   (a) REC/PFC agrees to make payment of the said amount unconditionally, without demur and without protest upon receipt of request from SECI within the validity period of this letter as specified herein;
   (b) The commitment of REC/PFC, under this Payment of Order Instrument will have the same effect as that of the commitment under the Bank Guarantee issued by any Public Sector Bank and shall be enforceable in the same manner as in the case of a Bank Guarantee issued by a Bank and the same shall be irrevocable and shall be honored irrespective of any agreement or its breach between REC/PFC or its constituents notwithstanding any dispute that may be raised by the against SECI;
   (c) The liability of REC/PFC continues to be valid and binding on REC/PFC and shall not be terminated, impaired and discharged, by virtue of change in its constitution and specific liability under letter of undertaking shall be binding on its successors or assignors;
   (d) The liability of REC/PFC shall continue to be valid and binding on REC/PFC and shall not be terminated/ impaired/ discharged by any extension of time or variation and alternation made given or agreed with or without knowledge or consent of the parties (SECI and Bidding Party), subject to the however to the maximum extent of amount stated herein and REC/PFC is not liable to any interest or costs etc.;
   (e) This Payment of Order Instrument can be invoked either partially or fully, till the date of validity;
   (f) REC/PFC agrees that it shall not require any proof in addition to the written demand by SECI made in any format within the validity period. REC/PFC shall not require SECI to justify the invocation of the POI against the SPV/RPD, to make any claim against or any demand against the SPV/RPD or to give any notice to the SPV/RPD;
   (g) The POI shall be the primary obligation of REC/PFC and SECI shall not be obliged before enforcing the POI to take any action in any court or arbitral proceedings against the SPV/RPD;
   (h) Neither SECI is required to justify the invocation of this POI nor shall REC/PFC have any recourse against SECI in respect of the payment made under letter of undertaking;

5. Notwithstanding anything contrary contained anywhere in this POI or in any other documents, this POI is and shall remain valid upto_____ and REC/PFC shall make payment thereunder only if a written demand or request is raised within the said date and to the maximum extent of Rs……..and REC/PFC shall in no case, be liable for any interest, costs, charges and expenses and REC's/PFC's liability in no case will exceed more than the above amount stipulated. SECI shall be entitled to invoke this POI till _____ [*Insert a date which is at least 30 days beyond the expiry of the validity period on the basis of Clause No. 17 of this RfS*].

6. In pursuance of the above, REC/PFC and SECI have signed an Umbrella Agreement dated ____ setting out the terms and conditions for issue of letter of undertaking by

REC/PFC to SECI and the said terms and conditions shall be read as a part of this letter of undertaking issued for the project of the project of PP mentioned above.

Thanking you,

Yours faithfully
For and on behalf of
M/s. _____
(Name of the POI issuing agency).

( )
General Manager (TS)

Copy to:-

M/s. __PP_____

_____

_____ As per their request

( )
General Manager (TS)

Format 7.3 F

FORMAT OF INSURANCE SURETY BOND TOWARDS PERFORMANCE SECURITY

(To be stamped in accordance with stamp act of India)

Insurance Surety Bond No.:
Date:

To
Solar Energy Corporation of India Limited,
6th Floor, Plate-B, NBCC Office Block Tower-2,
East Kidwai Nagar, New Delhi - 110 023

Dear Sir,

In consideration of Solar Energy Corporation of India Limited (hereinafter referred to as 'SECI' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) having awarded to M/s..... [*Insert name of RE Power Developer*]..... with its Registered/Head Office at..... (Hereinafter referred to as the 'RE Power Developer' or 'RPD', which expression shall unless repugnant to the context or meaning thereof, include its successors administrators, executors and assigns), the Project of capacity of ….. MW for supply of power there from on long term basis, in response to the RfS No. ……. dated……, issued by SECI by issuing Letter of Award No. ……dated…….. and the same having been unequivocally accepted by the RPD, resulting into a Power Purchase Agreement (PPA) to be entered, for purchase of Power [from selected RE Power Developer or a Project Company, M/s ……. {a Special Purpose Vehicle (SPV) formed for this purpose}, if applicable] and the RPD having agreed to provide a Performance Guarantee of the amount up to and not exceeding Indian Rupees ……..[*Total Value*] only.

We ..... [*Name & Address of the Insurer*] ..... having its Head Office at ..... (hereinafter referred to as the 'Insurer', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay SECI unequivocally, irrevocably and unconditionally, on demand any and all amount to the extent of amount up to and not exceeding Indian Rupees _____ [*Total Value*] on behalf of M/s _____ [*Insert name of the selected RPD*] at any time up to ..... [*days/month/year*] without any condition, demur, reservation, contest, recourse or protest and/or without any reference to the RPD. Any such demand made by SECI on the Insurer shall be conclusive and binding notwithstanding any difference between the SECI and the RPD or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Insurer undertakes not to revoke this Insurance Surety Bond during its currency and or any period extended under the contract, without prior consent of SECI and further agrees that the guarantee herein contained shall be enforceable till SECI discharges this guarantee.

SECI shall have the fullest liberty, without affecting in any way the liability of the Insurer under this Insurance Surety Bond, from time to time to extend the performance of the Contract by the RPD for the purpose of which, the Insurer shall be liable to extend the validity of the present Insurance Surety Bond without any demur, condition, protest and the Insurer shall at no point in time have an option of revoking the same, SECI shall have the fullest liberty, without affecting this Insurance Surety Bond, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the RPD, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Power Purchase Agreement between SECI and RPD or any other course or remedy or security available to SECI.

The Insurer shall not be released of its obligations under these presents by any exercise by SECI of its liberty with reference to the aforesaid or any of them or by reason of any other act or forbearance or other acts of omission or commission on the part of SECI or any other indulgence shown by SECI or by any other matter or thing whatsoever which under law would, but for this provision, have the effect of relieving the Insurer.

The Insurer also agrees and undertakes that SECI at its option shall be entitled to enforce this Insurance Surety Bond against the Insurer as a Surety, in the first instance without proceeding against the RPD and notwithstanding any security or other guarantee that SECI may have in relation to the RPD's liabilities.

The Insurer hereby agrees and acknowledges that the SECI shall have a right to invoke this Insurance Surety Bond in part or in full, as it may deem fit.

The Insurer hereby expressly agrees that it shall not require any proof in addition to the written demand by SECI, made in any format, raised at the above-mentioned address of the Insurer, in order to make the said payment to SECI.

The Insurer shall make payment hereunder on first demand without restriction or conditions and notwithstanding any objection by _____ *[Insert name of the RPD]* and/ or any other person. The Insurer shall not require SECI to justify the invocation of this Insurance Surety Bond, nor shall the Insurer have any recourse against SECI in respect of any payment made hereunder.

This Insurance Surety Bond shall not be affected in any manner by reason of merger, amalgamation, restructuring or any other change in the constitution of the Insurer.

The Insurer acknowledges that this Insurance Surety Bond is not personal to SECI and may be assigned, in whole or in part, (whether absolutely or by way of security) by SECI to any entity to whom SECI is entitled to assign its rights and obligations under the RfS.

Notwithstanding anything contained hereinabove our liability under this Insurance Surety Bond is restricted to INR …….. (Indian Rupees …… only) and it shall remain in force up to and including ..... and shall be extended

from time to time for such period, as may be desired by M/s .....[*RPD's Name*] on whose behalf this Insurance Surety Bond has been given. SECI shall be entitled to invoke this Bond till _____ [*Insert a date which is at least 30 days beyond the expiry of the validity period on the basis of Clause No. 17 of this RfS*].

Dated this ..... day of ..... 20..... at.....

.....
(Signature)
.....
(Name)
.....
(Designation with Insurer stamp)
Email id of the Branch for confirmation of this Bond: …….
Authorized vide Power of Attorney No. .....
Date.....

WITNESS :
1.....
(Signature)
.....
(Name)
.....
(Official Address)
2. .....
(Signature)
.....
(Name)
.....
(Official Address)

Notes :

1. The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).
2. SECI shall be the Creditor, the RPD shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.
3. The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of RPD/Insurer issuing the Insurance Surety Bond.

Format 7.4

FORMAT FOR BOARD RESOLUTIONS

The Board, after discussion, at the duly convened Meeting on …… [*Insert date*], with the consent of all the Directors present and in compliance of the provisions of the Companies Act, 1956 or Companies Act 2013, as applicable, passed the following Resolution:

1. RESOLVED THAT Mr/Ms……., be and is hereby authorized to do on our behalf, all such acts, deeds and things necessary in connection with or incidental to our response to RfS vide RfS No. _____for _____(insert title of the RfS), including signing and submission of all documents and providing information/ response to RfS to Solar Energy Corporation of India Limited (SECI), representing us in all matters before SECI, and generally dealing with SECI in all matters in connection with our bid for the said Project. (***To be provided by the Bidding Company or the Lead Member of the Consortium***)

2. **FURTHER RESOLVED THAT** pursuant to the provisions of the Companies Act, 1956 or Companies Act, 2013, as applicable and compliance thereof and as permitted under the Memorandum and Articles of Association of the Company, approval of the Board be and is hereby accorded to invest total equity/investment in the Project. (***To be provided by the Bidding Company***)

[*Note: In the event the Bidder is a Bidding Consortium, in place of the above resolution at Sl. No. 2, the following resolutions are to be provided*]

FURTHER RESOLVED THAT pursuant to the provisions of the Companies Act, 1956 or Companies Act, 2013, as applicable and compliance thereof and as permitted under the Memorandum and Articles of Association of the Company, approval of the Board be and is hereby accorded to invest (-----%) equity [*Insert the % equity commitment as specified in Consortium Agreement*] in the Project. (**To be provided by each Member of the Bidding Consortium including Lead Member such that total equity is 100%**)

FURTHER RESOLVED THAT approval of the Board be and is hereby accorded to participate in consortium with M/s ---------- [*Insert the name of other Members in the Consortium*] and Mr/ Ms……., be and is hereby authorized to execute the Consortium Agreement. (***To be provided by each Member of the Bidding Consortium including Lead Member*)**

And

FURTHER RESOLVED THAT approval of the Board be and is hereby accorded to contribute such additional amount over and above the percentage limit (specified for the Lead Member in the Consortium Agreement) to the extent becoming necessary towards the total equity share in the Project Company, obligatory on the part of the Consortium pursuant to the terms and conditions contained in the Consortium Agreement dated …… executed by the Consortium as per the provisions of the RfS. [***To be passed by the Lead Member of the Bidding Consortium***]

Certified True Copy

(Signature, Name and Stamp of Company Secretary/ Director)

(ACS No./ DIN)

Notes:

1) This certified true copy should be submitted on the letterhead of the Company, signed by the Company Secretary/ Director.
2) The contents of the format may be suitably re-worded indicating the identity of the entity passing the resolution.
3) This format may be modified only to the limited extent required to comply with the local regulations and laws applicable to a foreign entity submitting this resolution. For example, reference to Companies Act, 1956 or Companies Act, 2013 as applicable may be suitably modified to refer to the law applicable to the entity submitting the resolution. However, in such case, the foreign entity shall submit an unqualified opinion issued by the legal counsel of such foreign entity, stating that the Board resolutions are in compliance with the applicable laws of the respective jurisdictions of the issuing Company and the authorizations granted therein are true and valid.

Format 7.5

FORMAT FOR CONSORTIUM AGREEMENT

(*To be stamped in accordance with Stamp Act, the Non-Judicial Stamp Paper of Appropriate Value*)

THIS Consortium Agreement ("Agreement") executed on this ___ Day of _____ Two Thousand _____ between M/s _____ [*Insert name of Lead Member*] a Company incorporated under the laws of _____ and having its Registered Office at _____ (hereinafter called the "**Member-1**", which expression shall include its successors, executors and permitted assigns) and M/s _____ a Company incorporated under the laws of _____ and having its Registered Office at _____ (hereinafter called the "**Member-2**", which expression shall include its successors, executors and permitted assigns), M/s _____ a Company incorporated under the laws of _____ and having its Registered Office at _____ (hereinafter called the "**Member-n**", which expression shall include its successors, executors and permitted assigns), [*The Bidding Consortium should list the details of all the Consortium Members*] for the purpose of submitting response to RfS and execution of Power Purchase Agreement (in case of award), against RfS No. _____dated _____issued by Solar Energy Corporation of India Limited (SECI) a Company incorporated under the Companies Act, 2013, and having its Registered Office at 6th Floor, Plate-B, NBCC Office Block Tower-2, East Kidwai Nagar, New Delhi - 110023

WHEREAS, each Member individually shall be referred to as the "Member" and all of the Members shall be collectively referred to as the "Members" in this Agreement.

WHEREAS SECI desires to purchase Power under RfS for _____ (insert title of the RfS);

WHEREAS, SECI had invited response to RfS vide its Request for Selection (RfS) dated _____

WHEREAS the RfS stipulates that in case response to RfS is being submitted by a Bidding Consortium, the Members of the Consortium will have to submit a legally enforceable Consortium Agreement in a format specified by SECI wherein the Consortium Members have to commit equity investment of a specific percentage for the Project.

NOW THEREFORE, THIS AGREEMENT WITNESSTH AS UNDER:

In consideration of the above premises and agreements all the Members in this Bidding Consortium do hereby mutually agree as follows:

1. We, the Members of the Consortium and Members to the Agreement do hereby unequivocally agree that Member-1 (M/s_____), shall act as the Lead Member as defined in the RfS for self and agent for and on behalf of Member-2, _____, Member-n and to submit the response to the RfS.

2. The Lead Member is hereby authorized by the Members of the Consortium and Members to the Agreement to bind the Consortium and receive instructions for and on their behalf.

3. Notwithstanding anything contrary contained in this Agreement, the Lead Member shall always be liable for the equity investment obligations of all the Consortium Members i.e. for both its own liability as well as the liability of other Members.

4. The Lead Member shall be liable and responsible for ensuring the individual and collective commitment of each of the Members of the Consortium in discharging all of their respective equity obligations. Each Member further undertakes to be individually liable for the performance of its part of the obligations without in any way limiting the scope of collective liability envisaged in this Agreement.

5. Subject to the terms of this Agreement, the share of each Member of the Consortium in the issued equity share capital of the Project Company is/shall be in the following proportion:

Name	**Percentage**
Member 1	---
Member 2	---
Member n	---
Total	100%

We acknowledge that after the execution of PPA, the combined shareholding in the SPV/Project Company shall not fall below 51% at any time prior to 1 (one) year after the SCSD, except with the prior approval of SECI.

6. The Lead Member, on behalf of the Consortium, shall inter alia undertake full responsibility for liaising with Lenders or through internal accruals and mobilizing debt resources for the Project, and ensuring that the Seller achieves Financial Closure and commencement of power supply in terms of the PPA.

7. In case of any breach of any equity investment commitment by any of the Consortium Members, the Lead Member shall be liable for the consequences thereof.

8. Except as specified in the Agreement, it is agreed that sharing of responsibilities as aforesaid and equity investment obligations thereto shall not in any way be a limitation of responsibility of the Lead Member under these presents.

9. It is further specifically agreed that the financial liability for equity contribution of the Lead Member shall not be limited in any way so as to restrict or limit its liabilities. The Lead Member shall be liable irrespective of its scope of work or financial commitments.

10. This Agreement shall be construed and interpreted in accordance with the Laws of India and courts at New Delhi alone shall have the exclusive jurisdiction in all matters relating thereto and arising thereunder.

11. It is hereby further agreed that in case of being selected as the Successful Bidder, the Members do hereby agree that they shall furnish the Performance Guarantee in favour of SECI in terms of the RfS.

12. It is further expressly agreed that the Agreement shall be irrevocable and shall form an integral part of the Power Purchase Agreement (PPA) and shall remain valid until the expiration or early termination of the PPA in terms thereof, unless expressly agreed to the contrary by SECI.

13. The Lead Member is authorized and shall be fully responsible for the accuracy and veracity of the representations and information submitted by the Members respectively from time to time in the response to RfS.

14. It is hereby expressly understood between the Members that no Member at any given point of time, may assign or delegate its rights, duties or obligations under the PPA except with prior written consent of SECI.

15. This Agreement

    a) has been duly executed and delivered on behalf of each Member hereto and constitutes the legal, valid, binding and enforceable obligation of each such Member;
    b) sets forth the entire understanding of the Members hereto with respect to the subject matter hereof; and
    c) may not be amended or modified except in writing signed by each of the Members and with prior written consent of SECI.

16. All the terms used in capitals in this Agreement but not defined herein shall have the meaning as per the RfS and PPA.

IN WITNESS WHEREOF, the Members have, through their authorized representatives, executed these present on the Day, Month and Year first mentioned above.

For M/s---------- [Member 1]

(Signature, Name & Designation of the person authorized vide Board Resolution Dated _____)

Witnesses:

1) Signature----------	2) Signature ----------
Name:	Name:
Address:	Address:

For M/s---------- [Member 2]

(Signature, Name & Designation of the person authorized vide Board Resolution Dated _____)

Witnesses:

1) Signature ----------	2) Signature ----------
Name:	Name:
Address:	Address:

For M/s---------- [Member n]

(Signature, Name & Designation of the person authorized vide Board Resolution Dated _____)

Witnesses:

1) Signature ----------	(2) Signature ----------
Name:	Name:
Address:	Address:

_____

Signature and stamp of Notary of the place of execution

Format 7.6

FORMAT FOR FINANCIAL REQUIREMENT

(This should be submitted on the Letter Head of the Bidding Company/ Lead Member of Consortium)

Ref. No. _____ Date: _____

From: _____ *(Insert name and address of Bidding Company/ Lead Member of Consortium*)

_____

_____

Tel.#:

E-mail address#

To
Solar Energy Corporation of India Limited
6th Floor, Plate-B, NBCC Office Block Tower-2,
East Kidwai Nagar, New Delhi - 110 023

Sub: Response to RfS No. _____ dated _____ for _____.

Dear Sir/ Madam,

We certify that the Bidding Company/Member in a Bidding Consortium is meeting the financial eligibility requirements as per the provisions of the RfS. Accordingly, the Bidder, with the support of its Affiliates, (strike out if not applicable) is fulfilling the minimum Net Worth criteria, by demonstrating a Net Worth of Rs…….. Cr. (…… in words) as on the last date of Financial Year 2024-25 or as on the date at least 7 days prior to the bid submission deadline (Strike out wherever not applicable).

This Net Worth has been calculated in accordance with instructions provided in Clause 35.1 of the RfS.

Exhibit (i): Applicable in case of Bidding Company

For the above calculations, we have considered the Net Worth by Bidding Company and/ or its Affiliate(s) as per following details:

Name of Bidding Company	Name of Affiliate(s) whose net worth is to be considered	Relationship with Bidding Company*	Net Worth (in Rs. Crore)
Company 1			
Total			

**The column for "Relationship with Bidding Company" is to be filled only in case the financial capability of Affiliate has been used for meeting Qualification Requirements. Further, documentary*

evidence to establish the relationship, duly certified by a practicing company secretary/ chartered accountant is required to be attached with the format.

Exhibit (ii): Applicable in case of Bidding Consortium
(To be filled by each Member in a Bidding Consortium separately)
Name of Member: [*Insert name of the Member*]

Net Worth Requirement to be met by Member: INR ---------- Crore

For the above calculations, we have considered Net Worth by Member in Bidding Consortium and/ or its Affiliate(s) per following details:

Name of Consortium Member Company	Name of Affiliate(s) whose net worth is to be considered	Relationship with Bidding Company* (if any)	Net Worth (in Rs. Crore)
Company 1			

Total			

** The column for "Relationship with Bidding Company" is to be filled only in case the financial capability of Affiliate has been used for meeting Qualification Requirements. Further, documentary evidence to establish the relationship, duly certified by a practicing company secretary/chartered accountant is required to be attached with the format*

Further, we certify that the Bidding Company/ Member in the Bidding Consortium, with the support of its Affiliates, (strike out if not applicable) is fulfilling the minimum Annual Turnover Criteria, by demonstrating an Annual Turnover of INR _____ (_____in words) as on the end of Financial Year 2024-25 or as on the day at least 7 days prior to the bid submission deadline (choose one). (Strike out if not applicable)

Exhibit (i): Applicable in case of Bidding Company

For the above calculations, we have considered the Annual Turnover by Bidding Company and/ or its Affiliate(s) as per following details:

Name of Bidding Company	Name of Affiliate(s) whose Annual Turnover is to be considered	Relationship with Bidding Company*	Annual Turnover (In Rs. Crore)
Company 1			
Total			

**The column for "Relationship with Bidding Company" is to be filled only in case the financial capability of Affiliate has been used for meeting Qualification Requirements. Further, documentary evidence to establish the relationship, duly certified by a practicing company secretary/chartered accountant is required to be attached with the format.*

Exhibit (ii): Applicable in case of Bidding Consortium
(To be filled by each Member in a Bidding Consortium separately)
Name of Member: [*Insert name of the Member*]

Annual Turnover Requirement to be met by Member: INR ----------Crore

For the above calculations, we have considered Annual Turnover by Member in Bidding Consortium and/ or its Affiliate(s) as per following details:

Name of Consortium Member Company	Name of Affiliate(s) whose Annual Turnover is to be considered	Relationship with Bidding Company* (if any)	Annual Turnover (in Rs. Crore)
Company 1			

Total			

** The column for "Relationship with Bidding Company" is to be filled only in case the financial capability of Affiliate has been used for meeting Qualification Requirements. Further, documentary evidence to establish the relationship, duly certified by a practicing company secretary/chartered accountant is required to be attached with the format*

Further, we certify that the Bidding Company/ Member in the Bidding Consortium, with the support of its Affiliates, (strike out if not applicable) is fulfilling the minimum Profit Before Depreciation Interest and Taxes (PBDIT) criteria as mentioned in the RfS, by demonstrating a PBDIT of INR _____(in words) as on the end of Financial Year 2024-25 or as on the day at least 7 days prior to the bid submission deadline. (Strike out if not applicable)

Exhibit (i): Applicable in case of Bidding Company

For the above calculations, we have considered the PBDIT by Bidding Company and/ or its Affiliate(s) as per following details:

Name of Bidding Company	Name of Affiliate(s) whose PBDIT is to be considered	Relationship with Bidding Company*	PBDIT (in Rs. Crore)
Company 1			
Total			

**The column for "Relationship with Bidding Company" is to be filled only in case the financial capability of Affiliate has been used for meeting Qualification Requirements. Further, documentary evidence to establish the relationship, duly certified by a practicing company secretary/chartered accountant is required to be attached with the format.*

Exhibit (ii): Applicable in case of Bidding Consortium
(To be filled by each Member in a Bidding Consortium separately)
Name of Member: [*Insert name of the Member*]

PBDIT Requirement to be met by Member: INR ----------Crore

For the above calculations, we have considered PDBIT by Member in Bidding Consortium and/ or its Affiliate(s) as per following details:

Name of Consortium Member Company	Name of Affiliate(s) whose PBDIT is to be considered	Relationship with Bidding Company* (if any)	PDBIT (in Rs. Crore)
Company 1			

Total			

** The column for "Relationship with Bidding Company" is to be filled only in case the financial capability of Affiliate has been used for meeting Qualification Requirements. Further, documentary evidence to establish the relationship, duly certified by a practicing company secretary/chartered accountant is required to be attached with the format*

(Signature & Name of the Authorized Signatory) **(Signature and Stamp of CA)**

Membership No.
Regn. No. of the CA's Firm:
UDIN:

Date:

Note: (i) Along with the above format, in a separate sheet on the letterhead of the Chartered Accountant's Firm, provide details of computation of Net Worth and Annual Turnover/PBDIT (as applicable) duly certified by the Chartered Accountant.

(ii) Certified copies of Balance sheet, Profit & Loss Account, Schedules and Cash Flow Statements are to be enclosed in complete form along with all the Notes to Accounts.

(iii) In case of the Bidder choosing to meet the Liquidity criteria through an In-principle sanction letter, such document shall be separately submitted by the bidder as part of the bidder's Response to RfS.

Format 7.7

UNDERTAKING

(To be submitted on the letterhead of the Bidding Company/each Member of the Consortium)

We, hereby provide this undertaking to Solar Energy Corporation of India Limited, in respect to our response to RfS vide RfS No. _____ dated _____, that as on _____ [Insert last date of bid submission], M/s _____ (insert name of the Bidder), or any of its Affiliates is not a willful defaulter to any lender.

We further undertake that as on _____ [Insert last date of bid submission], M/s _____ (insert name of the Bidder) & any of its Affiliate including any Consortium Member & any of its Affiliate, their directors have not been barred or included in the blacklist by any government agency or authority in India, the government of the jurisdiction of the Bidder or Members where they are incorporated or the jurisdiction of their principal place of business, any international financial institution such as the World Bank Group, Asian Development Bank, African Development Bank, Inter-American Development Bank, Asian Infrastructure Investment Bank etc., or the United Nations or any of its agencies.

(Name and Signature of the Authorized Signatory)

Format 7.8

FORMAT FOR DISCLOSURE

(To be submitted on the Letter Head of the Bidding Company/ Each Member of Consortium)

DISCLOSURE

Ref. No. _____ Date: _____

From: _____ *(Insert name and address of Bidding Company/ Lead Member of Consortium*)
Tel. #:
E-mail address#
To
(Enter Address of SECI)

Sub: Response to RfS No. _____ dated _____ for _____.

Dear Sir/ Madam,

We hereby declare and confirm that only we are participating in the RfS Selection process for the RfS No._____ and that our Parent, Affiliate or Ultimate Parent or any Group Company with which we have direct or indirect relationship are not separately participating in this selection process.

We further declare and confirm that in terms of the definitions of the RfS, M/s _____ (enter name of the Promoter/Promoters) is/are our Promoter(s), and has/have a direct/indirect Control in the bidding company as per the Companies Act 2013. No other entity has a direct/indirect control in the bidding company except the entity(ies) mentioned above.

We further declare that the above statement is true & correct. We undertake that if at any stage it is found to be incorrect, in addition to actions applicable under the RfS/PPA including but not limited to cancellation of our response to this RfS and LoA/PPA as applicable, we, i.e. M/s _____(enter name of the bidding company/member in a consortium), including our Parent, Ultimate Parent, and our Affiliates shall be suspended/debarred from participating in any of the upcoming tenders issued by SECI for a period of 2 years from the date of default as notified by SECI.

We also understand that the above is in addition to the penal consequences that may follow from the relevant laws for the time being in force.

We further declare that we have read the provisions of Clause 33.4 of the RfS, and are complying with the requirements as per the referred OM dated 23.02.2023 except Sl. 17 of the OM, including subsequent amendments and clarifications thereto. Accordingly, we are also enclosing necessary certificates (Annexure to this format) in support of the above compliance under the RfS. We understand that in case of us being selected under this RfS, any of the above certificates is found false, SECI shall take appropriate action as deemed necessary.

We further declare that we are fully aware of the binding provisions of the ALMM Order and the Lists(s) thereunder, while quoting the tariff in RfS for _____ (Enter the name of the RfS).

We further understand that the solar PV modules and solar PV cells used in the Projects under this RfS shall be from the models and manufacturers included in ALMM List-I (for solar PV modules) and ALMM List-II (for solar PV cells) as published by MNRE and valid as on the date of invoicing of such modules.

We also further understand and accept that we shall be liable for penal action, including but not limited to blacklisting and invocation of Performance Bank Guarantee, if we are found not complying with the provisions of ALMM Order, including those mentioned above.

Dated the_____day of_____, 20___.
Thanking you,
We remain,
Yours faithfully,
Name, Designation, Seal and Signature of Authorized Person in whose name Power of Attorney/ Board Resolution/ Declaration.

Format 7.8A

FORMAT FOR DISCLOSURE

(To be submitted on the Letter Head of the Bidding Company/ Each Member of Consortium)

(To be submitted by all such bidders in which a common Company/companies directly/indirectly own(s) more than 10% but less than 26% shareholding)

DISCLOSURE

Ref. No. _____ Date: _____

From: _____ *(Insert name and address of Bidding Company/ Lead Member of Consortium*)
Tel. #:
E-mail address#
To
Solar Energy Corporation of India Limited
6th Floor, Plate-B, NBCC Office Block Tower-2,
East Kidwai Nagar, New Delhi - 110 023

Sub: Response to RfS No. _____ dated _____ for _____.

Dear Sir/ Madam,

We hereby declare and confirm that in terms of the definitions of the RfS, M/s _____ (enter name of the common shareholder) is our Group Company, and has a direct/indirect shareholding of less than 26% in the bidding company. M/s _____ (enter name of the common shareholder) also holds directly/indirectly less than 26% shareholding in other Companies which may participate in this RfS, i.e. RfS No._____.

We undertake that M/s _____(enter name of the above common shareholder) is not a party to the decision-making process for submission of response to this RfS by M/s _____ (enter name of the bidding company/member in the consortium). We further undertake that while undertaking any action as part of our response to RfS, we are not complicit with other such bidders participating in this RfS, in which M/s _____ (enter name of the common shareholder) has less than 26% direct/indirect shareholding, if any.

We further declare and confirm that in terms of the definitions of the RfS, M/s _____ (enter name of the Promoter/Promoters) is/are our Promoter(s), and has/have a direct/indirect Control in the bidding company as per the Companies Act 2013. No other entity has a direct/indirect control in the bidding company except the entity(ies) mentioned above.

We further declare that the above statement is true & correct. We undertake that if at any stage it is found to be incorrect, in addition to actions applicable under the RfS/PPA including but not limited to cancellation of our response to this RfS and LoA/PPA as applicable, we, i.e. M/s _____(enter name of the bidding company/member in a consortium), including our Parent, Ultimate Parent, and our Affiliates shall be suspended/debarred from participating in any of the upcoming tenders issued by SECI for a period of 2 years from the date of default as notified by SECI.

We also understand that the above is in addition to the penal consequences that may follow from the relevant laws for the time being in force.

We further declare that we have read the provisions of Clause 33.4 of the RfS, and are complying with the requirements as per the referred OM dated 23.02.2023 except Sl. 17 of the OM, including subsequent amendments and clarifications thereto. Accordingly, we are also enclosing necessary certificates (Annexure to this format) in support of the above compliance under the RfS. We understand that in case of us being selected under this RfS, any of the above certificates is found false, SECI shall take appropriate action as deemed necessary.

We further declare that we are fully aware of the binding provisions of the ALMM Order and the Lists(s) thereunder, while quoting the tariff in RfS for _____ (Enter the name of the RfS).

We further understand that the solar PV modules and solar PV cells used in the Projects under this RfS shall be from the models and manufacturers included in ALMM List-I (for solar PV modules) and ALMM List-II (for solar PV cells) as published by MNRE and valid as on the date of invoicing of such modules.

We also further understand and accept that we shall be liable for penal action, including but not limited to blacklisting and invocation of Performance Bank Guarantee, if we are found not complying with the provisions of ALMM Order, including those mentioned above.

Dated the_____day of_____, 20___.
Thanking you,
We remain,
Yours faithfully,
Name, Designation, Seal and Signature of Authorized Person in whose name Power of Attorney/ Board Resolution/ Declaration.

Annexure to Format 7.8/7.8A

DECLARATION

RESTRICTION ON PROCUREMENT FROM CERTAIN COUNTRIES:
MoF OM No. F.7/10/2021-PPD(1) dated 23.02.2023

(To be submitted on the Letter Head of the Bidding Company/ Each Member of Consortium)

Ref. No. _____ Date: _____

From: _____ *(Insert name and address of Bidding Company/Member of Consortium*)

_____

_____

Tel#:

E-mail address#

To

Solar Energy Corporation of India Limited

6th Floor, Plate-B, NBCC Office Block Tower-2,

East Kidwai Nagar, New Delhi - 110 023

Sub: Response to RfS No …… dated …….. for the tender for ……

Dear Sir/ Madam,

This is with reference to attached order vide OM No. F.7/10/2021-PPD(1) dated 23.02.2023 including subsequent amendments and clarifications thereto issued by Department of Expenditure, Ministry of Finance, Govt of India.

We are hereby submitting the following declaration in this regard:

"I/ We have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfils all requirements in this regard and is eligible to be considered. Where applicable, evidence of valid registration by the Competent Authority shall be attached."

We further declare that the above statement is true & correct. We are aware that if at any stage it is found to be incorrect, our response to the tender will be rejected.

Dated the_____day of_____, 20….

Thanking you,

We remain,

Yours faithfully,

Encl: OM dated 23.02.2023, as referred above.

Name, Designation, Seal and Signature of Authorized Person in whose name Power of Attorney/ Board Resolution/ Declaration.

Format 7.9

INTEGRITY PACT

(The scanned version of the format, duly signed by SECI's authorized signatory, is available on the ETS portal as addendum to the RfS. Bidders are required to submit duly signed and stamped scanned copy of the document available on ETS portal. In the case of Consortium, this document is to be duly signed and stamped by all the members of the Consortium)

Format 7.10

FORMAT FOR SUBMISSION OF FINANCIAL BID

(The Covering Letter should be submitted on the Letter Head of the Bidding Company/ Lead Member of Consortium)

Ref. No. _____ Date: _____

From: _____ *(Insert name and address of Bidding Company/ Lead Member of Consortium*)

_____

_____

Tel.#:
E-mail address#
To
Solar Energy Corporation of India Limited
6th Floor, Plate-B, NBCC Office Block Tower-2,
East Kidwai Nagar, New Delhi - 110 023

Sub: Response to RfS No. _____ dated _____ for _____.

Dear Sir/ Madam,

I/We, _____ (*Insert Name of the Bidder*) enclose herewith the Financial Proposal for selection of my/ our firm for a Contracted Capacity of ____ MW in India as Bidder for the above.

I/We agree that this offer shall remain valid for a period of 12 months from the due date of submission of the response to RfS and until the date of signing of PPA, pursuant to Clause 42.4 of the RfS, and such further period as may be mutually agreed upon.

Dated the_____day of_____, 20__.

Thanking you,
We remain,
Yours faithfully,

Name, Designation, Seal and Signature of Authorized Person in whose name Power of Attorney/ Board Resolution/ Declaration.

Notes:

1. *There can be only one tariff for all the projects applied for. If the Bidder quotes two tariffs or combination thereof for the projects, then the bid shall be considered as non-responsive.*

2. *If the Bidder submits the financial bid in the Electronic Form at ETS portal not in line with the instructions mentioned therein, then the bid shall be considered as non-responsive.*

3. *Tariff requirement shall be quoted as a fixed amount in Indian Rupees only. Conditional proposal shall be summarily rejected.*

4. *In the event of any discrepancy between the values entered in figures and in words, the values entered in words shall be considered.*

5. *Tariff should be in Indian Rupee up to two decimal places only.*

Format 7.11

PRELIMINARY ESTIMATE OF COST OF RE POWER PROJECT

(Disclaimer: It is clarified that the data submitted as part of this Format is for SECI's records only, and will have no bearing on the RPD's claims against Change in Law or any other provisions of the PPA)

Contracted Capacity: ……. MW
Location: …….

Bidder may use any format to provide the break-up.

Dated the_____day of_____, 20….

Thanking you,
We remain,
Yours faithfully,

Name, Designation, Seal and Signature of Authorized Person in whose name Power of Attorney/ Board Resolution/ Declaration.

Annexure - A

TECHNICAL PARAMETER OF PV MODULE AND VARIOUS OTHER COMPONENTS FOR USE IN GRID CONNECTED SOLAR POWER PLANTS

The Project selected under the RfS shall strictly adhere to the Central Electricity Authority (Technical Standards for Connectivity to the Grid) Regulations, 2007, as amended vide the Central Electricity Authority (Technical Standards for Connectivity to the Grid) (Amendment) Regulations, 2019, and subsequent amendments and clarifications.

All components of the PV plant shall be in accordance with technical specifications given in relevant IS/ IEC Standards. The design and commissioning also shall be as per latest IS/ IEC standards. The following are some of the technical measures required to ensure quality of the major components used in grid connected solar power Projects.

1. SPV MODULES

a. The SPV modules used in the grid solar power Projects must qualify to the latest edition of any of the following IEC PV module qualification test or equivalent BIS standards.

Crystalline Silicon Solar Cell Modules	IEC 61215
Thin Film Modules	IEC 61646
Concentrator PV modules	IEC 62108

b. In addition, SPV modules must qualify to IEC 61730 for safety qualification testing at 1000 V DC or higher. The modules to be used in a highly corrosive atmosphere throughout their lifetime must qualify to IEC 61701.

2. POWER CONDITIONERS/ INVERTERS

The Power Conditioners/Inverters of the SPV power plants must conform to the latest edition of IEC/ equivalent Indian Standards as specified below:

Efficiency Measurements	IEC 61683
Environmental Testing	IEC 60068-2/ IEC 62093
Electromagnetic Compatibility (EMC)	IEC 61000-6-2, IEC 61000-6-4 & other relevant parts of IEC 61000
Electrical Safety	IEC 62103/ 62109-1&2
Anti-Islanding Protection	IEEE1547/IEC 62116/ UL1741 or equivalent BIS Standards

3. OTHER SUB-SYSTEMS/ COMPONENTS

Other subsystems/ components used in the SPV Power Plants (Cables, Connectors, Junction Boxes, Surge Protection Devices etc.) must also conform to the relevant international/national Standards for Electrical Safety besides that for Quality required for ensuring Expected Service Life and Weather Resistance. It is recommended that the Cables of 600-1800 Volts DC for outdoor installations should comply with the BS EN 50618:2014/2pfg 1169/08.2007 for service life expectancy of 25 years.

4. AUTHORIZED TEST CENTRES

The PV modules/ Power Conditioners deployed in the Power Plants must have valid test certificates for their qualification as per above specified IEC/ BIS Standards by one of the NABL Accredited Test Centres in India. In case of module types like Thin Film and CPV / equipment for which such Test facilities may not exist in India at present, test certificates from reputed ILAC Member body accredited Labs abroad will be acceptable.

5. WARRANTY

- PV modules used in grid connected solar power plants must be warranted for peak output wattage, which should not be less than 90% at the end of 10 years and 80% at the end of 25 years.
- The modules shall be warranted for at least 10 years for failures due to material defects and workmanship.
- The mechanical structures, electrical works and overall workmanship of the grid solar power plants must be warranted for a minimum of 5 years.
- The Inverters/ PCUs installed in the solar power plant must have a warranty for 5 years**.**

6. IDENTIFICATION AND TRACEABILITY

Each PV module used in any solar power Project must use a RF identification tag. The following information must be mentioned in the RFID used on each module (This can be inside or outside the laminate, but must be able to withstand harsh environmental conditions):

i. Name of the manufacturer of PV Module
ii. Name of the Manufacturer of Solar cells
iii. Month and year of the manufacture (separately for solar cells and module)
iv. Country of origin (separately for solar cells and module)
v. I-V curve for the module at Standard Test Condition (1000 W/m2, AM 1.5, 250C)
vi. Wattage, Im, Vm and FF for the module
vii. Unique Serial No. and Model No. of the module
viii. Date and year of obtaining IEC PV module qualification certificate
ix. Name of the test lab issuing IEC certificate
x. Other relevant information on traceability of solar cells and module as per ISO 9000

Site owners would be required to maintain accessibility to the list of Module IDs along with the above parametric data for each module.

7. PERFORMANCE MONITORING

All grid solar PV power projects must install necessary equipment to continuously measure solar radiation, ambient temperature, wind speed and other weather parameters and simultaneously measure the generation of DC power as well as AC power generated from the plant. They will be required to submit this data to Procurer and MNRE or any other designated agency on line and/or through a report on regular basis every month for the entire duration of PPA. In this regard they shall mandatorily also grant access to Procurer and MNRE or any other designated agency to the remote monitoring portal of the power plants on a 24x7 basis.

8. SAFE DISPOSAL OF SOLAR PV MODULES

The developers will comply with the requirements under Hazardous & other Waste (Management and Transboundary Movement) Rules, 2016, as amended from time to time, as applicable. They will also ensure that all Solar PV modules and ESS components, if any, from their plant after their 'end of life' (when they become defective/ non-operational/ nonrepairable) are disposed of in accordance with the "e-waste (Management and Handling) Rules, 2011" notified by the Government and as revised and amended from time to time.

9. CAPACITY OF SOLAR PV PROJECTS

i) The rated capacity to be installed shall be considered as minimum DC Arrays Capacity and maximum AC Capacity at the delivery point as described below:

Sr. No.	Solar PV Project Capacity Bid	Minimum DC Arrays Capacity to be installed	Minimum Rated Inverter Capacity	Maximum AC Capacity Limit at Delivery point
1	50 MW	50 MW	50 MW	50 MW

ii) Higher DC capacity arrays so as to achieve AC capacity limit as mentioned above for scheduling at the delivery point in compliance to Article 4.4 "Right to Contracted Capacity & Energy" of the PPA is allowed.

iii) For commissioning of the Project, capacity of DC arrays installed shall be considered in multiple of 10 MW per unit. In case of part commissioning of 20 MW Project, each unit shall be required to have minimum 10 MW DC Arrays Capacity be installed.

iv) Provisions of Article 4.6.1 of the PPA with RPD shall apply for the capacity not commissioned by the scheduled commissioning date.

If generation at any time exceeds the maximum permissible AC capacity at delivery point, the excess generation during that period shall not be considered under PPA.

Appendix - A1

TECHNICAL AND REGULATORY REQUIREMENTS TO BE FOLLOWED FOR BATTERY ENERGY STORAGE SYSTEMS

1. Codes and Standards

The BESS shall comply with the following Codes and Standards or equivalent Indian Standards, as applicable:

Standard/ Code (or equivalent Indian Standards)	Description	Certification Requirements
IEC 62485-2	Safety requirements for secondary batteries and battery installations - to meet requirements on safety aspects associated with the erection, use, inspection, maintenance and disposal: Applicable for Lead Acid and NiCd / NiMH batteries	Applicable only for Lead Acid and NiCd/NiMH batteries
UL 1642 or UL 1973, Appendix E (cell) or IEC 62619 (cell) + IEC 63056 (cell)	Secondary cells and batteries containing alkaline or other non-acid electrolytes - Safety requirements for secondary lithium cells and batteries, for use in industrial applications	Required for Cell
UL 1973 (battery) or (IEC 62619 (battery) + IEC 63056 (battery))	Batteries for Use in Stationary, Vehicle Auxiliary Power and Light Electric Rail (LER) Applications / Secondary cells and batteries containing alkaline or other non-acid electrolytes - Safety requirements for secondary lithium cells and batteries, for use in industrial applications	Either UL 1642 or UL1973 or (IEC 62619 + IEC 63056) for the Battery level
IS 18237: 2023/ IEC 62281 / UN 38.3	Safety of primary and secondary lithium cells and batteries during transport: Applicable for storage systems using Lithium Ion chemistries	Required for both Battery and Cell.
IS/IEC 61850 or DNP3	Communications networks and management systems. (BESS control system communication)	
UL 9540 or (IEC TS 62933-5-1 + IEC 62933-5-2)	Electrical energy storage (EES) systems - Part 5-1: Safety considerations for grid-integrated EES systems – General specification / Standard for Energy Storage Systems and Equipment	Either UL9540 or (IEC 62933-5-1 + IEC 62933-5-2) is required for BESS system level
IS 17067 (Part 2/Sec 1) : 2019/ IEC 62933-2-1 : 2017	Electrical energy storage (EES) systems - Part 2-1: Unit Parameters and testing methods - General Specification	Tests for Class B applications: 1. Duty Cycle Round Trip Efficiency Test 2. Equipment and Basic Function Test 3. Available energy Test 4. Insulation test

Power Conditioning Unit Standards for BESS	
IEC 62477-1	Safety requirements for power electronic converter systems and equipment - Part 1: General
IEC 62477-2	Safety requirements for power electronic converter systems and equipment - Part 2: Power electronic converters from 1000 V AC or 1500 V DC up to 36 kV AC or 54 kV DC
IS 14700-6-2(2019)/ IEC 61000-6-2 Ed.2	Electromagnetic compatibility (EMC) - Part 6-2: Generic standards - Immunity standard for industrial environments
IEC 61000-6-4 Ed.2.1	Electromagnetic compatibility (EMC) - Part 6-4: Generic standards - Emission standard for industrial environments
IS 16169:2019/ IEC 62116 Ed. 2	Utility-interconnected photovoltaic inverters - Test procedure of islanding prevention measures
IS/IEC 60068: Part 2: Sec 1: 2007	Environmental testing - Part 2-1: Tests - Test A: Cold
IS/IEC 60068: Part 2: Sec 2: 2007	Environmental testing - Part 2-2: Tests - Test B: Dry heat
IS/IEC 60068: Part 2: Sec 14: 2023	Environmental testing - Part 2-14: Tests - Test N: Change of temperature
IS/IEC 60068: Part 2: Sec 30: 2005	Environmental testing - Part 2-30: Tests - Test Db: Damp heat, cyclic (12 h + 12 h cycle)

For other technologies being used in ESS, the Developer shall adhere to the relevant environmental and safety standards issued by Government of India from time to time.

The Battery Energy Storage System:

a) shall follow the relevant CEA/CEIG Standards and CERC/SERC Regulations
b) shall be responsible for complying with the "First Time Energization" procedure available at Grid India website as per the IEGC Regulations 2023 (If applicable).

Further, CEA Technical Standards for Connectivity to the Grid, Regulations 2007, Part-1 (General), Standards and Codes for Practice, mentions the following:

"

(2) The equipment including overhead lines and cables shall comply with the relevant Indian Standards, British Standard (BS), or International Electrotechnical Commission (IEC) Standard, or American National Standards Institute (ANSI) or any other equivalent International Standard:

Provided that whenever an International Standard or International Electro technical Commission Standard is followed, necessary corrections or

modifications shall be made for nominal system frequency, nominal system voltage, ambient temperature, humidity and other conditions prevailing in India before actual adoption of the said Standard.

(3) The effects of wind, storms, floods, lightening, elevation, ***temperature extremes****, icing, contamination, pollution and earthquakes must be considered in the design and operation of the connected facilities."*

The BESS, therefore, shall be designed keeping in view the ambient temperature and weather conditions prevailing at site i.e. The BESS shall be able to deliver rated performance at the extreme temperature and weather conditions at site where it is deployed.

In this regard, the procedure notified by CEA on 8th April 2024 for assessment of the *"Design Temperature for RE Plants in compliance to CEA (Technical Standards for Connectivity to the Grid) Regulations"* shall be followed. Same is available at: https://cea.nic.in/whats-new/?lang=en

2. **Safe Disposal of unit Batteries from the BESS**

The Developer will comply with the requirements under Hazardous & other Waste (Management and Trans boundary Movement) Rules, 2016, as amended from time to time, as applicable. The RPD shall ensure that all Unit Battery modules from the plant after their 'end of life' (when they become defective/ non-operational/ non-repairable) are disposed in accordance with the "e-waste (Management and Handling) Rules, 2016" notified by the Government and as revised and amended from time to time and Battery Waste Management Rules, as and when notified by the Government of India.

Annexure – B

SPECIAL INSTRUCTIONS TO BIDDERS FOR e-TENDERING AND REVERSE AUCTION

For participating in this tender online, the following instructions are to be read carefully. These instructions are supplemented with more detailed guidelines on the relevant screens of the ETS.

GENERAL

The Special Instructions (for e-Tendering) supplement 'Instructions to Bidders', as given in these RfS Documents. Submission of Online Bids is mandatory for this RfS.

e-Tendering is a new methodology for conducting Public Procurement in a transparent and secured manner. Now, the Government of India has made e-Tendering mandatory. Suppliers/ Vendors will be the biggest beneficiaries of this new system of procurement. For conducting electronic tendering, *Solar Energy Corporation of India Limited (SECI)* has adopted a secured and user friendly e-tender system enabling bidders to Search, View, Download tender document(s) directly from the e-tendering portal of M/s Electronic Tender.com (India) Pvt. Limited ***https://www.bharat-electronictender.com*** through ISN-ETS. This portal is based on the world's most 'secure' and 'user friendly' software from ElectronicTender®. A portal built using ElectronicTender's software is also referred to as ElectronicTender System® (ETS).

Benefits to Suppliers are outlined on the Home-page of the portal.

INSTRUCTIONS

Tender Bidding Methodology:

Sealed Bid System
Single Stage Two Envelope

Auction
The sealed bid system would be followed by an 'e-Reverse Auction'

Broad Outline of Activities from Bidder's Perspective:

b. Procure a Class III Digital Signing Certificate (DSC).
c. Register on ElectronicTender System® (ETS)
d. Create Marketing Authorities (MAs), Users and assign roles on ETS. It is mandatory to create at least one MA
e. View Notice Inviting Tender (NIT) on ETS
f. For this tender -- Assign Tender Search Code (TSC) to a MA
g. Download Official Copy of Tender Documents from ETS. Note: Official copy of Tender Documents is distinct from downloading 'Free Copy of Tender Documents'. To participate in a tender, it is mandatory to procure official copy of Tender Documents for that tender.
h. Clarification to Tender Documents on ETS
   - Query to SECI (Optional)
   - View response to queries posted by SECI
i. Bid-Submission on ETS
j. Post-TOE Clarification on ETS (Optional)

k. Respond to SECI Post-TOE queries
l. Participate in e-Reverse Auction if invited

For participating in this tender online, the following instructions are to be read carefully. These instructions are supplemented with more detailed guidelines on the relevant screens of the ETS.

Digital Certificates

For integrity of data and authenticity/ non-repudiation of electronic records, and to be compliant with IT Act 2000, it is necessary for each user to have a Digital Certificate (DC), also referred to as Digital Signature Certificate (DSC), of Class III, issued by a Certifying Authority (CA) licensed by Controller of Certifying Authorities (CCA) [refer ***http://www.cca.gov.in***].

Registration

To use the ElectronicTender® portal ***https://www.bharat-electronictender.com***, vendors need to register on the portal. Registration of each organization is to be done by one of its senior persons who will be the main person coordinating for the e-tendering activities. In ETS terminology, this person will be referred to as the Super User (SU) of that organization. For further details, please visit the website/ portal, and click on the 'Supplier Organization' link under 'Registration' (on the Home Page), and follow further instructions as given on the site. Pay Annual Registration Fee as applicable.

After successful submission of Registration details and payment of Annual Registration Fee, please contact ISN-ETS Helpdesk (as given below), to get your registration accepted/ activated.

Important Note:

1. Interested bidders have to download official copy of the RfS & other documents after login into the e-tendering Portal of ISN-ETS ***https://www.bharat-electronictender.com***. If the official copy of the documents is not downloaded from e-tendering Portal of ISN-ETS within the specified period of downloading of RfS and other documents, bidder will not be able to participate in the tender.

2. To minimize teething problems during the use of ETS (including the Registration process), it is recommended that the user should peruse the instructions given under 'ETS User-Guidance Centre' located on ETS Home Page, including instructions for timely registration on ETS. The instructions relating to 'Essential Computer Security Settings for Use of ETS' and 'Important Functionality Checks' should be especially taken into cognizance.

   Please note that even after acceptance of your registration by the Service Provider, to respond to a tender you will also require time to complete activities related to your organization, such as creation of users, assigning roles to them, etc.

ISN-ETS/ **Helpdesk**	
Telephone/ Mobile	*Customer Support: +91-124-4229071, 4229072* *(From 1000 HRS to 1800 HRS on all Working Days i.e., Monday to Friday except Government Holidays)*
Email-ID	*support@isn-ets.com [Please mark CC: support@electronictender.com]*

Some Bidding Related Information for this Tender (Sealed Bid)
The entire bid-submission would be online on ETS (unless specified for Offline Submissions). Broad outline of submissions are as follows:

- Submission of Bid-Parts
  - Envelope I (Techno-commercial-Bid)
  - Envelope II (Financial-Bid)
- *Submission of digitally signed copy of Tender Documents/ Addendum*

In addition to the above, the bidders are required to submit certain documents physically offline also as per Clause 29 of the RfS, failing which the technical bids will not be opened.

Note: The Bidder should also upload the scanned copies of all the above mentioned original documents as Bid-Annexures during Online Bid-Submission.

Internet Connectivity

If bidders are unable to access ISN-ETS's e-tender portal or Bid Documents, the bidders may please check whether they are using proxy to connect to internet or their PC is behind any firewall and may contact their system administrator to enable connectivity. Please note that Port SSL/ 443 should be enabled on proxy/firewall for HTTPS connectivity. Dial-up/ Broad and internet connectivity without Proxy settings is another option

SPECIAL NOTE ON SECURITY AND TRANSPARENCY OF BIDS

Security related functionality has been rigorously implemented in ETS in a multidimensional manner. Starting with 'Acceptance of Registration by the Service Provider', provision for security has been made at various stages in Electronic Tender's software. Specifically, for Bid Submission, some security related aspects are outlined below:

As part of the Electronic Encrypted® functionality, the contents of both the 'ElectronicForms®' and the 'Main-Bid' are securely encrypted using a Pass-Phrase created by the Bidder himself. Unlike a 'password', a Pass-Phrase can be a multi-word sentence with spaces between words (e.g., I love this World). A Pass-Phrase is easier to remember, and more difficult to break. It is mandatory that a separate Pass-Phrase be created for each Bid-Part. This method of bid-encryption does not have the security and data-integrity related vulnerabilities which are inherent in e-tendering systems which use Public-Key of the specified officer of a Buyer organization for bid-encryption. Bid-encryption in ETS is such that the Bids cannot be decrypted before the Public Online Tender Opening Event (TOE), even if there is connivance between the concerned tender-opening officers of the Buyer organization and the personnel of e-tendering service provider.

CAUTION: All bidders must fill ElectronicForms® for each bid-part sincerely and carefully, and avoid any discrepancy between information given in the ElectronicForms® and the corresponding Main-Bid. For transparency, the information submitted by a bidder in the ElectronicForms® is made available to other bidders during the Online Public TOE. If it is found during the Online Public TOE that a bidder has not filled in the complete information in the ElectronicForms®, the TOE officer may make available for downloading the corresponding Main-Bid of that bidder at the risk of the bidder. **If variation is noted between the**

information contained in the ElectronicForms® and the 'Main-Bid', the contents of the ElectronicForms® shall prevail.

In case of any discrepancy between the values mentioned in figures and in words, the value mentioned in words will prevail.

The bidder shall make sure that the Pass-Phrase to decrypt the relevant Bid-Part is submitted into the 'Time Locked Electronic Key Box (EKB)' after the deadline of Bid Submission, and before the commencement of the Online TOE of Technical Bid. The process of submission of this Pass-Phrase in the 'Time Locked Electronic Key Box' is done in a secure manner by first encrypting this Pass-Phrase with the designated keys provided by SECI.

Additionally, the bidder shall make sure that the Pass-Phrase to decrypt the relevant Bid-Part is submitted to SECI in a sealed envelope before the start date and time of the Tender Opening Event (TOE).

There is an additional protection with SSL Encryption during transit from the client-end computer of a Supplier organization to the e-Tendering Server/ Portal.

OTHER INSTRUCTIONS

For further instructions, the vendor should visit the home-page of the portal ***https://www.bharat-electronictender.com***, and go to the **User-Guidance Center**

The help information provided through 'ETS User-Guidance Center' is available in three categories – Users intending to Register/ First-Time Users, Logged-in users of Buyer organizations, and Logged-in users of Supplier organizations. Various links (including links for User Manuals) are provided under each of the three categories.

Important Note: It is strongly recommended that all authorized users of Supplier organizations should thoroughly peruse the information provided under the relevant links, and take appropriate action. This will prevent hiccups, and minimize teething problems during the use of ETS.

SEVEN CRITICAL DOs AND DON'Ts FOR BIDDERS

Specifically, for Supplier organizations, the following **'SEVEN KEY INSTRUCTIONS for BIDDERS'** must be assiduously adhered to:

1. Obtain individual Digital Signing Certificate (DSC or DC) of Class III well in advance of your tender submission deadline on ETS.
2. Register your organization on ETS well in advance of the important deadlines for your first tender on ETS viz 'Date and Time of Closure of Procurement of Tender Documents' and 'Last Date and Time of Receipt of Bids'. Please note that even after acceptance of your registration by the Service Provider, to respond to a tender you will also require time to complete activities related to your organization, such as creation of -- Marketing Authority (MA) [ie a department within the Supplier/ Bidder Organization responsible for responding to tenders], users for one or more such MAs, assigning roles to them, etc. It is

mandatory to create at least one MA. This unique feature of creating an MA enhances security and accountability within the Supplier/ Bidder Organization

3. Get your organization's concerned executives trained on ETS well in advance of your first tender submission deadline on ETS.

4. For responding to any particular tender, the tender (ie its Tender Search Code or TSC) has to be assigned to an MA. Further, an 'Official Copy of Tender Documents' should be procured/ downloaded before the expiry of Date and Time of Closure of Procurement of Tender Documents. Note: Official copy of Tender Documents is distinct from downloading 'Free Copy of Tender Documents'. Official copy of Tender Documents is the equivalent of procuring physical copy of Tender Documents with official receipt in the paper-based manual tendering system.

5. Submit your bids well in advance of tender submission deadline on ETS (There could be last minute problems due to internet timeout, breakdown, etc.)

   Note: Bid-submission in ETS can consist of submission of multiple bid-components, which vary depending upon the situation and requirements of the Buyer. Successful receipt of a bid in an e-tendering scenario takes place if all the required bid-components are successfully 'received and validated' in the system (ETS) within the scheduled date and time of closure of bidding. ETS/ Service Provider is not responsible for what happens at an end-user's end, or while a submission made by an end-user is in transit, until the submission is successfully 'received and validated' in ETS.

6. It is the responsibility of each bidder to remember and securely store the Pass-Phrase for each Bid-Part submitted by that bidder. The bidders are required to submit correct, valid and operative Pass-Phrase to decrypt either Technical Bid Part or Financial Bid Part in a separate sealed envelope before due date and time of submission of bid. In the event, the bids are not opened with the pass-phrase submitted by bidder, SECI may ask for re-submission/ clarification for correct pass-phrase. In the event of a bidder forgetting the Pass-Phrase before the expiry of deadline for Bid-Submission, facility is provided to the bidder to 'Annul Previous Submission' from the Bid-Submission Overview page and start afresh with new Pass-Phrase(s). If bidder fails to submit correct pass-phrase immediately as requested by SECI, the Bid Processing Fee and Cost of RfS Document, if applicable, shall be forfeited and bid shall not be opened, and EMD shall be refunded. No request on this account shall be entertained by SECI.

7. ETS will make your bid available for opening during the Online Public Tender Opening Event (TOE) 'ONLY IF' the status pertaining Overall Bid-Submission is 'COMPLETE'. For the purpose of record, the bidder can generate and save a copy of 'Final Submission Receipt'. This receipt can be generated from 'Bid-Submission Overview Page' only if the status pertaining overall Bid-Submission' is 'COMPLETE'

NOTE:

While the first three instructions mentioned above are especially relevant to first-time users of ETS, the fourth, fifth, sixth and seventh instructions are relevant at all times.

ADDITIONAL DOs AND DON'Ts FOR BIDDERS PARTICIPATING IN e-REVERSE AUCTION

1. Get your organization's concerned executives trained for e-Reverse Auction related processes on ETS well in advance of the start of e-Reverse Auction.
2. For responding to any particular e-Reverse Auction, the e-Reverse Auction (i.e. its Reverse Auction Search Code or RASC) has to be assigned to an MA.
3. It is important for each bidder to thoroughly read the 'rules and related criterion' for the e-Reverse Auction as defined by the Buyer organization.
4. It is important to digitally-sign your 'Final bid' after the end of e-Reverse Auction bidding event.
5. During an e-auction, it is recommended that a bidder submits a bid well before the scheduled time of 'Date and Time of Closure of Reverse-Auction'. Submission of a bid near the closing time of an auction may result in failure due to any of the various factors at that instant, such as – slow internet speed at the bidder's end, slow running of computer at bidder's end, nervousness of the bidder in the last few seconds, etc. This could lead to delay in submission of data from the bidder's computer to the server. Even if the delay is of a fraction of second after the scheduled closing time, it will result in failure of bid submission. Further, please note that a bid can be submitted even if the bidding-page has not been refreshed manually, or otherwise depending on the conditions of the e-auction.
   Note: Successful receipt of Bid in an e-auction scenario takes place if the bid is successfully 'received and validated' in the system (ETS) within the scheduled date and time of closure of bidding. ETS/ Service Provider is not responsible for what happens at an end-user's end, or while a submission made by an end-user is in transit, until the submission is successfully 'received and validated' in ETS.
6. **Pre-requisite for participation in bidding process**

   - Bidder must possess a PC/ Laptop with Windows 7 professional operating system and Internet Explorer 8 or 9 for hassle free bidding. Bidder is essentially required to effect the security settings as defined in the portal.

   - The Bidder must have a high-speed internet connectivity (preferably Broadband) with internet explorer to access ISN-ETS's e-Tender Portal for downloading the Tender document and uploading/ submitting the Bids.

   - A valid e-mail ID of the Organization/ Firm

   Vendors Training Program

   One day online training (10:00 to 17:00) is provided by ISN-ETS. Training is optional. In case, any bidder is interested, he may send a request to support@isn-ets.com. Vendors are requested to arrange their own Laptop, Digital Certificate and Wireless Connectivity to the Internet.

TERMS & CONDITIONS OF REVERSE AUCTION

After opening of Financial bids and short-listing of bidders based on the tariff and total capacity of project of qualified Project(s), SECI shall resort to "REVERSE AUCTION PROCEDURE". Reverse Auction shall be conducted as per methodology specified in Section-5 and other

provisions of Reverse Auction in RfS Documents and their subsequent Addenda/ Amendments/ Clarifications. Bidders in their own interest, are advised to go through the documents in entirety. The Terms & Conditions and Business Rules mentioned hereunder are in brief and may not give completer explanations. Further these are supplementary in nature.

1. Bidders shall ensure online submission of their 'Bid Price' within the auction period.
2. Bidders shall ensure to take all necessary training and assistance before commencement of reverse auction to the interested bidders on chargeable basis to be paid directly to ISN-ETS.
3. Business rules for Reverse Auction like event date, time, bid decrement, extension etc. shall be as per the business rules, enumerated in the RfS document or intimated later on, for compliance.
4. Reverse auction will be conducted on scheduled date & time, as mentioned in the RfS document.
5. Bidders should acquaint themselves of the 'Business Rules of Reverse Auction', which is enclosed separately in the RfS document.
6. If the Bidder or any of his representatives are found to be involved in Price manipulation/ cartel formation of any kind, directly or indirectly by communicating with other bidders, action as per extant SECI guidelines, shall be initiated by SECI.
7. The Bidder shall not divulge either his Bids or any other exclusive details of SECI to any other party.
8. Period of validity of Prices received through Reverse Auction shall be same as that of the period of validity of bids offered.
9. Bidders should also note that:
   a) Although extension time is '8' minutes, there is a time lag between the actual placing the bid on the local computer of the bidder and the refreshing of the data on to the server for the visibility to the Owner. Considering the processing time for data exchange and the possible network congestion, bidders must avoid the last-minute hosting of the Financial Bid during reverse auction.
   b) Participating bidder will agree to non-disclosure of trade information regarding the purchase, identity of SECI, bid process, bid technology, bid documentation and bid details.
   c) It is brought to the attention of the bidders that the bid event will lead to the final price of bidders only.
   d) Technical and other non-commercial queries (not impacting price) can only be routed to the SECI contact personnel indicated in the RfS document.
   e) Order finalization and post order activities such issue of LOA, signing of PPA etc. would be transacted directly between successful bidder(s) and SECI.
   f) LOA shall be placed outside the ETS e-portal & further processing of the LOA shall also be outside the system.
   g) In case of any problem faced by the bidder during Reverse Auction and for all Bidding process related queries, bidders are advised to contact the persons indicated in Annexure - B of the RfS document.
   h) Bidders are advised to visit the auction page and login into the system well in advance to identify/ rectify the problems to avoid last minute hitches.

i) SECI will not be responsible for any PC configuration/ Java related issues, software/ hardware related issues, telephone line glitches and breakdown/ slow speed in internet connection of PC at Bidder's end.

j) Bidders may note that it may not be possible to extend any help, during Reverse Auction, over phone or in person in relation to rectification of PC/ Internet/ Java related issues and Bidder may lose the chance of participation in the auction.

10. For access to the Reverse Auction site, the following URL is to be used: ***https://www.bharat-electronictender.com.***
11. No queries shall be entertained while Reverse Auction is in progress.

BUSINESS RULES OF REVERSE AUCTION

Reverse Auction shall be conducted as per methodology specified in Section - 5 and other provisions of Reverse Auction in RfS documents and their subsequent Amendments/ Clarifications/ Addenda. Bidders, in their own interest, are advised to go through the documents in entirety.

The following would be parameters for e-Reverse Auction:

Sl. No.	Parameter	Value
1.	Date and Time of Reverse-Auction Bidding Event	To be intimated Later to Eligible Bidders
2.	Duration of Reverse-Auction Bidding Event	30 minutes
3.	Automatic extension of the 'Reverse-Auction closing Time', if last bid received is within a 'Predefined Time-Duration' before the 'Reverse-Auction Closing Time'	Yes
3.1	Pre-defined Time-Duration	8 Minutes
3.2	Automatic extension Time-Duration	8 Minutes
3.3	Maximum number of Auto-Extension	Unlimited Extension
4.	Entity-Start-Price	Tariff quoted by the bidders in Financial Bid (Second Envelope)

Online Reverse Auction shall be conducted by SECI on pre-specified date and time, while the bidders shall be quoting from their own offices/ place of their choice. Internet connectivity shall have to be ensured by bidders themselves.

During the Reverse Auction, any requests for extension of time will not be considered by SECI. Bidders are therefore requested to make all the necessary arrangements/ alternatives whatever required so that they are able to participate in the Reverse Auction successfully. Failure of power or loss of connectivity at the premises of bidders during the Reverse Auction cannot be the cause for not participating in the Reverse Auction. SECI shall not be responsible for such eventualities.

Bidders are advised to get fully trained and clear all their doubts such as refreshing of Screen, capacity/ no. of projects being auctioned, auction rules etc.

SECI reserves the right to cancel/ reschedule/ extend the Reverse Auction process/ tender at any time, before ordering, without assigning any reason.

SECI shall not have any liability to bidders for any interruption or delay in access to the auction website irrespective of the cause. In such cases, the decision of SECI shall be binding on the bidders.

Other terms and conditions shall be as per bidder's techno-commercial offers and as per the RfS document and other correspondences, if any, till date.

Annexure - C

ILLUSTRATION FOR PENALTIES APPLICABLE AGAINST SHORTFALL IN POWER SUPPLY (Clause 8 of the RfS)

❖ Assumptions

- Contracted Capacity w.r.t. the Buying Entity (A): 100 MW
- Applicable Tariff for the Project: **Rs. 4.0/kWh**
- Considering 5th Contract Year after commencement of power supply from last part capacity of the Project.
- Power supply profile for a typical month (say April) in the 5th year:

Illustration-1: Calculation of shortfall in meeting min. DFR requirement during Peak Hours and Off-Peak Hours (as per Clause 8.1.a.(i), 8.1.a.(ii), and 8.2.c of the RfS), to be reconciled on monthly basis

Time-block	Power required to be Scheduled (B = DFR x A) (in MW) (DFR@80% for Off-Peak Hours and @90% for Peak Hours)	Power Scheduled by the RPD during a day (C) (in MW)	Shortfall in Power Scheduled [D = max (B-C, 0)] (in MW)
00:00-00:15	90	85	5
00:15-00:30	90	95	0
00:30-00:45	80	85	0
00:45-01:00	80	85	0
…			
08:00–08:15	80	80	0
08:15–08:30	80	80	0
08:30–08:45	90	80	10
08:45–09:00	90	80	10
09:00–09:15	90	85	5
09:15–09:30	90	90	0
09:30–09:45	90	95	0
09:45–10:00	80	90	0
10:00–10:15	80	90	0
10:15–10:30	80	90	0
…			
17:00-17:15	80	85	0
17:15-17:30	80	85	0
17:30-17:45	80	80	0
17:45-18:00	80	80	0
18:00–18:15	90	85	5
18:15–18:30	90	85	5

18:30–18:45	90	90	0
18:45–19:00	90	90	0
19:00–19:15	90	90	0
19:15–19:30	90	90	0
19:30–19:45	90	90	0
19:45–20:00	90	90	0
20:00–20:15	80	90	0
20:15–20:30	80	90	0
20:30–20:45	80	85	0
20:45–21:00	80	85	0
21:00–21:15	90	90	0
21:15–21:30	90	90	0
21:30–21:45	90	90	0
21:45–22:00	90	90	0
…			
Total			**50**
*Sum total of shortfall in Power Scheduled in a day: ∑D = 50 MW, **Considering same situation prevailing for the entire month, total shortfall in Energy in this month = 50 x 30 / 4 = 375 MWh. ***Assuming PPA Tariff of INR 4.0/kWh, Penalty for the above month = (1.5 x 4.0 x 375 x 1000)/10000000= INR 22.50 Lakhs			

Illustration-2: Calculation of shortfall in meeting min. DFR requirement for a Contract Year (as per Clause 8.1.a.(i), 8.1.a.(ii), 8.1.a.(iii), and 8.2.d of the RfS), to be reconciled annually

Month	Monthly Shortfall in power supply during Peak Hours (aggregate of shortfall in DFR of all the time-blocks during Peak Hours in the month) (in MW)	Monthly Shortfall in power supply during off-Peak Hours (aggregate of shortfall in DFR of all the time-blocks during off-Peak Hours in the month) (in MW)
A	**C**	**D**
Jan	1500	2000
Feb	2300	3500
Mar	2000	4500
Apr	400	1500
May	300	1000
Jun	100	500
Jul	500	1000
Aug	500	1500
Sep	1000	2000
Oct	500	1000
Nov	500	1500

Dec	750	1500
Total	**10350**	**20000**

Annual Energy to be supplied corresponding to 90% DFR =100*8766*0.9 =788940 MWh.

(i) Total penalty applicable for the Contract Year for shortfall in meeting min. DFR requirement during Peak Hours (payable monthly) = Rs. [1.5 x 4 x (10350/4) x 1000] = Rs. 155.25 Lakhs

(ii) Total penalty applicable for the Contract Year for shortfall in meeting min. DFR requirement during off-Peak Hours (payable monthly) = Rs. [1.5 x 4 x (20000/4) x 1000] = Rs. 300 Lakhs

(iii) Annual DFR Achieved = 88.75%
Annual Energy supplied corresponding to 88.75% DFR = 100*8766*0.8875 = 777982.50 MWh
Total penalty applicable for the Contract Year for shortfall in meeting min. annual DFR requirement = Rs. [1.5 x 4 x (788940 – 777982.50) x 1000] = Rs. 657.45 Lakhs

Therefore, total annual penalty (in addition to the monthly penalties as per (i) and (ii) above) payable by the RPD for this Contract Year = Higher {Sum of (i) and (ii), (iii)} = Rs. {(155.25+300), 657.45} = Rs. 657.45 Lakhs.

Note: The above illustration has been provided for a sample monthly data, based on assumptions as indicated. Actual calculations for penalties will be made for the yearly data as made available through the REA.

Annexure - D

FORMAT FOR PROJECT PROGRESS STATUS OF ISTS-CONNECTED RE POWER PROJECT

S. No.	Description	Reviewed on _____ (if applicable) M/s _____ (Project ID & Contracted Capacity) Effective Date of PPA: _____ Original/ Revised Scheduled Commencement of Supply date: _____ Actual Commencement of Supply date(s) (with capacity): _____	Present status M/s _____ (Project ID & Contracted Capacity) Effective Date of PPA: _____ Original/ Revised Scheduled Commencement of Supply date: _____ Actual Commencement of Supply date(s) (with capacity): _____	Remarks
1	**Status of connectivity (Inter connection voltage level)**			
	Connectivity start date			
	Bay installation status			
2	**Land Arrangement status with Acquisition details**			
	Identification (Yes/No)			
	Location (Kindly provide the location co-ordinates)			
	Status of Ownership			
	Total area required for the Project (in acres)			
	Extent of land acquired (in acers) (%)			
	Land procurement (Yes/No)			
	Land Conversion (Yes/No)			
	Land title (ownership/land lease allotment in the name of			

	Developer) completed/partially completed, same shall be given in acres			
	Solar land- Location (Co-ordinates)			
	Wind land- Location (Co-ordinates)			
	ESS land- Location (Co-ordinates)			
3	**Status of financing arrangements**			
	Equity tie-up			
	Financial closure status			
	Financial lender details			
	Status of Debt			
	Sanction/ Disbursement from Bank			
	Name of Bank			
4	**Status of Clearances (if applicable)**			
	MoD (land area in acres to be specified)			
	Forest (land area in acres to be specified)			
	Mining (land area in acres to be specified)			
	Local Body (land area in acres to be specified)			
	Any other clearances			
5	**Status of Transmission line including distance and rating**			
	Total distance of transmission line in km			
	Voltage Rating of transmission line			
6	**Design status of Project**			
	No. of Solar block along with capacity in MW			
	Inverter capacity in MW			
	Inverter transformer capacity in MVA			
	No. of WTGs along with capacity (height & capacity)			

	No. of ESS along with capacity (in MW and MWh)			
7	**Design status of Substation**			
	Voltage rating of Substation			
	No. of Bays planned			
	Location of Substation (land Co-ordinates)			
8	**Design status of Transmission line towers and No. of Towers foundations expected**			
	Tower schedule status			
	No. of towers expected (In Nos.)			
9	**Supply Status**			
	PO status of MMS, Modules, Inverter, WTGs, Power transformer, Inverter transformer, transmission line tower stubs, structure)			
	Supply status of Modules to site (%)			
	Supply status of Inverter (%)			
	Supply status of WTGs (%)			
	Supply status of ESS (%)			
	Supply status of Power Transformer (%)			
	Supply status of Inverter Transformer (%)			
	Supply status of transmission line towers stubs (%)			
	Supply status of transmission line towers structure (%)			
	Overall status of supply (%)			
10	**Civil work status**			
	Solar- pile works status (No. of piles for the Project vs. completed status)			
	Wind-Foundation work status (No. of WTG's for the Project vs. completed status)			
	Substation-foundation work status (No. of equipment foundation for the substation vs. completed status)			

	Transmission line-Foundation work status (No. of tower foundation for the project vs. completed)			
11	**Erection**			
	Solar panels- Erected capacity			
	Wind turbine-Erected capacity			
	ESS- Installed capacity			
	S/s Equipment erection status Transformer erection Equipment erection Pre-commissioning status			
	T/L-Tower erection in Nos.			
	T/L-Stringing in km			
12	**Pre-commissioning Status**			

Annexure – E

INSTALLATION REPORT

(to be provided by RPD and to be submitted at most 7 days prior to proposed date of commencement of power supply)

S. No.	Capacity of the Project (MW)	
	• Capacity of Solar PV component (MW)	
	• Capacity of Wind component (MW)	
	• Capacity of ESS (MW/MWh) and the details of the type of technology	
	• Capacity of any other RE component (MW) and the details thereof	
	Capacity already commissioned (MW)	
	Capacity proposed to be commissioned (MW)	
Details of Solar PV component		
I.	Technology used (Mono/Multi Crystalline / thin film / Others; please specify along with capacity of each type)	
II.	Type of Tilt (Fixed Tilt/ Seasonal Tilt/ Tracking)	
III.	Rating of each module (Wp)	
IV.	Number of modules installed of each type (along with Serial Nos. of all the modules installed)	
V.	Make of Module(s) installed of each type (including name of the Supplier and country of origin)	
VI.	Number of PCUs / Inverters installed (along with Serial Nos. of all the PCUs/ Inverters installed)	
VII.	Make of the PCUs / Inverters (including name of supplier and country of origin)	
VIII.	Rating of PCUs / Inverters	
IX.	Date of installation of full capacity (as per capacity proposed to be commissioned)	
	PV arrays	
	PCUs / Inverters	
	Transformers	
	Capacity of the Project (MW)	

X.	Details of Wind component (No. of WTGs; Make, height, and capacity of each WTG)	
XI.	Details of ESS component (Technology, make, rating of each unit, number of units)	

Annexure – F

CHECKLIST FOR SUBMISSION OF DETAILS/ DOCUMENTS FOR SIGNING OF THE PPA

1	LoA No.
2	Date of Issuance of LoA
3	Name of Successful Bidder
4	Awarded Capacity (MW)
5	Proposed SPV for signing of PPA
6	CIN of SPV, if applicable
7	Registered office Address of Company executing the PPA
8	Address for Sending Notice under PPA
9	Details of Payment of Success Charges (1st and 2nd Installment)
10	Performance Bank Guarantee
11	Latest Shareholding Certificate of the Bidding Company, duly certified by a practicing CA/ practicing CS
12	Copy of the Certificate of Incorporation of the company executing the PPA
13	The details of promoters and their shareholding in the RPD (company executing the PPA), duly certified by the practicing CA/CS
14	Copy of Memorandum of Association (MoA) of the RPD (company executing the PPA) highlighting the object clause related to generation of Power/Energy/Renewable Energy/ Solar/ Wind Power Plant development *(applicable only in case PPA is being executed through SPV)*
15	Board Resolution from Successful Bidder towards execution of project through SPV and committing total equity infusion in the SPV as per the provisions of RfS (*if PPA is to be executed through SPV*)
16	Board Resolution from SPV for execution of the Project awarded to the Successful Bidder (*if PPA is to be executed through SPV*)
17	Board Resolution from RPD for authorization of signing PPA and subsequent relevant documents

Annexure – G

SYNCHRONIZATION DECLARATION

Ref. No.:
Date:

This is to certify that

(a) ___ MW (___ MW already commissioned) of ___ MW Solar PV component located at Village _____ Tehsil/ Taluka ____, District _____, (as applicable)

(b) ____ MW (___ MW already commissioned) of __ MW Wind component located at Village _____ Tehsil/ Taluka ____, District _____, (as applicable)

(c) ____ MW (___ MW already commissioned) of __ MW any other RE component located at Village _____ Tehsil/ Taluka ____, District _____, (as applicable)

(d) and ___ MW/ ___ MWh (__ MW/ ___ MWh already commissioned) of ESS component located at Village _____ Tehsil/ Taluka ____, District _____, (as applicable)

of RE Power Project with Project ID: _____ of M/s. _____, was Grid-connected on _____ (Date in DD/MM/YYYY) at _____ Hrs.

It is further certified that the Project was successfully synchronized with the grid on _____ (Date) at _____ Hrs. and supply of power into the grid from the Project commenced on _____ (Date) at _____ Hrs.

The details of the Solar Inverter Blocks/ ESS Blocks/ Wind Turbine Generators (WTGs) (as applicable) installed at the site are as follows:

- Number of Machines/ Blocks: _____
- Rated Capacity per WTG/Block: ____ MW

Block wise details of inverters synchronized (as applicable):

S. No.	Block/ICR No.:	Details of Inverter (rating and quantity)	Details of Solar PV Modules (rating and quantity)	Details of ESS (as applicable)
1				
2				
3				

4				
5				

Meter Details

Particulars	Main Meter	Check Meter	Standby Meter
Make & Sl. No.			
Substation & Voltage level where meter is installed			
Bay No.			

***** *Also include details of Sub-meters as per the PPA/RfS provisions (if applicable)*

The synchronization details of the Wind component (as applicable) are summarized below:

Sl. No.	WTG/ Block Location ID	WTG/ Block ID (as per ToC)	Rated Capacity of WTG/ Block (MW)	Location	33 kV Feeder No.	Date of Synchronization

I hereby declare that the information provided above is true and correct. In case of any discrepancies, I shall be fully responsible and shall take necessary corrective actions as required.

For and on behalf of the RPD

Name and designation of Authorized Signatory

Signature with company seal

Date

Annexure – H

UNDERTAKING

(*To be stamped in accordance with Stamp Act, the Non-Judicial Stamp Paper of Rs. 100/-*)

I, _____ [Name of Authorized Signatory], S/o _____ [Father's Name], adult aged ____ [Age] years, Occupation _____ [Occupation], R/o _____ [Full Residential Address], do hereby solemnly affirm and state as under:

That I am ____ [Designation] of M/s _____ [Name of RPD], a company incorporated under the Companies Act, 2013, having its registered office at _____ [Registered Office Address], and have been appointed as the authorized signatory vide Board Resolution dated _____ [Date of Resolution].

That M/s _____ [Name of RPD] has executed a PPA with SECI, effective from _____ [Date], for setting up a _____ [Capacity in MW] RE Power Project under RfS No. _____, dated _____, bearing Project ID _____.

That the Project is connected to the _____ S/s at _____ kV level, and the connectivity at the said S/s has not yet been operationalized. The RPD, at its own risk & cost, intends to commission the Project & commence power supply based on available Margin for power evacuation / T-GNA, without any financial Liability on SECI.

That the RPD gives unconditional consent to bear all applicable charges & losses for supply of power up to the Delivery Point (as defined in the PPA), inclusive but not limited to application /processing fees, O&M charges, & any other applicable costs.

That the RPD undertakes to indemnify SECI against any financial Implications, liabilities, or claims arising from the supply of power till the operationalization of connectivity.

That I, on behalf of the RPD, give unconditional acceptance to all the conditions stated above & agree to bear all consequences & implications thereof.

DEPONENT

(Signature of Authorized Signatory)

[Name of Authorized Signatory]

Authorized Signatory

[Name of RPD]

Date: _____

Place: _____

VERIFICATION

I, the above-named deponent, do hereby verify that the contents of the above affidavit/undertaking are true and correct to the best of my knowledge and belief. Nothing is false and nothing material has been concealed therefrom.

Verified at ____ [Place] on this __ [Day] Day of ____, ____ [Month, Year].

(Signature of Authorized Signatory)

[Name of Authorized Signatory]

Authorized Signatory

[Name of RPD]

Attested before me:

(Signature & Seal of Notary Public/Magistrate)

Name: _____

Regn. No.: _____

Date: _____

Annexure – I

UNDERTAKING FOR UTILIZATION OF CONNECTIVITY BY THE BIDDING COMPANY

(*to be submitted on the letterhead of the Connectivity Applicant*)

I, M/s _____ {*Insert name of the connectivity applicant*}, have applied for/ obtained in-principle grant/ final grant of connectivity vide application number _____ dated _____. M/s _____ {*Insert name of the Bidding Company*} is participating in the RfS issued by SECI vide RfS No. _____ dated _____ and the same is the _____ company {*Relationship with the Bidding Company*} of M/s _____ {*Insert name of the connectivity applicant/ grantee*}.

In the event M/s _____ {*Insert name of the Bidding Company*} emerges as Successful Bidder under the aforementioned RfS, the aforementioned connectivity shall be utilized by the M/s _____ {*Insert name of the Bidding Company*} for supply of power to SECI under the aforementioned RfS and as per the provisions of Central Electricity Regulatory Commission (Connectivity and General Network Access to the inter-State Transmission System) Regulations, 2022, including subsequent amendments and clarifications issued thereof.

Enclosure: Shareholding certificates to establish the relationship with the Bidding Company

(Name and Signature of the CEO/ MD/ Director of the Connectivity Applicant)

(Company Stamp)